

MEMORANDA

of

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

In the Matter of AARON MANOR REHABILITATION AND NURSING CENTER, LLC, et al., Appellants-Respondents, v HOWARD A. ZUCKER, as Commissioner of Health, et al., Respondents-Appellants.

Submitted February 13, 2024; decided February 15, 2024

Reported below, 205 AD3d 1193.

Motion by New York State Health Facilities Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of EDWIN AGRAMONTE et al., Appellants, v LOCAL 461, DISTRICT COUNCIL 37, AMERICAN FEDERATION OF STATE, COUNTY AND MUNICIPAL EMPLOYEES, by its President, Jason Velzaquez, Respondent.

Submitted January 22, 2024; decided February 15, 2024

Reported below, 209 AD3d 478.

Motion by Service Employees International Union, Local 32BJ, et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of MARIATERESA CERAVOLO, Respondent, v DAVID LEFEBVRE, Respondent. (Proceeding No. 1.)

In the Matter of MITCHEL LICHTMAN, Appellant, v MARIATERESA CERAVOLO, Respondent, et al., Respondent. (Proceeding No. 2.)

Submitted August 14, 2023; decided February 15, 2024

Reported below, 217 AD3d 1523 (Appeal No. 1); 217 AD3d 1525 (Appeal No. 2); 217 AD3d 1526 (Appeal No. 3).

Motion, insofar as it seeks leave to appeal from the Appellate Division order that affirmed the Family Court order denying the motion to vacate, dismissed upon the ground that the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

JEFFREY COLT et al., Respondents, v NEW JERSEY TRANSIT CORPORATION et al., Appellants.

Submitted January 29, 2024; decided February 15, 2024

Reported below, 206 AD3d 126.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL ADVISORS, LLC, et al., Respondents.

Submitted January 29, 2024; decided February 15, 2024

Reported below, 209 AD3d 486.

Motion by Business Council of New York State, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judges GARCIA and HALLIGAN took no part.

In the Matter of JOSHUA J. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TAMEKA J., Appellant. (Proceeding No. 1.)

In the Matter of CHRISTOPHER J. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TAMEKA J., Appellant. (Proceeding No. 2.)

Submitted November 27, 2023; decided February 15, 2024

Reported below, 220 AD3d 776; 220 AD3d 777.

Motion for leave to appeal granted. Motion for poor person relief granted.

In the MATTER OF MASTER BUILT HOMES II CORP. et al., Appellants, v NEW YORK CITY DEPARTMENT OF BUILDINGS et al., Respondents.

Decided February 15, 2024

Reported below, 220 AD3d 867.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action/proceeding within the meaning of the Constitution.

In the Matter of NYC ORGANIZATION OF PUBLIC SERVICE RETIREES, INC., et al., Respondents, v RENEE CAMPION et al., Appellants.

Submitted February 13, 2024; decided February 15, 2024

Reported below, 210 AD3d 559.

Motion by Donald Berwick for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of NYC ORGANIZATION OF PUBLIC SERVICE RETIREES, INC., et al., Respondents, v RENEE CAMPION et al., Appellants.

Submitted February 5, 2024; decided February 15, 2024

Reported below, 210 AD3d 559.

Motion by New York City Correction Captains Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

IN the Matter of NYC ORGANIZATION OF PUBLIC SERVICE RETIREES, INC., et al., Respondents, v RENEE CAMPION et al., Appellants.

Submitted February 5, 2024; decided February 15, 2024

Reported below, 210 AD3d 559.

Motion by Physicians for a National Health Program-New York Metro for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MATTHEW CORR, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRYAN McDONALD, Appellant.

Submitted January 29, 2024; decided February 15, 2024

Reported below, 208 AD3d 136; 207 AD3d 669.

Motion by New York City Bar Association for leave to appear amicus curiae on the appeals herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v COREY DUNTON, Respondent.

Submitted February 13, 2024; decided February 15, 2024

Reported below, 2022 NY Slip Op 68332(U).

Motion by Center for Appellate Litigation for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judges GARCIA and HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK
FUGATE, Appellant.

Submitted January 22, 2024; decided February 15, 2024

Reported below, 78 Misc 3d 131(A), 2023 NY Slip Op 50341(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN
TYLER KUHN, Appellant.

Submitted February 5, 2024; decided February 15, 2024

Reported below, 221 AD3d 1182.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LA-
QUAWN LEWIS, Appellant.

Submitted January 22, 2024; decided February 15, 2024

Reported below, 218 AD3d 493.

Motion for assignment of counsel granted and Patricia Pazner, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HARVEY
WEINSTEIN, Appellant.

Submitted January 22, 2024; decided February 15, 2024

Reported below, 207 AD3d 33.

Motion by Daily News, L.P., et al. for leave to file a brief amici curiae in support of nonparty Gannett Satellite Information Network, LLC, doing business as The Journal News, granted and the proposed brief is accepted as filed.

Judges TROUTMAN and HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HARVEY
WEINSTEIN, Appellant.

Submitted January 29, 2024; decided February 15, 2024

Reported below, 207 AD3d 33.

Motion by nonparty Gannett Satellite Information Network, LLC, doing business as The Journal News, for reargument of motion to “intervene for the limited purpose of unsealing court records” denied [*see* 40 NY3d 1089 (2024)].

Judges TROUTMAN and HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. LISA NAPOLI, on
Behalf of AMIN LABORIEL, Appellant, v ANTHONY J. AN-
NUCCI, as Acting Commissioner, New York State Depart-
ment of Corrections and Community Supervision, et al.,
Respondents.

Submitted September 18, 2023; decided February 15, 2024

Reported below, 219 AD3d 496.

On the Court’s own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

RANDALL WILTZ, Appellant, v NEW YORK UNIVERSITY et al.,
Respondents.

Decided February 15, 2024

Reported below, 217 AD3d 521.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question.

CHESWOLD (TL), LLC, Respondent, v JAMES WYNN, Appellant,
et al., Defendants.

Submitted September 25, 2023; decided February 20, 2024

Reported below, 2023 NY Slip Op 71989(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PETER CHIEN, Appellant, v JAMES FISHMAN, Respondent.

Submitted December 18, 2023; decided February 20, 2024

Reported below, 2022 NY Slip Op 74302(U); 2023 NY Slip Op 69498(U); 2023 NY Slip Op 74450(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the orders appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion by appellant to strike respondent's jurisdictional response denied.

HSBC BANK USA, N.A., Respondent, v FRANCIS M. CAESAR et al., Appellants, et al., Defendants.

Submitted October 23, 2023; decided February 20, 2024

Reported below, 200 AD3d 865; 2023 NY Slip Op 72485(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

Judge HALLIGAN took no part.

GREGORY D. KILPATRICK, Appellant, v KATHY HOCHUL, as Governor, et al., Respondents.

Submitted November 27, 2023; decided February 20, 2024

Reported below, 2023 NY Slip Op 75635(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601). Motion for leave to appeal dismissed

upon the ground that no appeal lies from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of LINNEA W., Appellant, v MATTHEW P., Respondent.

Submitted December 18, 2023; decided February 20, 2024

Reported below, 2023 NY Slip Op 76160(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ALEX PACHECO, Appellant, v ALMA REALTY CORP. et al., Respondents, et al., Defendant.

Submitted October 10, 2023; decided February 20, 2024

Reported below, 216 AD3d 548; 2023 NY Slip Op 72558(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to this Court, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

SCOTTSDALE INSURANCE COMPANY, Appellant, v MT. HAWLEY INSURANCE COMPANY et al., Respondents.

Submitted August 21, 2023; decided February 20, 2024

Reported below, 213 AD3d 442; 2023 NY Slip Op 68888(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying appellant's motion for leave to appeal, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

BHUPENDRA K. SHAH, Appellant, v N.Y. STATE OFFICE OF MENTAL HEALTH et al., Respondents.

Submitted October 23, 2023; decided February 20, 2024

Reported below, 199 AD3d 955.

Motion for reargument of motion for leave to appeal denied
[see 40 NY3d 970 (2023)].

CHERYL D. UZAMERE, Appellant, v EHIGIE EDOBOR UZAMERE et
al., Respondents, et al., Defendant.

Submitted December 11, 2023; decided February 20, 2024

Reported below, 2023 NY Slip Op 73148(U).

On the Court's own motion, appeal dismissed, without costs,
upon the ground that the order appealed from does not finally
determine the action within the meaning of the Constitution.
Motion for leave to appeal dismissed upon the ground that the
order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of JASON BORRERO, Appellant, v STEVEN BANKS,
Commissioner of Social Services, et al., Respondents, et
al., Respondents.

Submitted November 20, 2023; decided February 22, 2024

Reported below, 212 AD3d 496.

Motion for reargument of motion for leave to appeal denied
[see 40 NY3d 903 (2023)].

CITIBANK, N.A., Not in its Individual Capacity, But Solely as
Trustee of NRZ PASS-THROUGH TRUST VI, Appellant, v AR-
THUR BAILEY, as Heir to the Estate of DAVID B. BAILEY, Re-
spondent, et al., Defendants.

Submitted November 6, 2023; decided February 22, 2024

Reported below, 213 AD3d 1324; 219 AD3d 1717.

Motion, insofar as it seeks leave to appeal from the February
2023 Appellate Division order, dismissed as untimely (*see* CPLR
5513 [b]); motion, insofar as it seeks leave to appeal from the
September 2023 Appellate Division order, dismissed upon the
ground that such order does not finally determine the action
within the meaning of the Constitution.

VINCENT SCOTT COLLINS, Appellant, v LIZETTE WAJAH et al.,
Respondents.

Submitted November 27, 2023; decided February 22, 2024

Reported below, 2023 NY Slip Op 72482(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief etc. dismissed as academic.

DOORDASH, INC. et al., Appellants, v NEW YORK CITY DEPARTMENT OF CONSUMER AND WORKER PROTECTION et al., Respondents.

Submitted December 11, 2023; decided February 22, 2024

Reported below, 2023 NY Slip Op 77440(U).

Motion for leave to appeal dismissed upon the ground that no appeal lies from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

Judge HALLIGAN took no part.

In the Matter of the Foreclosure of Tax Liens by COUNTY OF BROOME. COUNTY OF BROOME, Respondent; JOHN CADORE et al., Appellants.

Submitted November 27, 2023; decided February 22, 2024

Reported below, 2023 NY Slip Op 66144(U).

Motion for reconsideration of this Court's September 14, 2023 dismissal order denied [*see* 40 NY3d 954 (2023)].

REBECCA R. HAUSSMANN, as Trustee of the KONSTANTIN S. HAUSSMANN TRUST, et al., Appellants, v WERNER BAUMANN et al., Respondents, et al., Defendants. BAYER AG, Nominal Respondent.

Submitted August 7, 2023; decided February 22, 2024

Reported below, 217 AD3d 569.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order resolving an appeal from the

October 2022 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAY-
QUAINE SEIGNIOUS, Respondent.

Submitted June 27, 2022; decided February 22, 2024

Reported below, 202 AD3d 511.

Motion to dismiss appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LOUIS
P. WOLBERT, Appellant.

Submitted November 6, 2023; decided February 22, 2024

Reported below, 207 AD3d 483.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

UBER TECHNOLOGIES, INC., Appellant, v NEW YORK CITY DEPART-
MENT OF CONSUMER AND WORKER PROTECTION et al., Re-
spondents.

Submitted December 11, 2023; decided February 22, 2024

Reported below, 2023 NY Slip Op 77477(U).

Motion for leave to appeal dismissed upon the ground that no appeal lies from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

Judge HALLIGAN took no part.

[230 NE3d 443, 206 NYS3d 521]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE
M. RIVERA, Appellant.

Argued September 13, 2023; decided November 21, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 4, 2022. The Appellate Division affirmed a resentencing of the Supreme Court, Monroe County (Francis A. Affronti, J.), which had resentedenced defendant upon his conviction of criminal possession of a weapon in the second degree.

People v Rivera, 202 AD3d 1480, affirmed.

HEADNOTES**Crimes — Sentence — Youthful Offender — Armed Felony Offense**

1. In the prosecution of defendant arising from his display of a loaded gun during an argument over a parking space when he was 17 years old and resulting in his conviction for second-degree criminal possession of a weapon, the sentencing court exercised its discretion pursuant to CPL 720.10 in determining whether qualifying mitigating circumstances existed that would make defendant eligible for youthful offender adjudication. CPL 720.10 (3) allows a youth convicted of an armed felony offense to be treated as eligible for youthful offender status if the court finds: “(i) mitigating circumstances that bear directly upon the manner in which the crime was committed; or (ii) where the defendant was not the sole participant in the crime, the defendant’s participation was relatively minor although not so minor as to constitute a defense to the prosecution.” Although certain isolated statements made by the sentencing court were not the most artful articulation of the relevant standards, the record indicated that the sentencing court applied the correct statutory framework and exercised its discretion pursuant to the statute. The judge quoted directly from CPL 720.10 (3) and explicitly referenced his “discretion” to determine whether the statutory factors were present, specifically including “mitigating circumstances.” As required, the court expressly found that mitigating circumstances did not exist. In any event, the Appellate Division correctly held that there were insufficient mitigating circumstances to support youthful offender adjudication, given the threatening manner in which defendant used the gun.

Crimes — Appeal — Preservation of Issue for Review

2. In the prosecution of defendant arising from his display of a loaded gun during an argument over a parking space when he was 17 years old and resulting in his conviction for second-degree criminal possession of a weapon, defendant’s arguments for youthful offender eligibility based on the recent U.S. Supreme Court decision in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]) were unpreserved and thus unreviewable for the reasons stated in *People v Cabrera* (41 NY3d 35 [2023]). Nor was the preservation exception permitting appellate review when a sentence’s illegality is

readily discernible from the trial record applicable. *Bruen* alone does not compel the conclusion that New York's criminal possession of a weapon statutes are unconstitutional, particularly absent the development of a record in the trial court.

APPEARANCES OF COUNSEL

Julie A. Cianca, Public Defender, Rochester (*Guy A. Talia* and *Janet C. Somes* of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (*Lisa Gray* of counsel), for respondent.

Letitia James, Attorney General, New York City (*Margaret Cieprisz*, *Andrew W. Amend*, *Barbara D. Underwood*, *Nikki Kowalski*, *Jodi A. Danzig* and *Anthony Raduazo* of counsel), in her statutory capacity under Executive Law § 71.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Jose M. Rivera argues that the sentencing court failed to exercise its discretion pursuant to Criminal Procedure Law § 720.10 to determine whether qualifying mitigating circumstances existed that would make him eligible for youthful offender adjudication. We hold that the court did exercise its discretion in making the required eligibility determination. Defendant also advances, for the first time in this Court, several arguments for youthful offender eligibility based on *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]). These arguments are unpreserved, and for the reasons set forth in *People v Cabrera* (41 NY3d 35 [2023] [decided today]), we do not reach them.

The conviction underlying defendant's sentence stems from his display of a loaded gun during an argument over a parking space in 2010, when he was 17 years old. Defendant pleaded guilty to criminal possession of a weapon in the second degree and was sentenced as a second violent felony offender based on a 2007 felony conviction, which rendered him ineligible for youthful offender treatment (*see* CPL 720.10 [2] [b]). The 2007 felony conviction was vacated in 2016, leaving no predicate felony to support his 2011 second violent felony offender sentence. The 2011 sentence was accordingly vacated, and defendant was scheduled for resentencing.

At resentencing, defendant was no longer precluded from arguing eligibility for youthful offender treatment (*see* CPL

720.10 [2]), but the court denied his application upon finding that he was not an eligible youth. The court first acknowledged that CPL 720.10 “requires in essence the Court to determine whether the defendant is now at resentence an eligible youth based on his earlier age, and consider the presence or absence of factors set forth in the statute.” The court found that although defendant “was not the sole participant in the crime,” “his participation was not relatively minor by his admission that it was his weapon and that he illegally possessed it.” Moreover, the court identified no “mitigating circumstances that bear directly upon the manner in which the crime was committed, namely mitigating factors to be concluded as requiring youthful offender adjudication.” Additionally, the court expressly acknowledged an Appellate Division ruling, *People v Dukes*, which had remitted a different case because the court had not considered those factors (147 AD3d 1534 [4th Dept 2017]), and made clear that it was “now placing on the record as required by the statute” the “required criteria.” Finally, the court stated that “this was, of course, an armed felony, Criminal Possession of a Weapon in the Second Degree, and as such there are aggravating factors as opposed to mitigating factors in light of the defendant’s participation which negate against a finding of youthful offender adjudication.” Accordingly, the court determined “that the presence of the relevant factors that must be decided do not appear applicable in the case at bar.” The court ultimately imposed the same sentence that the defendant had previously negotiated: 10 years of imprisonment, followed by five years of postrelease supervision. Defendant appealed his resentence.

The Appellate Division unanimously affirmed, holding that the sentencing court “did not err in concluding that defendant was not eligible to be adjudicated a youthful offender,” given “defendant’s display of the weapon and his implicit threat to use it” (202 AD3d 1480, 1480-1481 [4th Dept 2022]).

Criminal Procedure Law § 720.10 governs adjudication of youthful offender status. Subdivisions (1) and (2) define an “[e]ligible youth” to include “[e]very” “person charged with a crime alleged to have been committed when he was at least sixteen years old and less than nineteen years old,” “unless,” in relevant part, “the conviction to be replaced by a youthful offender finding is for . . . an armed felony” (CPL 720.10 [1], [2] [a] [ii]). Subdivision (3) allows a youth convicted of an armed felony offense to nonetheless be treated as eligible if the court

finds: “(i) mitigating circumstances that bear directly upon the manner in which the crime was committed; or (ii) where the defendant was not the sole participant in the crime, the defendant’s participation was relatively minor although not so minor as to constitute a defense to the prosecution” (CPL 720.10 [3]).

Defendant’s contention that the sentencing court failed to exercise its discretion to determine whether mitigating circumstances existed relies upon two lines from his resentencing proceedings. First, the court stated that “this was, of course, an armed felony, Criminal Possession of a Weapon in the Second Degree, and *as such* there are aggravating factors as opposed to mitigating factors in light of the defendant’s participation which negate against a finding of youthful offender adjudication” (emphasis added). According to defendant, this statement reflects a mistaken view that the mere designation of an offense as an armed felony precludes a finding of mitigating circumstances. Second, the court stated that it did not find any mitigating factors present that “requir[ed] youthful offender adjudication,” and defendant argues that mitigating circumstances need only permit, not require, youthful adjudication.

[1] While neither of these isolated statements was the most artful articulation of the relevant standards, the record indicates that the sentencing court applied the correct statutory framework and exercised its discretion pursuant to the statute. The judge quoted directly from CPL 720.10 (3) and explicitly referenced his “discretion” to determine whether the statutory factors were present, specifically including “mitigating circumstances.” As required, the court expressly found that mitigating circumstances did not exist. In any event, the Appellate Division correctly held that there were insufficient mitigating circumstances to support youthful offender adjudication, given the threatening manner in which defendant used the gun.

[2] Defendant’s remaining challenges based on the recent U.S. Supreme Court decision in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]), are unpreserved and thus unreviewable for the reasons stated in *People v Cabrera* (decided today). Nor is the preservation exception “permitting appellate review when a sentence’s illegality is readily discernible from the trial record” applicable (*People v Santiago*, 22 NY3d 900, 903 [2013]). As we note in *Cabrera*, *Bruen* alone

does not compel the conclusion that New York’s criminal possession of a weapon statutes are unconstitutional, particularly absent the development of a record in the trial court. We therefore do not reach defendant’s contention that the Second Amendment bars classification of unlicensed public possession of a weapon as a violent armed felony such that he should have been eligible for youthful offender status without regard to the presence or absence of mitigating circumstances.*

RIVERA, J. (concurring). Defendant Jose M. Rivera raises several challenges to his criminal weapons conviction on a guilty plea to possessing a loaded unlicensed handgun. I agree with the majority that defendant’s statutory claim regarding his eligibility for youthful offender status is without merit (*see* majority mem at 939). However, for the reasons I discuss in *People v Garcia* (41 NY3d 62 [2023] [decided today]), I disagree with the majority that defendant’s Second Amendment claims are unpreserved. Nevertheless, those claims fail because defendant was under the age of 18 at the time he committed the crimes and, as a minor, he had no unrestricted Second Amendment right to possess an unlicensed weapon in public.

It is well-settled that minors have limited constitutional rights (*Bellotti v Baird*, 443 US 622, 634 [1979]). “[T]hree reasons justify[] the conclusion that the constitutional rights of children cannot be equated with those of adults: the peculiar vulnerability of children; their inability to make critical decisions in an informed, mature manner; and the importance of the parental role in child rearing” (*id.*). Minors cannot vote, hold public office, serve on a jury or engage in certain types of employment (US Const 26th Amend [age requirement for voting]; NY Const, art III, § 7 [age requirement for holding certain public office]; Labor Law §§ 2, 133 [child labor laws]).

This is not to say that minors are without any legal protections, and even for those rights guaranteed to minors, in some cases a parent, legally recognized guardian, or the State in its *parens patriae* role must act on behalf—and in the best inter-

* Defendant appears to contend that the Second Amendment requires that possession of a firearm for self-defense be treated as a mitigating circumstance for purposes of youthful offender adjudication. “[O]nce considered [by the sentencing court], a youthful offender adjudication is a matter left to the sound discretion of the sentencing court and therefore any review is limited” (*People v Pacherille*, 25 NY3d 1021, 1023 [2015]). This constraint only compounds the obstacles to reviewing defendant’s otherwise unpreserved Second Amendment argument regarding mitigating circumstances.

est—of the child (*Matter of Sayeh R.*, 91 NY2d 306, 313 [1997] [“In its role as *parens patriae*, New York is under a powerful duty to protect its domiciliaries from harm”], citing NY Const, art XVII, § 3; Family Ct Act § 1013 [establishing Family Court jurisdiction for the protection of minors]; *Thompson v Oklahoma*, 487 US 815, 825 n 23 [1988] [noting that children are not yet “fully rational, choosing agent(s)”]; *see also Parham v J.R.*, 442 US 584, 602 [1979] [“The law’s concept of the family rests on a presumption that parents possess what a child lacks in maturity, experience, and capacity for judgment required for making life’s difficult decisions”]; *Prince v Massachusetts*, 321 US 158, 166 [1944] [(i)t is cardinal with us that the custody, care and nurture of the child reside first in the parents”]; *Miller v Alabama*, 567 US 460, 471 [2012] [discussing and relying on research about brain development]). Indeed, minors generally require an adult’s consent or a judicial order to engage in certain adult conduct (*Bellotti*, 443 US at 634).*

Unsurprisingly, and quite rationally, federal and state law restrict gun possession by minors. These legislative restrictions do not run afoul of the Second Amendment. As Justice Alito approvingly noted in his *New York State Rifle & Pistol Assn., Inc. v Bruen* concurrence, “federal law generally forbids the possession of a handgun by a person who is under the age of 18” (597 US 1, 73 [2022], citing 18 USC § 922 [x] [2]-[5]). New York State similarly has historically barred nonmilitary personnel under 21 years old from obtaining a gun license (Penal Law § 400.00 [1]).

Therefore, because defendant at 17 years of age had no legal right to possess the unlicensed guns in his possession—a prohibition on minors recognized under laws that he does not challenge on this appeal—he has no standing to assert a Second Amendment violation.

* The *Bruen* majority’s public carry rights analogy to First Amendment rights does not assist defendant here (*New York State Rifle & Pistol Assn., Inc. v Bruen*, 597 US 1, 24-25 [2022]). As noted by Justice Stewart in *Ginsberg v New York* (390 US 629, 649-650 [1968]), which limited First Amendment rights in the case of minors:

“[A]t least in some precisely delineated areas, a child—like someone in a captive audience—is not possessed of that full capacity for individual choice which is the presupposition of First Amendment guarantees. It is only upon such a premise, I should suppose, that a State may deprive children of other rights—the right to marry, for example, or the right to vote—deprivations that would be constitutionally intolerable for adults.”

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur. Judge RIVERA concurs in result in an opinion.

Order affirmed, in a memorandum.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2024 through February 29, 2024)

People v Amatuccio	2d Dept: 221 AD3d 726 (Queens)	denied 2/29/24 (Singas, J.)
People v Augello	4th Dept: 222 AD3d 1398 (Erie)	denied 2/23/24 (Cannataro, J.)
People v Baker	4th Dept: 219 AD3d 1678 (Monroe)	denied 2/26/24 (Cannataro, J.)
People v Barry	App Term, 1st Dept: 81 Misc 3d 137(A) (Bronx)	denied 2/23/24 (Singas, J.)
People v Battles	App Term, 1st Dept: 81 Misc 3d 133(A) (NY)	denied 2/13/24 (Garcia, J.)
People v Bernardez	App Term, 1st Dept: 81 Misc 3d 126(A) (Bronx)	denied 2/29/24 (Singas, J.)
People v Bowman (Robert)	1st Dept: 221 AD3d 568 (NY)	denied 2/28/24 (Rivera, J.)
People v Bowman (Tyron)	1st Dept: 222 AD3d 538 (NY)	denied 2/13/24 (Garcia, J.)
People v Boyd	App Div, 4th Dept, 12/4/23 (Monroe)	dismissed 2/8/24 (Rivera, J.)
People v Brown	2d Dept: 220 AD3d 802 (Kings)	denied 2/23/24 (Cannataro, J.)
People v Bruce	2d Dept: 221 AD3d 908 (Westchester)	denied 2/22/24 (Halligan, J.)
People v Cameron	4th Dept: 222 AD3d 1409 (Onondaga)	denied 2/29/24 (Singas, J.)
People v Cleveland	4th Dept: 217 AD3d 1346 (Monroe)	denied 2/29/24 (Singas, J.)
People v Corona	1st Dept: 222 AD3d 601 (NY)	denied 2/23/24 (Cannataro, J.)
People v Davis (James)	1st Dept: 220 AD3d 625 (NY)	denied 2/29/24 (Singas, J.)
People v Davis (Kamel)	4th Dept: 220 AD3d 1197 (Wayne)	denied 2/26/24 (Cannataro, J.) (Appeal No. 1)
People v Dunbar	1st Dept: 222 AD3d 493 (NY)	denied 2/27/24 (Rivera, J.)
People v Escue	App Term, 1st Dept: 81 Misc 3d 132(A) (NY)	denied 2/9/24 (Rivera, J.)
People v Feliciano	1st Dept: 222 AD3d 496 (Bronx)	denied 2/23/24 (Singas, J.)
People v Figueroa	App Term, 1st Dept: 81 Misc 3d 9 (NY)	denied 2/9/24 (Rivera, J.)

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People v Francis	App Term, 1st Dept: 81 Misc 3d 131(A), 2023 NY Slip Op 51284(U) (NY)	denied 2/26/24 (Cannataro, J.)
People v Grovner	App Div, 4th Dept, 12/5/23 (Onondaga)	dismissed 2/22/24 (Halligan, J.)
People v Halsey	4th Dept: 222 AD3d 1409 (Wyoming)	denied 2/29/24 (Singas, J.)
People v Hernandez (Benjamin)	App Term, 1st Dept: 81 Misc 3d 138(A) (NY)	denied 2/29/24 (Singas, J.)
People v Hernandez (Lenin)	2d Dept: 222 AD3d 885 (Suffolk)	denied 2/26/24 (Halligan, J.)
People v Hibbert	1st Dept: 222 AD3d 492 (NY)	denied 2/27/24 (Rivera, J.)
People v Hickey	4th Dept: 222 AD3d 1429 (Livingston)	denied 2/23/24 (Singas, J.)
People v Hightower-Castro	2d Dept: 219 AD3d 504 (Nassau)	denied 2/23/24 (Halligan, J.)
People v Hopkins	4th Dept: 221 AD3d 1436 (Ontario)	denied 2/29/24 (Singas, J.)
People v Howard	2d Dept: 217 AD3d 966 (Kings)	granted 2/22/24 (Halligan, J.)
People v James	1st Dept: 222 AD3d 533 (Bronx)	denied 2/29/24 (Singas, J.)
People v Jeffriesel	2d Dept: 209 AD3d 1034 (Suffolk)	denied 2/29/24 (Singas, J.)
People v Jinyu Wang	App Term, 1st Dept: 81 Misc 3d 133(A) (NY)	denied 2/27/24 (Rivera, J.)
People v Jude	1st Dept: 221 AD3d 511 (NY)	denied 2/15/24 (Garcia, J.)
People v Key	1st Dept: 222 AD3d 536 (Bronx)	denied 2/27/24 (Rivera, J.)
People v Lancaster	App Div, 2d Dept: 2023 NY Slip Op 76255(U) (Kings)	dismissed 2/20/24 (Halligan, J.)
People v Lema-Naula	2d Dept: 222 AD3d 997 (Rockland)	denied 2/26/24 (Cannataro, J.)
People v Logan	1st Dept: 222 AD3d 494 (NY)	denied 2/22/24 (Garcia, J.)
People v Marcelle	2d Dept: 222 AD3d 883 (Queens)	denied 2/26/24 (Cannataro, J.)
People v Massey	App Div, 3d Dept: 2023 NY Slip Op 75490(U) (Albany)	dismissed 2/8/24 (Rivera, J.)
People v Morgan	County Court, 11/27/23 (Jefferson)	denied 2/26/24 (Singas, J.)
People v Murphy	1st Dept: 223 AD3d 500 (Bronx)	denied 2/29/24 (Singas, J.)
People v Negron	4th Dept: 221 AD3d 1538 (Monroe)	denied 2/26/24 (Singas, J.)
People v Nixon	4th Dept: 222 AD3d 1384 (Monroe)	denied 2/22/24 (Halligan, J.)
People v Pagan	1st Dept: 222 AD3d 440 (NY)	denied 2/29/24 (Singas, J.)

People v Ramirez (Eduardo)	1st Dept: 221 AD3d 490 (NY)	denied 2/26/24 (Cannataro, J.)
People v Ramirez (Ruben)	1st Dept: 222 AD3d 439 (Bronx)	denied 2/22/24 (Garcia, J.)
People v Reeder	4th Dept: 221 AD3d 1592 (Ontario)	denied 2/26/24 (Cannataro, J.)
People v Riddel	2d Dept: 222 AD3d 781 (Kings)	denied 2/29/24 (Garcia, J.)
People v Robbins	1st Dept: 223 AD3d 415 (Bronx)	denied 2/23/24 (Garcia, J.)
People v Rodriguez	App Term, 2d Dept, 9th & 10th Jud Dists: 81 Misc 3d 134(A) (Nassau)	denied 2/22/24 (Garcia, J.)
People v Rosas	1st Dept: 220 AD3d 519 (Bronx)	denied 2/9/24 (Rivera, J.)
People v Santos	1st Dept: 220 AD3d 547 (NY)	granted 2/21/24 (Wilson, Ch. J.)
People v Serraty	App Term, 1st Dept: 80 Misc 3d 132(A) (Bronx)	denied 2/9/24 (Rivera, J.)
People v Stewart (Hopeton)	2d Dept: 222 AD3d 781 (Kings)	denied 2/29/24 (Garcia, J.)
People v Stewart (Michael)	1st Dept: 216 AD3d 463 (Bronx)	denied 2/20/24 (Halligan, J.)
People v Sullivan	App Term, 2d Dept, 9th & 10th Jud Dists: 79 Misc 3d 130(A) (Nassau)	denied 2/1/24 (Halligan, J.)
People v Swinton	1st Dept: 223 AD3d 481 (NY)	denied 2/29/24 (Garcia, J.)
People v Tang	2d Dept: 222 AD3d 889 (Queens)	denied 2/23/24 (Singas, J.)
People v Thomas	1st Dept: 220 AD3d 582 (NY)	denied 2/5/24 (Rivera, J.)
People v Thompson	4th Dept: 219 AD3d 1666 (Onondaga)	denied 2/28/24 (Halligan, J.)
People v Tyme	2d Dept: 222 AD3d 783 (Suffolk)	denied 2/29/24 (Garcia, J.)
People v Valdez	App Term, 1st Dept: 81 Misc 3d 130(A) (NY)	denied 2/23/24 (Singas, J.)
People v Vazquez	3d Dept: 222 AD3d 1104 (Saratoga)	denied 2/13/24 (Garcia, J.)
People v Wallace	4th Dept: 222 AD3d 1421 (Monroe)	denied 2/29/24 (Garcia, J.)
People v Warren	App Term, 1st Dept: 81 Misc 3d 138(A) (Bronx)	denied 2/27/24 (Rivera, J.)
People v Weeks	4th Dept: 221 AD3d 1469 (Ontario)	denied 2/29/24 (Singas, J.)
People v Williams (Michael)	1st Dept: 223 AD3d 481 (Bronx)	denied 2/23/24 (Singas, J.)
People v Williams (Tyreik)	2d Dept: 222 AD3d 787 (Richmond)	denied 2/27/24 (Rivera, J.)
People v Wilson	2d Dept: 222 AD3d 1006 (Queens)	denied 2/27/24 (Rivera, J.)

People v Wint

3d Dept: 222 AD3d 1050 (Broome)

denied 2/22/24
(Garcia, J.)

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL
ADVISORS, LLC, et al., Respondents.

Submitted March 11, 2024; decided March 14, 2024

Reported below, 209 AD3d 486.

Motion by Securities Industry and Financial Markets Association for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judges GARCIA and HALLIGAN took no part.

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL
ADVISORS, LLC, et al., Respondents.

Submitted March 11, 2024; decided March 14, 2024

Reported below, 209 AD3d 486.

Motion by Patrick M. Connors for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judges GARCIA and HALLIGAN took no part.

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL
ADVISORS, LLC, et al., Respondents.

Submitted March 11, 2024; decided March 14, 2024

Reported below, 209 AD3d 486.

Motion by New York State Trial Lawyers Association to join the amicus curiae brief by Patrick M. Connors on the appeal herein granted.

Judges GARCIA and HALLIGAN took no part.

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL ADVISORS, LLC, et al., Respondents.

Submitted March 11, 2024; decided March 14, 2024

Reported below, 209 AD3d 486.

Motion by Dominican Bar Association to join the amicus curiae brief of Business Council of New York State, Inc. on the appeal herein granted.

Judges GARCIA and HALLIGAN took no part.

NIGEL JOHN ECCLES et al., Appellants, v SHAMROCK CAPITAL ADVISORS, LLC, et al., Respondents.

Submitted March 11, 2024; decided March 14, 2024

Reported below, 209 AD3d 486.

Motion by Charles K. Whitehead et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judges GARCIA and HALLIGAN took no part.

In the Matter of NEW YORK CIVIL LIBERTIES UNION, Respondent, v CITY OF ROCHESTER et al., Appellants.

Submitted March 4, 2024; decided March 14, 2024

Reported below, 210 AD3d 1400.

Motion by Association of the Bar of the City of New York for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWANE ESTWICK, Appellant.

Submitted March 4, 2024; decided March 14, 2024

Reported below, 208 AD3d 799.

Motion by Center on Race, Inequality, and the Law et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CID C. FRANKLIN, Respondent.

Submitted March 11, 2024; decided March 14, 2024

Reported below, 207 AD3d 476.

Motion by University at Buffalo School of Law Amicus Brief Practicum for leave to file a brief amicus curiae on the appeal herein granted and proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judges RIVERA and TROUTMAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MITCHELL HERNANDEZ, Appellant.

Submitted March 11, 2024; decided March 14, 2024

Reported below, 213 AD3d 425.

Motion by Ethan J. Leib for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MITCHELL HERNANDEZ, Appellant.

Submitted March 11, 2024; decided March 14, 2024

Reported below, 213 AD3d 425.

Motion by The Bronx Defenders et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAM-
UAL NEKTALOV, Appellant.

Submitted March 11, 2024; decided March 14, 2024

Reported below, 78 Misc 3d 1.

Motion by Center for Appellate Litigation for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRED-
DIE T. WRIGHT, Appellant.

Submitted March 4, 2024; decided March 14, 2024

Reported below, 203 AD3d 965.

Motion by Center on Race, Inequality, and the Law et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge HALLIGAN took no part.

ROMAN CATHOLIC DIOCESE OF ALBANY et al., Appellants, v MARIA
T. VULLO, as Acting Superintendent of Financial Services,
et al., Respondents, et al., Defendants. (And Another Re-
lated Action.)

Submitted March 4, 2024; decided March 14, 2024

Reported below, 206 AD3d 1074.

Motion by Notre Dame Law School Religious Liberty Clinic for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judge HALLIGAN took no part.

ROMAN CATHOLIC DIOCESE OF ALBANY, et al., Appellants, v
MARIA T. VULLO, as Acting Superintendent of Financial
Services, et al., Respondents, et al., Defendants. (And An-
other Related Action.)

Submitted March 11, 2024; decided March 14, 2024

Reported below, 206 AD3d 1074.

Motion by New York Civil Liberties Union et al. for leave to
appear amici curiae on the appeal herein granted to the extent
that the proposed brief is accepted as filed. The brief must be
submitted in digital format within seven days.

Judge HALLIGAN took no part.

[230 NE3d 1101, 207 NYS3d 37]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KWA-
BENA APPIAH, Appellant.

Decided January 16, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division
of the Supreme Court in the Third Judicial Department, from
an order of that Court, entered July 27, 2023. The Appellate
Division affirmed a judgment of the Schenectady County Court
(Mark J. Caruso, J.), which had convicted defendant, upon a
plea of guilty, of assault in the second degree.

People v Appiah, 218 AD3d 1060, reversed.

HEADNOTE

Crimes — Appeal — Validity of Appeal Waiver

Defendant's waiver of the right to appeal was invalid and unenforceable
pursuant to the analysis in *People v Thomas* (34 NY3d 545 [2019]) and *People*
v Bisoño (36 NY3d 1013 [2020]).

APPEARANCES OF COUNSEL

Steven M. Sharp, Albany, for appellant.

Robert M. Carney, District Attorney, Schenectady (*Peter H.*
Willis of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed and the case remitted to that Court for further proceedings in accordance with this memorandum.

Defendant's waiver of the right to appeal was invalid and unenforceable pursuant to our analysis in *People v Thomas* (34 NY3d 545 [2019]) and *People v Bisoño* (36 NY3d 1013 [2020]). In voting to affirm the judgment, one Justice of the three-Justice Appellate Division majority panel did not reach the merits of defendant's interest-of-justice challenge to the excessiveness of his sentence based on that Justice's conclusion that the appeal waiver was valid (*see generally People v Callahan*, 80 NY2d 273, 284-285 [1992]). We therefore reverse and remit to the Appellate Division for consideration of the merits of defendant's excessive sentence challenge (*see People v Billingslea*, 6 NY3d 248, 257 [2006]).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Third Department, for further proceedings in accordance with the memorandum herein.

[231 NE3d 413, 207 NYS3d 467]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FABIAN GREENE, Appellant.

Decided January 11, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 2, 2023. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Mark Dwyer, J., at omnibus motion; Robert M. Stolz, J., at jury trial and sentencing), which had convicted defendant of grand larceny in the fourth degree and two counts of perjury in the first degree.

People v Green, 213 AD3d 418, affirmed.

HEADNOTE

Crimes — Indictment — Remedy for Conviction of Multiplicitous Counts

In a criminal prosecution in which there was no dispute regarding the Appellate Division's conclusion that the two counts of perjury of which defendant was ultimately convicted were multiplicitous, the Court of Appeals vacated the conviction for one count of perjury and dismissed that count of the indictment. A multiplicitous indictment creates the risk that a defendant will be punished for, or stigmatized with a conviction of, more crimes than they actually committed. Thus, when a defendant is convicted of multiplicitous charges, the proper remedy is vacatur of all but one of the multiplicitous convictions and dismissal of those counts of the indictment, regardless of whether that corrective action has any effect on the defendant's sentence.

APPEARANCES OF COUNSEL

Caprice R. Jenerson, Office of the Appellate Defender, New York City (Margaret E. Knight of counsel), for appellant.

Alvin L. Bragg, Jr., District Attorney, New York City (Philip V. Tisne of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified by vacating the conviction for count 3 and dismissing that count of the indictment and, as so modified, affirmed.

A multiplicitous indictment “creates the risk that a defendant will be punished for, or stigmatized with a conviction of, more crimes than [they] actually committed” (*People v Alonzo*, 16 NY3d 267, 269 [2011]). Even when the multiplicitous convictions do not increase the defendant's sentence, the stigma of impermissible convictions endures and must be remedied. Thus, when a defendant is convicted of multiplicitous charges, the proper remedy is vacatur of all but one of the multiplicitous convictions and dismissal of those counts of the indictment, regardless of whether that corrective action has any effect on the defendant's sentence. Here, there is no dispute regarding the Appellate Division's conclusion that the two counts of perjury of which defendant was ultimately convicted were multiplicitous. As the People concede, the proper remedy is therefore dismissal of one of the convictions.

Defendant's argument that the trial court permitted a witness to impermissibly instruct the jury on the law concerning materiality does not warrant reversal of his other convictions.

Defendant's remaining contentions are unpreserved for appellate review.

Chief Judge WILSON (concurring). I concur but write separately because Mr. Greene's case illustrates a fundamental problem with the way in which minor antisocial behavior results in a wholly disproportionate result.

I.

Mr. Greene appeared pro se below. Although his grand jury testimony is inconsistent with the facts adduced at trial, by the time of trial both he and the People agreed to the same set of facts: Mr. Greene, in his opening, asked the jury to acquit him if the People failed to prove beyond a reasonable doubt that he had the requisite criminal intent to commit grand larceny and perjury.

According to the complainant, Jayne Chu, at approximately 10:10 p.m. on April 26, 2017, she and her boyfriend Benjamin Olschner were returning home from a date followed by a drink with a friend at a bar. To avoid walking on the sidewalk in front of a funeral home, which Ms. Chu considered bad luck, she and Mr. Olschner left the sidewalk and entered the street. Mr. Greene, who was riding his bicycle the wrong way, swerved to avoid them and yelled at them that they were "in the fucking way." Both Ms. Chu and Mr. Greene had something to drink shortly before their encounter. According to Ms. Chu, Mr. Greene was wearing "a really nice outfit" and a "distinctive straw cowboy hat." Ms. Chu yelled "something not very nice back" to the effect that Mr. Greene was in the way. Mr. Greene stopped and rode back to where Ms. Chu and Mr. Olschner were, and Ms. Chu and Mr. Greene (but not Mr. Olschner) got into what Ms. Chu described as a "dumb argument" about who was in the wrong for the near collision, during which "we both got more and more excited as we were arguing with each other."

Ms. Chu, who describes herself as "not the kind of person . . . to step away that easily," walked with Mr. Greene from the street to the sidewalk corner to continue their argument and were standing about a yard apart and "yelling at each other" for about five minutes. Mr. Greene identified himself to the couple several times as Fabian Greene, and called himself "the King of Chinatown," whom everyone knows. At points, Ms. Chu said they "were talking and we were not yelling at each other" and both had said "let's just agree to disagree" about who was in the wrong for the near collision. At the point where

the verbal altercation really “escalated,” Ms. Chu said she would call the police, and when she took out her phone and attempted to take a photo of Mr. Greene, he grabbed her phone, hopped on his bike and rode off, leaving his bag behind. Ms. Chu yelled at him, “you left your bag, you moron,” but Mr. Greene continued riding away, and Ms. Chu took his bag while Mr. Olschner used his phone to call the police.

Because Mr. Greene had repeatedly announced his real name to Ms. Chu, she and Mr. Olschner were immediately able to find his public profile on Facebook, provide that to the police, and track her phone using Mr. Olschner’s phone.

The police located Mr. Greene with Ms. Chu’s phone less than 30 minutes after Mr. Greene rode off with it. He was seated at a nearby Internet café. Mr. Greene was arrested and held in pretrial detention for 13 months. At trial the jury convicted him of one count of fourth-degree larceny for taking Ms. Chu’s phone and two counts of first-degree perjury in connection with his grand jury testimony; the court sentenced Mr. Greene to 4 to 8 years in prison.

II.

In short, two New Yorkers got into a protracted argument about whether a jaywalker or a wrong-way cyclist was in the wrong. Ms. Chu was uninjured and received her phone shortly after Mr. Greene took it. Mr. Greene did not seek out a victim to attack or an object to steal, but spontaneously reacted in the midst of a heated argument by taking Ms. Chu’s phone when she attempted to take his picture. As Ratso Rizzo might attest, this case arose from a quotidian dispute of the kind familiar to most New Yorkers: two people in a shouting match after nearly bumping into each other in the street.

Mr. Greene had previously been convicted of several offenses, consisting of misdemeanors (including trademark counterfeiting and turnstile jumping) and nonviolent felonies. Mr. Greene was represented by a defense attorney at sentencing; his lawyer explained that he needed mental health services, not a lengthy incarceration. The People asked that all of Mr. Greene’s convictions—for grand larceny and for perjury—run concurrently, for a sentence of 3½ to 7 years. Instead, the court ran the sentences for larceny and perjury consecutively, for a total of 4 to 8 years.

Doubtless, property theft is not an acceptable escalation of a verbal conflict. But Mr. Greene, by his counsel’s representation

at sentencing, by his own statements at that time, and by reference to the events leading up to this conviction, is in need of mental health services. Persons intent on robbery do not typically announce their real names to their victims or get into long public arguments ranging from conciliatory to threatening before absconding with property. Instead of providing a path to those services, the criminal justice system ordered Mr. Greene incarcerated for at least four years, at an approximate cost to taxpayers of nearly a half a million dollars—closer to a million should he serve the full eight-year term.¹

At trial, Ms. Chu offered that she should have walked away, and in retrospect wished she had done so. Mr. Greene, too, retrospectively wished he had not persisted in the argument. Our justice system should not be incapable of asking Ms. Chu whether she would prefer directing Mr. Greene to mental health resources instead of a lengthy prison stay, or incapable of making the decision that regardless of what the law allows by way of incarceration, Mr. Greene and the broader community would be better served by treatment rather than incarceration. The Unified Court System has taken baby steps in that direction, but Mr. Greene's case powerfully illustrates how much more could be done.

Treating incarceration as the default response to individuals convicted of low-level offenses has outsized deleterious consequences that, ultimately, make our communities less safe: the cycle of incarceration further destabilizes these individuals; mental health treatment in prison is costlier than community-based treatment; individuals with mental illness are at greater risk of detention in prison and extended incarceration; prison mental health resources are often inadequate; and individuals living with mental illness face greater risk of harm and abuse while behind bars.²

1. See Jullian Harris-Calvin et al., *The Cost of Incarceration in New York State*, Vera Institute of Justice (Oct. 31, 2022), available at <https://www.vera.org/the-cost-of-incarceration-in-new-york-state#:~:text=New%20York%20invests%20tens%20of,more%20than%20%2482%2C000%20per%20year> (last accessed Dec. 28, 2023) (“In state prisons, New York spends an average of . . . nearly \$115,000 . . . to incarcerate one person”).

2. See State Justice Institute, *Improving the Justice System Response to Mental Illness: A Fact Sheet* (Apr. 20, 2020); Joseph Venable, National Alliance on Mental Illness, *The Cost of Criminalizing Serious Mental Illness*, <https://www.nami.org/Blogs/NAMI-Blog/March-2021/The-Cost-of-Criminalizing-Serious-Mental-Illness#:~:text=The%20average%20cost%20for%20psychiatric%20treatment%20in%20a,have%20a%20better%20chance%20of%20bringing%20about%20recovery> (Mar. 24, 2021) (based on the

(n. cont'd)

Another approach worth pursuing is sometimes referred to as “restorative justice”—a nonpunitive approach designed to facilitate reconciliation between an offender and a victim through dialogue and interpersonal restitution. The practice “is based on the values of shared power, voluntary participation, and equal voice” (Shailly Agnihotri & Cassie Veach, *Reclaiming Restorative Justice: An Alternate Paradigm for Justice*, 20 CUNY L Rev 323, 326-327 [2017]). Restorative justice models in the criminal justice system attempt to “shift the focus from the relationship between the State and the accused to the human relationships impacted by the crime” (*id.* at 336).³

Here, Ms. Chu explicitly stated that she wished the criminal justice system had not become involved in the dispute. When asked why she did not walk away from the argument she testified that she “felt like [they] were actually engaging with each other . . . connecting with each other,” and that she wished they had walked away because then each of the parties could be elsewhere instead of having to endure a criminal process. She went on to testify, however, that she “didn’t want to walk away because [she] felt like [Mr. Greene] wasn’t giving [her] the validation to hear what [she] wanted to say . . . [a]nd [that she] was being stubborn and . . . dumb.”

A restorative justice approach would have not only prevented the protracted prosecution—which burdened both parties, taxpayers and the courts—but it might have given Ms. Chu an opportunity to express her frustration with Mr. Greene in a direct and productive dialogue, and an opportunity to feel

average cost of psychiatric treatment in a community-based hospital “for an adult, the cost of 35 to 83 days in prison would provide the financing of a hospitalization that would have a better chance of bringing about recovery”); Megan J. Wolff, Weill Cornell Medicine Psychiatry, *Fact Sheet: Incarceration and Mental Health*, https://psychiatry.weill.cornell.edu/research-institutes/dewitt-wallace-institute-psychiatry/issues-mental-health-policy/fact-sheet-0#footnoteref48_2jzqryh (last updated May 30, 2017) (“[p]rison conditions . . . are strongly correlated with emerging and worsening psychiatric symptoms. . . . [P]sychiatric symptoms may be difficult to distinguish from aggressive or deviant behavior, resulting in further punishment”).

3. A reputable meta-analysis of emerging scholarship on restorative justice found that “restorative justice programs are a more effective method of improving victim and/or offender satisfaction, increasing offender compliance with restitution, and decreasing the recidivism of offenders when compared to more traditional criminal justice responses (i.e., incarceration, probation, court-ordered restitution, etc.)” (Jeff Latimer, Craig Dowden & Danielle Muise, *The Effectiveness of Restorative Justice Practices: A Meta-Analysis*, 85 Prison J 127, 138 [June 2005]).

validated in that completely reasonable frustration. Furthermore, it might have given the parties the opportunity to reach conciliation instead of continuing to confront each other in an adversarial posture, and it could have given the system a chance to offer Mr. Greene mental health support in a community, non-carceral setting.

The reflexive incarceration of people like Mr. Greene is not uncommon. We need to build a system that better protects our society from antisocial behaviors by offering options superior to incarceration, both in effect and cost.

On review of submissions pursuant to Rules of the Court of Appeals (22 NYCRR) § 500.11, order modified by vacating the conviction for count 3 and dismissing that count of the indictment and, as so modified, affirmed, in a memorandum.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur, Chief Judge WILSON in a concurring opinion.

[231 NE3d 417, 207 NYS3d 471]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANNY NOVAS, Appellant.

Argued January 9, 2024; decided February 15, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 28, 2022. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Abraham L. Clott, J.), which had (a) granted defendant's CPL 330.30 (1) motion to set aside a jury verdict convicting defendant of leaving the scene of an incident without reporting, and (b) dismissed the indictment; (2) reinstated the indictment and verdict; and (3) remanded the matter for sentencing.

People v Novas, 204 AD3d 613, affirmed.

HEADNOTE

Motor Vehicles — Leaving Scene of Incident — Sufficiency of Evidence

Viewing the evidence in the light most favorable to the People, there was a valid line of reasoning and permissible inferences from which a rational jury

could have found that defendant violated Vehicle and Traffic Law § 600 (2) (a).

APPEARANCES OF COUNSEL

Debevoise & Plimpton LLP, New York City (*Andrew Stamboulidis* and *Chana Zuckier* of counsel), and *Caprice R. Jenereson*, Office of the Appellate Defender, New York City (*Rosemary Herbert* of counsel), for appellant.

Alvin L. Bragg, Jr., District Attorney, New York City (*Rachel Bond*, *Steven C. Wu* and *Beth Fisch Cohen* of counsel), for respondent.

OPINION OF THE COURT

Order affirmed. Viewing the evidence in the light most favorable to the People, “there is a valid line of reasoning and permissible inferences from which a rational jury could have found” that defendant violated Vehicle and Traffic Law § 600 (2) (a) (*People v Rouse*, 34 NY3d 269, 274 [2019]).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

[231 NE3d 416, 207 NYS3d 470]

ALISON REGAN, Appellant, v W ASSOCIATES, LLC, et al., Respondents.

Decided February 15, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 22, 2022. The Appellate Division affirmed an order of the Supreme Court, New York County (Paul A. Goetz, J.), which had (1) granted defendants’ motion for summary judgment dismissing the complaint; (2) dismissed the complaint as against all defendants; and (3) denied plaintiff’s cross-motion to amend the bill of particulars.

Regan v W. Assoc., LLC, 211 AD3d 621, appeal dismissed in part, affirmed in part.

HEADNOTE

Negligence — Proximate Cause

The Appellate Division order affirming the Supreme Court order dismissing the complaint was affirmed. On this record, plaintiff’s own conduct was the sole proximate cause of the accident.

APPEARANCES OF COUNSEL

Law Office of Ephrem J. Wertenteil, New York City (*Ephrem J. Wertenteil* of counsel), for appellant.

Vouté Lohrfink McAndrew Meisner & Roberts LLP, White Plains (*Heidi J. Lewis* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal from that portion of the Appellate Division order that denied plaintiff's cross-motion to amend the bill of particulars dismissed, without costs, upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; order otherwise affirmed, without costs. On this record, plaintiff's own conduct was the sole proximate cause of the accident. Plaintiff's remaining arguments are academic.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

LORENA ALESSINA et al., Respondents, v EL GAUCHITO II CORP.
et al., Appellants.

Submitted December 4, 2023; decided March 19, 2024

Reported below, 220 AD3d 645.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of ATLANTIC MUTUAL INSURANCE COMPANY,
Petitioner.

UNITED SYNAGOGUE OF CONSERVATIVE JUDAISM, Appellant, v SUPERINTENDENT OF FINANCIAL SERVICES OF THE STATE OF NEW YORK, etc., Respondent.

Submitted July 10, 2023; decided March 19, 2024

Reported below, 208 AD3d 1121.

Motion for reargument of motion for leave to appeal granted [see 39 NY3d 1149 (2023)] and, upon reargument, motion for leave to appeal denied.

BOVIS LEND LEASE (LMB) INC., Plaintiff/Third-Party Plaintiff-Appellant, v LOWER MANHATTAN DEVELOPMENT CORPORATION, Defendant. ARCH INSURANCE CO., Third-Party Defendant-Respondent.

Submitted December 4, 2023; decided March 19, 2024

Reported below, 216 AD3d 543.

Motion by Associated General Contractors of New York State, LLC for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

YUVAL GOLAN, Appellant, v DAILY NEWS, L.P., et al., Respondents.

Submitted October 30, 2023; decided March 19, 2024

Reported below, 214 AD3d 558; 2023 NY Slip Op 33135(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order, dismissed as untimely (*see* CPLR 5513 [b]); motion for leave to appeal from the 2023 Supreme Court judgment denied.

SUSAN KREMBS, Appellant, v NYU LANGONE HOSPITALS et al., Respondents, et al., Defendants.

SUSAN KREMBS, Appellant, v EMILE HIESIGER, M.D., et al., Respondents.

Submitted August 28, 2023; decided March 19, 2024

Reported below, 214 AD3d 453.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution.

In the Matter of the Intermediate Accounting of MANUFACTURERS AND TRADERS TRUST COMPANY, as Trustee of the ROBERT S. BASSETT TRUST NUMBER 7 OF 1974, for the Period Covering September 7, 1983, to October 18, 2013, Respondent.

In the Matter of the Intermediate Accounting of MANUFACTURERS AND TRADERS TRUST COMPANY, as Trustee of the ROBERT S. BASSETT TRUST NUMBER 7 OF 1974, for the Period Covering October 19, 2013, to May 15, 2017, Respondent. SUE M. WILLIAMS et al., Objectants-Appellants.

Submitted August 14, 2023; decided March 19, 2024

Reported below, 215 AD3d 1285.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

Judge RIVERA took no part.

DMITRY MARKOV et al., Appellants, v GRECIAN GARDENS Co. et al., Respondents.

Submitted January 8, 2024; decided March 19, 2024

Reported below, 188 AD3d 1032.

Motion for reargument of motion for leave to appeal denied [see 40 NY3d 1025 (2023)].

In the Matter of PATRICK MARSTELLER, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted October 16, 2023; decided March 19, 2024

Reported below, 217 AD3d 543.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

VIGILANT INSURANCE COMPANY et al., Plaintiffs, and AXIS REINSURANCE COMPANY et al., Respondents-Appellants, v MF GLOBAL FINANCE USA INC., Appellant-Respondent.

Submitted September 25, 2023; decided March 19, 2024

Reported below, 215 AD3d 578.

Motion for leave to appeal denied. Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

Judge HALLIGAN took no part.

In the Matter of PATRICIA WEISS, Appellant, v STEVEN A. PILEWSKI, an Acting Justice of the Supreme Court, Suffolk County, et al., Respondents.

Submitted November 13, 2023; decided March 19, 2024

Reported below, 219 AD3d 1341.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

LISA WHITNUM, Appellant, v PLASTIC & RECONSTRUCTIVE SURGERY, P.C., et al., Respondents.

Submitted December 4, 2023; decided March 19, 2024

Reported below, 2022 NY Slip Op 73959(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

1995 CAM LLC, Respondent, v WEST SIDE ADVISORS, LLC, et al., Appellants.

Submitted December 18, 2023; decided March 21, 2024

Reported below, 221 AD3d 420.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted February 13, 2024; decided March 21, 2024

Reported below, 2023 NY Slip Op 66800(U).

Motion for reargument of motion for leave to appeal dismissed as untimely [*see* 40 NY3d 972 (2023)] (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]).

AMIN BOOKER, Appellant, v SCOTT McMINDES, Correction Officer, Elmira Correctional Facility, et al., Respondents.

Submitted January 16, 2024; decided March 21, 2024

Reported below, 2023 NY Slip Op 63210(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ROBERT BRUCE CARROLL, Appellant, v RONDOUT YACHT BASIN, INC., Respondent.

Submitted December 18, 2023; decided March 21, 2024

Reported below, 215 AD3d 1190.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

SALVATORE MANFREDONIA, Respondent, v 750 ASTOR, LLC, Respondent, et al., Defendant. 750 ASTOR, LLC, Third-Party Plaintiff-Respondent, v JEWISH BOARD OF FAMILY AND CHILDREN'S SERVICES, INC., Third-Party Defendant-Appellant.

Submitted December 18, 2023; decided March 21, 2024

Reported below, 217 AD3d 573.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of LIDIA M. ORREGO, Appellant, v KEVIN KNIPFING et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 16, 2024; decided March 21, 2024

Reported below, 221 AD3d 1112.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

JUAN PONCE et al., Respondents, v CITY OF NEW YORK et al., Defendants, and DORMITORY AUTHORITY OF THE STATE OF NEW YORK, Appellant. DORMITORY AUTHORITY OF THE STATE OF NEW YORK, Third-Party Plaintiff-Appellant, v JACOBS PROJECT MANAGEMENT Co. et al., Third-Party Defendants-Respondents.

Submitted January 16, 2024; decided March 21, 2024

Reported below, 217 AD3d 464.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MICHAEL J. WANG, Appellant, v STATE OF NEW YORK, Respondent. (Claim Nos. 130737, 130813.)

Submitted January 2, 2024; decided March 21, 2024

Reported below, 2023 NY Slip Op 66459(U).

Motion for reargument of motion for leave to appeal denied [*see* 40 NY3d 1008 (2023)]. Motion for poor person relief dismissed as academic.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2024 through March 31, 2024)

People v Abreu

1st Dept: 223 AD3d 628 (Bronx)

denied 3/14/24
(Garcia, J.)

People v Anonymous	App Div, 1st Dept: 2023 NY Slip Op 75254(U) (Bronx)	dismissed 3/26/24 (Wilson, Ch. J.)
People v Aracena	1st Dept: 222 AD3d 534 (NY)	denied 3/28/24 (Rivera, J.)
People v Barnett	4th Dept: 221 AD3d 1421 (Erie)	denied 3/18/24 (Wilson, Ch. J.)
People v Benny	4th Dept: 222 AD3d 1425 (Erie)	denied 3/28/24 (Rivera, J.)
People v Benz	4th Dept: 222 AD3d 1400 (Erie)	denied 3/1/24 (Garcia, J.)
People v Bostic	2d Dept: 217 AD3d 678 (Kings)	denied 3/18/24 (Wilson, Ch. J.)
People v Boyd	App Div, 4th Dept, 12/4/23 (Monroe)	denied reconsideration 3/28/24 (Rivera, J.)
People v Breedlove	3d Dept: 223 AD3d 939 (Chemung)	denied 3/28/24 (Rivera, J.)
People v Brennan	4th Dept: 220 AD3d 1173 (Onondaga)	denied 3/19/24 (Halligan, J.)
People v Brown (Leon)	County Ct, 9/11/23 (Fulton)	denied 3/18/24 (Wilson, Ch. J.)
People v Brown (Noel)	1st Dept: 204 AD3d 418 (NY)	denied reconsideration 3/28/24 (Rivera, J.)
People v Bryant	1st Dept: 223 AD3d 500 (Bronx)	denied 3/18/24 (Wilson, Ch. J.)
People v Buckley	2d Dept: 222 AD3d 877 (Kings)	denied 3/21/24 (Singas, J.)
People v Cabral	2d Dept: 223 AD3d 839 (Kings)	denied 3/28/24 (Rivera, J.)
People v Cantos	App Term, 1st Dept: 81 Misc 3d 132(A) (NY)	denied 3/18/24 (Wilson, Ch. J.)
People v Case	2d Dept: 221 AD3d 728 (Kings)	denied 3/20/24 (Troutman, J.)
People v Castro	1st Dept: 223 AD3d 20 (Bronx)	denied 3/18/24 (Wilson, Ch. J.)
People v Chatwin	1st Dept: 222 AD3d 463 (NY)	denied 3/28/24 (Rivera, J.)
People v Cooley	4th Dept: 220 AD3d 1189 (Onondaga)	denied 3/25/24 (Halligan, J.)
People v Cooper	2d Dept: 220 AD3d 714 (Kings)	denied 3/18/24 (Wilson, Ch. J.)
People v Covington	3d Dept: 222 AD3d 1166 (Broome)	denied 3/21/24 (Singas, J.)
People v Crispell	3d Dept: 223 AD3d 941 (Tompkins)	denied 3/26/24 (Singas, J.)
People v Cummings	4th Dept: 224 AD3d 1222 (Jefferson)	denied 3/28/24 (Rivera, J.)
People v Desmond	4th Dept: 224 AD3d 1303 (Monroe)	denied 3/27/24 (Singas, J.)

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People v Esquilin	1st Dept: 223 AD3d 416 (NY)	denied 3/28/24 (Rivera, J.)
People v Everett	4th Dept: 222 AD3d 1400 (Erie)	denied 3/1/24 (Garcia, J.)
People v Feltz	2d Dept: 223 AD3d 683 (Dutchess)	denied 3/27/24 (Garcia, J.)
People v Foreman	1st Dept: 223 AD3d 418 (NY)	denied 3/29/24 (Singas, J.)
People v Franklin	4th Dept: 219 AD3d 1717 (Oneida)	denied 3/25/24 (Halligan, J.) (Appeal No. 1)
People v Gamlen	4th Dept: 222 AD3d 1440 (Cayuga)	denied 3/27/24 (Garcia, J.)
People v Garcia	App Div, 3d Dept: 2024 NY Slip Op 60578(U) (Broome)	dismissed 3/25/24 (Halligan, J.)
People v Garcia-Reinaldo	3d Dept: 223 AD3d 971 (Broome)	denied 3/25/24 (Halligan, J.)
People v Gaston	2d Dept: 219 AD3d 626 (Kings)	denied 3/25/24 (Halligan, J.)
People v Gray	1st Dept: 223 AD3d 441 (NY)	denied 3/26/24 (Singas, J.)
People v Haywood	2d Dept: 223 AD3d 915 (Kings)	denied 3/28/24 (Rivera, J.)
People v Hernandez	1st Dept: 217 AD3d 460 (Bronx)	denied 3/27/24 (Halligan, J.)
People v Hoffman	3d Dept: 221 AD3d 1269 (Rensselaer)	denied 3/21/24 (Garcia, J.)
People v Hollweg	2d Dept: 223 AD3d 684 (Suffolk)	denied 3/20/24 (Garcia, J.)
People v Johnson (Antawon)	2d Dept: 223 AD3d 685 (Dutchess)	denied 3/25/24 (Halligan, J.)
People v Johnson (Taylor)	3d Dept: 221 AD3d 1172 (Albany)	denied 3/20/24 (Troutman, J.)
People v Kakesa (Fimbo)	4th Dept: 222 AD3d 1423 (Onondaga)	denied 3/25/24 (Halligan, J.) (Appeal No. 1)
People v Kakesa (Fimbo)	4th Dept: 222 AD3d 1424 (Onondaga)	denied 3/25/24 (Halligan, J.) (Appeal No. 2)
People v Kilgore	3d Dept: 218 AD3d 1054 (Broome)	denied reconsideration 3/28/24 (Rivera, J.)
People v Kirkland (Tarence)	App Div, 2d Dept: 2024 NY Slip Op 60145(U) (Westchester)	dismissed 3/18/24 (Wilson, Ch. J.)
People v Kirkland (Tarence)	App Div, 2d Dept: 2024 NY Slip Op 60756(U) (Westchester)	dismissed 3/18/24 (Wilson, Ch. J.)
People v Knight	1st Dept: 222 AD3d 598 (NY)	denied 3/14/24 (Garcia, J.)
People v Leasure	App Div, 2d Dept: 2023 NY Slip Op 75405(U) (Queens)	dismissed 3/20/24 (Troutman, J.)

People v Malave	1st Dept: 216 AD3d 600 (NY)	denied 3/7/24 (Halligan, J.)
People v Mannix	App Term, 1st Dept: 81 Misc 3d 133(A) (NY)	denied 3/18/24 (Wilson, Ch. J.)
People v Martin	4th Dept: 222 AD3d 1414 (Monroe)	denied 3/29/24 (Singas, J.)
People v McKinney	1st Dept: 222 AD3d 602 (NY)	denied 3/18/24 (Wilson, Ch. J.)
People v Meredith	4th Dept: 220 AD3d 1201 (Erie)	denied 3/27/24 (Halligan, J.)
People v Montgomery	3d Dept: 221 AD3d 1347 (Schenectady)	denied 3/26/24 (Troutman, J.)
People v Mosby (Marcus)	4th Dept: 222 AD3d 1453, 2023 NY Slip Op 06710 (Monroe)	denied 3/20/24 (Garcia, J.)
People v Mosby (Marcus)	4th Dept: 222 AD3d 1453, 2023 NY Slip Op 06709 (Monroe)	dismissed 3/20/24 (Garcia, J.)
People v Narine	App Div, 2d Dept: 2023 NY Slip Op 77543(U) (Queens)	dismissed 3/29/24 (Singas, J.)
People v Nathan	2d Dept: 221 AD3d 617 (Nassau)	denied 3/20/24 (Troutman, J.)
People v Pena	2d Dept: 223 AD3d 848 (Queens)	denied 3/28/24 (Rivera, J.)
People v Petion	2d Dept: 220 AD3d 952 (Nassau)	denied reconsideration 3/27/24 (Garcia, J.)
People v Phillips	4th Dept: 221 AD3d 1501 (Monroe)	denied 3/25/24 (Halligan, J.)
People v Randolph	1st Dept: 220 AD3d 624 (NY)	denied 3/25/24 (Wilson, Ch. J.)
People v Randolph	1st Dept: 220 AD3d 624 (NY)	denied 3/25/24 (Wilson, Ch. J.)
People v Resto	4th Dept: 222 AD3d 1425 (Erie)	denied 3/28/24 (Rivera, J.)
People v Reyes-Guzman	2d Dept: 222 AD3d 887 (Queens)	denied 3/18/24 (Wilson, Ch. J.)
People v Robinson	2d Dept: 223 AD3d 917 (Queens)	denied 3/27/24 (Singas, J.)
People v Rochard	2d Dept: 219 AD3d 639 (Kings)	denied 3/27/24 (Singas, J.)
People v Rockim	1st Dept: 224 AD3d 514 (NY)	denied 3/29/24 (Singas, J.)
People v Santiago	1st Dept: 223 AD3d 534 (NY)	denied 3/28/24 (Rivera, J.)
People v Stephens	4th Dept: 224 AD3d 1269 (Monroe)	denied 3/21/24 (Garcia, J.)
People v Stockfeder	2d Dept: 219 AD3d 641 (Queens)	denied 3/25/24 (Halligan, J.)
People v Sutton (Idris)	1st Dept: 221 AD3d 466 (NY)	denied 3/20/24 (Troutman, J.)

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People v Sutton (Thomas)	3d Dept: 221 AD3d 1185 (Broome)	denied 3/18/24 (Wilson, Ch. J.)
People v Tirado	2d Dept: 221 AD3d 834 (Queens)	denied 3/28/24 (Rivera, J.)
People v Topolski	App Div, 4th Dept, 12/20/23 (Onondaga)	dismissed 3/28/24 (Rivera, J.)
People v Tovar	App Term, 1st Dept: 80 Misc 3d 128(A) (NY)	denied 3/20/24 (Halligan, J.)
People v Trimm	App Div, 3d Dept: 2024 NY Slip Op 61730(U) (St. Lawrence)	dismissed 3/27/24 (Singas, J.)
People v Ufret	1st Dept: 223 AD3d 534 (Bronx)	denied 3/14/24 (Garcia, J.)
People v Underdue	App Div, 3d Dept: 2023 NY Slip Op 76517(U) (Albany)	dismissed 3/18/24 (Wilson, Ch. J.)
People v Vanwuyckhuysse	4th Dept: 224 AD3d 1315 (Monroe)	denied 3/25/24 (Wilson, Ch. J.)
People v Vincent	2d Dept: 218 AD3d 614 (Queens)	dismissed 3/29/24 (Singas, J.)
People v Waggoner	4th Dept: 218 AD3d 1221 (Chautauqua)	denied reconsideration 3/18/24 (Wilson, Ch. J.)
People v Watkins	2d Dept: 221 AD3d 620 (Richmond)	denied 3/27/24 (Halligan, J.)
People v Whyte	2d Dept: 208 AD3d 1189 (Queens)	denied 3/18/24 (Wilson, Ch. J.)
People v Willis	App Term, 1st Dept: 79 Misc 3d 127(A) (NY)	granted 3/18/24 (Wilson, Ch. J.)
People v Winston	4th Dept: 220 AD3d 1161 (Oneida)	denied 3/25/24 (Halligan, J.)
People v Womack (Korane)	4th Dept: 222 AD3d 1412 (Monroe)	denied 3/18/24 (Wilson, Ch. J.) (Appeal No. 1)
People v Womack (Korane)	4th Dept: 222 AD3d 1414 (Monroe)	denied 3/18/24 (Wilson, Ch. J.) (Appeal No. 2)

122 EAST 42ND STREET, LLC, Respondent, v JOSEPH SCHARF et al., Appellants.

Submitted April 1, 2024; decided April 18, 2024

Reported below, 211 AD3d 517.

Motion by West Side Advisors, LLC et al. for leave to file a brief amici curiae on the appeal herein denied.

In the Matter of ANONYMOUS, etc. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent; ANONYMOUS, Appellant. (App Div No. 2021-05514)

Decided April 18, 2024

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ANONYMOUS, etc. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent; ANONYMOUS, Appellant. (App Div No. 2021-08435)

Decided April 18, 2024

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of CORNING NATURAL GAS CORPORATION, Appellant, v PUBLIC SERVICE COMMISSION OF THE STATE OF NEW YORK, Respondent.

Decided April 18, 2024

Reported below, 221 AD3d 1075.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

AMY R. GURVEY, US Patentee, Appellant, v STATE OF NEW YORK, Respondent.

Submitted October 16, 2023; decided April 18, 2024

Reported below, 72 Misc 3d 1211(A), 2021 NY Slip Op 50697(U).

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for a stay dismissed as academic.

BRITTANY N. JONES, Also Known as BRITTANY N. FINCH, Appellant, v CATTARAUGUS-LITTLE VALLEY CENTRAL SCHOOL DISTRICT, Respondent.

Decided April 18, 2024

See 96 F4th 539.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issue presented is to be considered after briefing and argument.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

In the Matter of DANIEL KARLIN, Appellant, v TINA M. STANFORD, as Chair of the Board of Parole, Respondent.

Submitted March 18, 2024; decided April 18, 2024

Reported below, 209 AD3d 1189.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judge HALLIGAN took no part.

K.E. LIGGETT, Appellant, v LEW REALTY LLC, Respondent.

Submitted April 15, 2024; decided April 18, 2024

Reported below, 211 AD3d 473.

Motion by Rent Stabilization Association of NYC, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of PENNEY PROPERTY SUB HOLDINGS, LLC, Appellant, v TOWN OF AMHERST, Respondent.

Decided April 18, 2024

Reported below, 220 AD3d 1169.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v BRENDA WW., Respondent.

Submitted April 8, 2024; decided April 18, 2024

Reported below, 222 AD3d 1188.

Motion for assignment of counsel granted and Veronica Reed, Esq., c/o Law Office of Veronica Reed, 2320 Nott Street East, No. 9591, Schenectady, NY 12309 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYQUAN COMMISSO, Appellant.

Submitted April 8, 2024; decided April 18, 2024

Reported below, 224 AD3d 463.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MITCHELL HERNANDEZ, Appellant.

Submitted March 18, 2024; decided April 18, 2024

Reported below, 213 AD3d 425.

Motion by Prisoners' Legal Services of New York et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES HOWARD, Appellant.

Submitted March 25, 2024; decided April 18, 2024

Reported below, 217 AD3d 966.

Motion for assignment of counsel granted and Patricia Pazner, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DONKAVIUS D. HOWARD, Appellant.

Submitted April 15, 2024; decided April 18, 2024

Reported below, 224 AD3d 1359.

Motion for assignment of counsel granted and Julie A. Cianca, Esq., Monroe County Public Defender, 10 North Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUAN M. SILVA SANTOS, Appellant.

Submitted March 18, 2024; decided April 18, 2024

Reported below, 220 AD3d 547.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JERRY WATKINS, Appellant.

Submitted March 25, 2024; decided April 18, 2024

Reported below, 221 AD3d 1430.

Motion for assignment of counsel granted and Julie A. Cianca, Esq., Monroe County Public Defender, 10 North Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MCKENZIE WILLIS, Appellant.

Submitted April 15, 2024; decided April 18, 2024

Reported below, 79 Misc 3d 127(A), 2023 NY Slip Op 50631(U).

Motion for assignment of counsel granted and Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

SIYU YANG et al., Appellants, v UNIVERSITY OF ROCHESTER/
EASTMAN SCHOOL OF MUSIC et al., Respondents.

Decided April 18, 2024

Reported below, 2023 NY Slip Op 74375(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of UNITED JEWISH COMMUNITY OF BLOOMING
GROVE, INC., et al., Appellants, v WASHINGTONVILLE CEN-
TRAL SCHOOL DISTRICT et al., Respondents.

Submitted April 1, 2024; decided April 18, 2024

Reported below, 207 AD3d 9.

Motion by Agudath Israel of America for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of UNITED JEWISH COMMUNITY OF BLOOMING
GROVE, INC., et al., Appellants, v WASHINGTONVILLE CEN-
TRAL SCHOOL DISTRICT et al., Respondents.

Submitted April 15, 2024; decided April 18, 2024

Reported below, 207 AD3d 9.

Motion by New York State School Boards Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of UNITED JEWISH COMMUNITY OF BLOOMING GROVE, INC., et al., Appellants, v WASHINGTONVILLE CENTRAL SCHOOL DISTRICT et al., Respondents.

Submitted April 15, 2024; decided April 18, 2024

Reported below, 207 AD3d 9.

Motion by Sheri Torah, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

BANK OF AMERICA, N.A., Successor by Merger to BAC HOME LOANS SERVICING, LP, Formerly Known as COUNTRYWIDE HOME LOANS SERVICING, LP, Respondent, v FEDIE R. REDD, Appellant.

Submitted December 26, 2023; decided April 23, 2024

Reported below, 2023 NY Slip Op 75197(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RASHAD FARMER, Appellant, v ANTHONY J. ANNUCCI, Acting Commissioner of Department of Corrections, Respondent.

Submitted December 26, 2023; decided April 23, 2024

Reported below, 2023 NY Slip Op 77876(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. WILLIAM LOTZE, on Behalf of NEKIE RICKS, Appellant, v ANTHONY ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent, et al., Respondent.

Submitted October 16, 2023; decided April 23, 2024

Reported below, 219 AD3d 1102.

Motion for leave to appeal dismissed upon the ground that the relator has been released and, therefore, his liberty is no longer restrained to such a degree as to entitle him to the extraordinary writ of habeas corpus (*see* CPLR 7002 [a]; *see also* *People ex rel. Wilder v Markley*, 26 NY2d 648 [1970]). Motion for poor person relief dismissed as academic.

DEREK S. PRINDLE, Respondent, v JOHN GUZY, Appellant.

Submitted December 4, 2023; decided April 23, 2024

Reported below, 216 AD3d 1321.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of VICTORIA A. PRITTY-PITCHER, Respondent, v DELBERT A. HARGIS, JR., Appellant, and NICOLE E. HARGIS, Respondent. (Appeal No. 1.)

In the Matter of VICTORIA PRITTY-PITCHER, Respondent, v DELBERT HARGIS, Appellant, and NICOLE HARGIS, Respondent. (Appeal No. 2.)

Submitted January 22, 2024; decided April 23, 2024

Reported below, 221 AD3d 1546; 221 AD3d 1548.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that affirmed Family Court's order finding appellant in contempt, dismissed upon the ground that the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge TROUTMAN took no part.

In the Matter of JEFFREY TERBORG, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Submitted December 18, 2023; decided April 23, 2024

Reported below, 2023 NY Slip Op 75057(U).

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed the appeal from the judgment, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division order do not finally determine the proceeding within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of WALTER Q., Appellant, v STEPHANIE R., Respondent.

Submitted December 18, 2023; decided April 23, 2024

Reported below, 2023 NY Slip Op 76536(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

DAVID J. WHELAN, Appellant, v CRISTINA CUOMO, Respondent.

Submitted December 18, 2023; decided April 23, 2024

Reported below, 220 AD3d 979.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601). Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements.

EPAC TECHNOLOGIES LTD., Respondent, v INTERFORUM S.A. et al., Defendants, and VIVENDI S.E. et al., Appellants.

Submitted December 26, 2023; decided April 25, 2024

Reported below, 217 AD3d 623.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

EPAC TECHNOLOGIES LTD., Respondent, v INTERFORUM S.A. et al., Defendants, and VIVENDI S.E. et al., Appellants.

Submitted January 22, 2024; decided April 25, 2024

Reported below, 217 AD3d 623.

Motion by John Coyle et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

FUOCO GROUP, LLP, Respondent, v WEISMAN & CO., CPAs, et al., Appellants.

Submitted February 5, 2024; decided April 25, 2024

Reported below, 222 AD3d 619.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GARY J. LAVINE, Appellant, v RITA M. GLAVIN, Respondent.

Submitted December 18, 2023; decided April 25, 2024

Reported below, 221 AD3d 1605.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of SYLVIA LEROY, Respondent, v BROOKDALE HOSPITAL MEDICAL CENTER et al., Appellants. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 22, 2024; decided April 25, 2024

Reported below, 222 AD3d 1160.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge HALLIGAN took no part.

NELLA MANKO, Appellant, v SHOREFRONT APARTMENTS, LLC, et al., Respondents.

Submitted January 16, 2024; decided April 25, 2024

Reported below, 2022 NY Slip Op 73574(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Chief Judge WILSON took no part.

U.S. BANK NATIONAL ASSOCIATION, as Trustee for CREDIT SUISSE FIRST BOSTON MORTGAGE SECURITIES CORP., CSMC MORTGAGE-BACKED PASS-THROUGH CERTIFICATES, SERIES 2006-7, Respondent, v KASEM CHKIFATI, Appellant, et al., Defendants.

Submitted February 13, 2024; decided April 25, 2024

Reported below, 203 AD3d 1213.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge HALLIGAN took no part.

WELLS FARGO BANK, NATIONAL ASSOCIATION, as Trustee for OPTION ONE MORTGAGE LOAN TRUST 2007-CPI, ASSET-BACKED CERTIFICATES, SERIES 2007-CPI, Respondent, v RODNEY C. NEWHOUSE, Appellant, et al., Defendants.

Submitted January 29, 2024; decided April 25, 2024

Reported below, 218 AD3d 1117; 2023 NY Slip Op 05938(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

VICTORIA WONG, Appellant, v RICKY WONG, Respondent.

Submitted December 11, 2023; decided April 25, 2024

Reported below, 220 AD3d 522.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

[234 NE3d 346, 210 NYS3d 730]

In the Matter of ANNE MARIE R. COLON, Appellant, v TEACHERS' RETIREMENT SYSTEM OF THE CITY OF NEW YORK, Respondent, et al., Respondent.

Argued February 15, 2024; decided March 14, 2024

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 25, 2022. The Appellate Division (1) reversed, on the law, a judgment (denominated order) of the Supreme Court, New York County (Eileen A. Rakower, J.), entered in a proceeding pursuant to CPLR article 78, which had granted the petition to annul respondent Teachers' Retirement System of the City of New York's determination denying petitioner's application for ordinary death benefits under the decedent's pension plan to the extent of directing respondent to pay the ordinary death benefits to petitioner and to recalculate the accidental death benefits to the decedent's statutory beneficiary; (2) denied the petition; and (3) dismissed the proceeding.

Matter of Colon v Teachers' Retirement Sys. of the City of N.Y., 209 AD3d 579, affirmed.

HEADNOTES

Civil Service — Retirement and Pension Benefits — Death Benefits — Accidental Death Benefits for Death Related to COVID-19

1. In a proceeding arising out of decedent member's death in April 2020 from COVID-19 related causes while still in service, respondent public retirement system's denial of a claim for ordinary death benefits by petitioner, decedent's registered domestic partner and designated beneficiary, in favor of decedent's daughter's claim for accidental death benefits under Retirement and Social Security Law § 607-i was not irrational. The text of section 607-i, providing that accidental death benefits "shall" be paid to the statutory beneficiaries of members who contracted COVID-19 within 45 days of reporting to work on or after March 1, 2020, and died of related causes, refuted petitioner's claim. That was consistent with the statute's legislative history indicating that entitlement to the accidental death benefit is mandatory upon proper proof. In addition, even prior to enactment of section 607-i, an ordinary death benefit was only available when accidental death benefits were unavailable.

Civil Service — Retirement and Pension Benefits — Impairment of Benefits — Accidental Death Benefits for Death Related to COVID-19

2. Petitioner, the registered domestic partner and designated beneficiary of ordinary death benefits of a public retirement system member who died in April 2020 from COVID-19 related causes while still in service, failed to establish that amendments to the Retirement and Social Security Law providing that accidental death benefits “shall” be paid to the statutory beneficiaries of members who contracted COVID-19 within 45 days of reporting to work on or after March 1, 2020, and died of related causes (Retirement and Social Security Law § 607-i) violated the Pension Impairment Clause of the New York Constitution (art V, § 7 [a]). Whether a benefit attendant to membership in a pension plan is impaired is considered from the member’s perspective. Here, the record did not establish that section 607-i effected any change to decedent’s benefits, let alone impaired them, because it was unclear whether his death would have qualified for accidental death benefits under preexisting law. Moreover, no absolute right to choose a beneficiary exists, given that members cannot designate a beneficiary for accidental death benefits or know whether they will die as a result of a work-related accident. Expanding the availability of accidental death benefits, the amount of which is always equal to or greater than that of ordinary death benefits, only increased the potential value of the available benefits. Finally, even assuming that the “vesting” of benefits could confer rights under the Pension Impairment Clause independent of the member’s, petitioner failed to show that she had any such vested right.

APPEARANCES OF COUNSEL

Smith & Downey, P.A., Baltimore, Maryland (*Kerstin M. Miller*, admitted pro hac vice, of counsel), and *Gabay & Bowler, LLP*, New York City (*Anne Marie Bowler* of counsel), for appellant.

Sylvia O. Hinds-Radix, Corporation Counsel, New York City (*Jamison M. Davies, Richard Dearing* and *Deborah A. Brenner* of counsel), for respondent Teachers’ Retirement System of the City of New York.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Under article 15 of the Retirement and Social Security Law, “accidental death benefits”—generally payable when the head of the retirement system determines that a member died because of a work-related accident—are paid to a pension fund member’s statutorily enumerated “statutory beneficiary,” typically a spouse, child under the age of 25, or other dependent relative (Retirement and Social Security Law §§ 601 [d]; 607 [a]). “Ordinary death benefits”—a lump sum payable when an

employee dies before retirement of causes not related to a work accident—are paid to the “designated beneficiary” nominated by the member (*see id.* § 606-a [a] [3]; [b], [c]). The amount of an accidental death benefit will always be equal to or greater than that of an ordinary death benefit.*

In May 2020, the legislature enacted Retirement and Social Security Law § 607-i, granting accidental death benefits to the statutory beneficiaries of members who contracted COVID-19 within 45 days of reporting to work on or after March 1, 2020, and died of related causes (*see* L 2020, ch 89, § 4). Decedent died in April 2020 in circumstances undisputedly qualifying for accidental death benefits under section 607-i. Decedent’s daughter was his statutory beneficiary (*see* Retirement and Social Security Law § 601 [d] [2]), and petitioner, his registered domestic partner, was his designated beneficiary. Respondent accepted decedent’s daughter’s claim for accidental death benefits and rejected petitioner’s claim for ordinary death benefits. Petitioner filed this CPLR article 78 proceeding alleging that respondent’s determination denying her claim was arbitrary and capricious, and, alternatively, that the amendments to the Retirement and Social Security Law violated the Pension Impairment Clause of the State Constitution (NY Const, art V, § 7 [a]).

[1] The statutory text refutes petitioner’s argument that respondent’s denial of her claim for ordinary death benefits was irrational. Retirement and Social Security Law § 607-i (a) (3) provides that the accidental death benefit “shall” be paid to a member’s statutory beneficiary if the member meets the stated criteria. This is consistent with the recognition in the legislative history that “[o]nce the statutory beneficiary demonstrates this proof, entitlement to the [a]ccidental [d]eath [b]enefit is

* An accidental death benefit is an annuity “equal to fifty percent of such member’s wages earned during [their] last year of actual service” (Retirement and Social Security Law § 607 [a]). Statutory beneficiaries receiving an accidental death benefit for certain New York City employees are also eligible for health coverage paid for by the City (*see* Administrative Code of City of NY § 12-126 [b] [2] [i]). An ordinary death benefit is “equal to one-half of the amount of the ordinary death benefit which would have been payable had the member’s death occurred on the last day of service upon which membership was based” (Retirement and Social Security Law § 606-a [c]). An accidental death benefit is always at least as generous as an ordinary death benefit because, “[i]f the aggregate [accidental death] benefits . . . have not exceeded the amount of the ordinary . . . death benefit,” the difference is paid out to the member’s surviving statutory beneficiary or the member’s distributees (*id.* § 607 [c]).

mandatory” (Mem of Div of Budget, Bill Jacket, L 2020, ch 89 at 12). Additionally, preexisting law provided that an ordinary death benefit is only available when accidental death benefits are unavailable (*see* Retirement and Social Security Law § 606-a [a] [3]). The only relevant provision permitting the recovery of both types of benefits does not apply (*see id.* § 607-i [b]; Fiscal Note, L 2020, ch 89 [“If any ordinary death benefit has already been paid it will be used as an offset against the accidental death benefit”]).

[2] Petitioner’s arguments that the amendments violated the Pension Impairment Clause are meritless. Generally, we consider whether a benefit attendant to membership in a pension plan is impaired from the member’s perspective (*see Ballentine v Koch*, 89 NY2d 51, 56 [1996]). Initially, the record does not establish that Retirement and Social Security Law § 607-i effected any change to decedent’s benefits, let alone impaired them, because it is unclear whether his death would have qualified for accidental death benefits under the preexisting law (*see Civil Serv. Empls. Assn., Local 1000, AFSCME, AFL-CIO v Regan*, 71 NY2d 653, 658 [1988]). Regardless, no absolute right to choose a beneficiary exists, given that members cannot designate a beneficiary for accidental death benefits or know whether they will die as a result of a work-related accident. Rather, petitioner’s argument, at its core, is that granting superior death benefits by classifying COVID-19 deaths as accidental in turn impaired decedent’s supposed subjective preference to have his chosen beneficiary receive an inferior death benefit. Even if decedent had such a preference, it is not protected by the Pension Impairment Clause because expanding the availability of accidental death benefits only increased the potential value of the available benefits (*see Birnbaum v New York State Teachers Retirement Sys.*, 5 NY2d 1, 9, 11 [1958]).

Petitioner’s contention that she had protected vested rights under the Pension Impairment Clause also fails. Even assuming that the “vesting” of benefits could confer rights under the Pension Impairment Clause independent of the member’s, petitioner has failed to show that she had any such vested right.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, with costs, in a memorandum.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2024 through April 30, 2024)

People v Alas	2d Dept: 221 AD3d 725 (Suffolk)	denied 4/26/24 (Cannataro, J.)
People v Alvarez	2d Dept: 223 AD3d 916 (Queens)	denied 4/9/24 (Garcia, J.)
People v Atkins	3d Dept: 222 AD3d 1043 (Schenectady)	denied 4/26/24 (Cannataro, J.)
People v Ball	4th Dept: 224 AD3d 1336 (Monroe)	denied 4/29/24 (Singas, J.)
People v Bautista	2d Dept: 221 AD3d 727 (Westchester)	denied 4/2/24 (Halligan, J.)
People v Bell	4th Dept: 221 AD3d 1515 (Monroe)	denied 4/23/24 (Cannataro, J.)
People v Blandford	4th Dept: 225 AD3d 1170 (Livingston)	denied 4/30/24 (Singas, J.)
People v Bovee	4th Dept: 221 AD3d 1549 (Cayuga)	denied 4/29/24 (Halligan, J.)
People v Bowman	1st Dept: 222 AD3d 538 (NY)	denied reconsideration 4/30/24 (Garcia, J.)
People v Brown	4th Dept: 222 AD3d 1362 (Onondaga)	denied 4/30/24 (Cannataro, J.)
People v Bunch	2d Dept: 224 AD3d 924 (Queens)	denied 4/29/24 (Rivera, J.)
People v Burns	4th Dept: 221 AD3d 1408 (Monroe)	denied 4/22/24 (Halligan, J.)
People v Chase	2d Dept: 223 AD3d 913 (Kings)	denied 4/3/24 (Singas, J.)
People v Coleman	1st Dept: 213 AD3d 464 (NY)	denied 4/30/24 (Garcia, J.)
People v Cooper	2d Dept: 224 AD3d 925 (Orange)	denied 4/29/24 (Rivera, J.)
People v Cotugno	2d Dept: 224 AD3d 771 (Nassau)	denied 4/26/24 (Garcia, J.)
People v Coulibaly	1st Dept: 223 AD3d 536 (NY)	denied 4/26/24 (Cannataro, J.)
People v Daniels	1st Dept: 224 AD3d 554 (NY)	denied 4/29/24 (Rivera, J.)
People v Dingle	4th Dept: 221 AD3d 1567 (Monroe)	denied 4/30/24 (Cannataro, J.)
People v Dove	App Div, 3d Dept: 2023 NY Slip Op 77578(U) (Broome)	denied 4/3/24 (Halligan, J.)
People v Edwards	2d Dept: 223 AD3d 840 (Orange)	denied 4/30/24 (Garcia, J.)
People v Figueroa (Erick)	4th Dept: 224 AD3d 1294 (Monroe)	denied 4/30/24 (Cannataro, J.)
People v Figueroa (Omar)	4th Dept: 224 AD3d 1294 (Monroe)	denied 4/30/24 (Cannataro, J.)

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People v Finster	4th Dept: 221 AD3d 1540 (Ontario)	denied 4/29/24 (Halligan, J.)
People v Flash	2d Dept: 221 AD3d 725 (Suffolk)	denied 4/26/24 (Cannataro, J.)
People v Flores	1st Dept: 223 AD3d 626 (NY)	denied 4/29/24 (Rivera, J.)
People v Ford	2d Dept: 225 AD3d 894 (Kings)	denied 4/30/24 (Singas, J.)
People v Fuentes	App Term, 2d Dept, 9th & 10th Jud Dists: 81 Misc 3d 136(A) (Suffolk)	granted 4/30/24 (Singas, J.)
People v Fugate	App Term, 1st Dept: 78 Misc 3d 131(A) (NY)	denied 4/10/24 (Garcia, J.)
People v Gaddy	3d Dept: 221 AD3d 1351 (Clinton)	denied 4/30/24 (Cannataro, J.)
People v Garbutt (Davion)	4th Dept: 224 AD3d 1277 (Onondaga)	denied 4/15/24 (Garcia, J.) (Appeal No. 1)
People v Garbutt (Davion)	4th Dept: 224 AD3d 1278 (Onondaga)	denied 4/15/24 (Garcia, J.) (Appeal No. 2)
People v Garcia (Juan)	App Term, 1st Dept: 81 Misc 3d 142(A) (Bronx)	denied 4/24/24 (Wilson, Ch. J.)
People v Garcia (Victor)	2d Dept: 221 AD3d 614 (Orange)	denied 4/22/24 (Halligan, J.)
People v Gipson	4th Dept: 224 AD3d 1281 (Erie)	denied 4/26/24 (Singas, J.)
People v Guyton	2d Dept: 222 AD3d 879 (Queens)	denied 4/26/24 (Cannataro, J.)
People v Hall	2d Dept: 224 AD3d 776 (Kings)	denied 4/30/24 (Cannataro, J.)
People v Hanniford	2d Dept: 221 AD3d 913 (Dutchess)	denied 4/30/24 (Cannataro, J.)
People v Hart	App Div, 3d Dept: 2024 NY Slip Op 62499(U) (Albany)	denied 4/30/24 (Garcia, J.)
People v Herring	3d Dept: 224 AD3d 1042 (Albany)	denied 4/26/24 (Cannataro, J.)
People v Heyward	1st Dept: 214 AD3d 578 (NY)	denied 4/26/24 (Cannataro, J.)
People v Hodgson (Jonathan)	1st Dept: 220 AD3d 626 (NY)	denied 4/26/24 (Cannataro, J.)
People v Hodgson (Jonathan)	1st Dept: 221 AD3d 568 (Bronx)	denied 4/26/24 (Cannataro, J.)
People v Ikpemgbe	1st Dept: 223 AD3d 534 (NY)	denied 4/26/24 (Cannataro, J.)
People v Jaaber	2d Dept: 223 AD3d 685 (Queens)	denied 4/30/24 (Cannataro, J.)
People v Jerome H.	1st Dept: 222 AD3d 463 (Bronx)	denied 4/22/24 (Rivera, J.)
People v Jiminez	1st Dept: 222 AD3d 438 (NY)	denied 4/5/24 (Rivera, J.)

People v Jin Cheng Lin	App Div, 2d Dept: 2024 NY Slip Op 61284(U) (Queens)	dismissed 4/24/24 (Rivera, J.)
People v Jolivert	1st Dept: 223 AD3d 572 (Bronx)	denied 4/24/24 (Rivera, J.)
People v Kline	4th Dept: 222 AD3d 1424 (Cayuga)	denied 4/26/24 (Cannataro, J.)
People v Kostyk	2d Dept: 222 AD3d 880 (Kings)	denied 4/30/24 (Halligan, J.)
People v L	2d Dept: 221 AD3d 913 (Dutchess)	denied 4/30/24 (Cannataro, J.)
People v Lall	3d Dept: 223 AD3d 1098 (Schenectady)	denied 4/8/24 (Rivera, J.)
People v Latone	4th Dept: 222 AD3d 1394 (Livingston)	denied 4/23/24 (Cannataro, J.)
People v Lee	4th Dept: 224 AD3d 1372 (Jefferson)	denied 4/26/24 (Garcia, J.)
People v Licius	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 82 Misc 3d 18 (Kings)	granted 4/24/24 (Rivera, J.)
People v Linares	2d Dept: 224 AD3d 776 (Richmond)	denied 4/18/24 (Garcia, J.)
People v Madrid	2d Dept: 223 AD3d 756 (Nassau)	denied 4/30/24 (Cannataro, J.)
People v Marquez	1st Dept: 224 AD3d 463 (NY)	denied 4/30/24 (Cannataro, J.)
People v Martinez	App Term, 1st Dept: 81 Misc 3d 142(A) (Bronx)	denied 4/25/24 (Garcia, J.)
People v Martinez-Fernandez	App Term, 1st Dept: 79 Misc 3d 127(A) (Bronx)	granted 4/4/24 (Halligan, J.)
People v Massey	App Div, 3d Dept: 2023 NY Slip Op 75490(U) (Albany)	denied reconsideration 4/29/24 (Rivera, J.)
People v McCoy	2d Dept: 219 AD3d 1531 (Kings)	denied 4/2/24 (Halligan, J.)
People v McMurtry	4th Dept: 224 AD3d 1310 (Wyoming)	denied 4/10/24 (Garcia, J.)
People v Mike	3d Dept: 221 AD3d 1180 (Saratoga)	denied 4/30/24 (Halligan, J.)
People v Miller	4th Dept: 224 AD3d 1283 (Monroe)	denied 4/26/24 (Cannataro, J.)
People v Mohamed	4th Dept: 224 AD3d 1271 (Oneida)	denied 4/24/24 (Wilson, Ch. J.)
People v Neal	4th Dept: 220 AD3d 1191 (Monroe)	denied 4/22/24 (Halligan, J.)
People v Neulander	4th Dept: 221 AD3d 1412 (Onondaga)	denied 4/26/24 (Cannataro, J.)
People v Niveló	2d Dept: 222 AD3d 779 (Queens)	denied 4/3/24 (Halligan, J.)
People v Patterson (Dakwan)	App Div, 4th Dept, 1/4/24 (Monroe)	dismissed 4/15/24 (Garcia, J.)

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People v Patterson (Robert)	3d Dept: 224 AD3d 994 (Chemung)	denied 4/8/24 (Rivera, J.)
People v Perez	App Div, 2d Dept: 2024 NY Slip Op 60269(U) (Dutchess)	dismissed 4/30/24 (Garcia, J.)
People v Portis	4th Dept: 224 AD3d 1317 (Monroe)	denied 4/15/24 (Garcia, J.)
People v Randolph	App Div, 2d Dept: 2024 NY Slip Op 60529(U) (Suffolk)	dismissed 4/30/24 (Cannataro, J.)
People v Revi	App Term, 1st Dept: 81 Misc 3d 142(A) (Bronx)	denied 4/29/24 (Rivera, J.)
People v Richardson	4th Dept: 224 AD3d 1341 (Monroe)	denied 4/8/24 (Rivera, J.)
People v Rios	4th Dept: 224 AD3d 1284 (Genesee)	denied 4/9/24 (Garcia, J.)
People v Rivera	App Term, 2d Dept: 80 Misc 3d 127(A) (Queens)	denied 4/26/24 (Cannataro, J.)
People v Roach	4th Dept: 221 AD3d 1536 (Monroe)	denied 4/2/24 (Halligan, J.)
People v Roundtree	3d Dept: 220 AD3d 1049 (Clinton)	denied 4/29/24 (Halligan, J.)
People v Rouse (Najee)	4th Dept: 225 AD3d 1120 (Monroe)	denied 4/29/24 (Rivera, J.)
People v Rouse (Rajzhaun)	4th Dept: 225 AD3d 1129 (Onondaga)	denied 4/30/24 (Singas, J.)
People v Rowell	4th Dept: 224 AD3d 1335 (Erie)	denied 4/26/24 (Cannataro, J.)
People v Sambola	3d Dept: 221 AD3d 1180 (Saratoga)	denied 4/30/24 (Halligan, J.)
People v Sambole	3d Dept: 221 AD3d 1180 (Saratoga)	denied 4/30/24 (Halligan, J.)
People v Samuel	1st Dept: 223 AD3d 479 (NY)	denied 4/11/24 (Garcia, J.)
People v Savage	1st Dept: 220 AD3d 599 (Bronx)	dismissed 4/12/24 (Cannataro, J.)
People v Scott	1st Dept: 223 AD3d 626 (NY)	denied 4/26/24 (Garcia, J.)
People v Sheppard	4th Dept: 221 AD3d 1513 (Monroe)	denied 4/29/24 (Halligan, J.)
People v Simmons	App Div, 2d Dept: 2024 NY Slip Op 61293(U) (Westchester)	dismissed 4/25/24 (Singas, J.)
People v Smith (Damien)	1st Dept: 224 AD3d 459 (NY)	denied 4/26/24 (Cannataro, J.)
People v Smith (Karim)	2d Dept: 224 AD3d 785 (Queens)	denied 4/30/24 (Singas, J.)
People v Smith (Michael)	4th Dept: 224 AD3d 1221 (Ontario)	denied 4/30/24 (Singas, J.)
People v Taylor	County Ct: 81 Misc 3d 789 (Oneida)	denied 4/26/24 (Cannataro, J.)
People v Thomas	4th Dept: 224 AD3d 1283 (Monroe)	denied 4/29/24 (Singas, J.)

People v Tirado	2d Dept: 221 AD3d 832 (Kings)	denied 4/29/24 (Halligan, J.)
People v Watkins	4th Dept: 224 AD3d 1342 (Monroe)	denied 4/26/24 (Garcia, J.)
People v Williams	4th Dept: 224 AD3d 1311 (Monroe)	denied 4/26/24 (Singas, J.)
People v Wilson	1st Dept: 224 AD3d 613 (NY)	denied 4/18/24 (Singas, J.)
People v Woerner	App Term, 2d Dept, 9th & 10th Jud Dists: 81 Misc 3d 136(A) (Suffolk)	denied* 4/30/24 (Singas, J.)
People v Wright (Jason)	1st Dept: 215 AD3d 601 (NY)	granted 4/12/24 (Troutman, J.)
People v Wright (Sedetrice)	4th Dept: 222 AD3d 1340 (Monroe)	denied 4/30/24 (Rivera, J.)
People v Wyche	App Div, 2d Dept: 2024 NY Slip Op 60160(U) (Kings)	dismissed 4/26/24 (Cannataro, J.)
People v Zephir	2d Dept: 212 AD3d 738 (Kings)	denied 4/26/24 (Cannataro, J.)

In the Matter of **LESLIE E. CARR et al., Appellants**, v **NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent**, and **REGINA METROPOLITAN Co., LLC, Intervenor-Respondent**.

Submitted October 16, 2023; decided May 16, 2024

Reported below, 217 AD3d 442.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the January 2023 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of **JACK R.T. JORDAN, Appellant**. **ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent**.

Decided May 16, 2024

Reported below, 217 AD3d 21.

* Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Fuentes* (81 Misc 3d 136[A], 2023 NY Slip Op 51399[U] [App Term, 2d Dept, 9th & 10th Jud Dists 2023], *lv granted* 41 NY3d 983 [2024]).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of LATORIA B., and Others. OSWEGO COUNTY
DEPARTMENT OF SOCIAL SERVICES, Respondent; BIANCA B.
et al., Appellants.

Submitted February 5, 2024; decided May 16, 2024

Reported below, 222 AD3d 1449.

Motions for leave to appeal denied. Motion for poor person relief by appellant Bianca B. dismissed as academic.

In the Matter of ELIZABETH LEBOWITZ, Appellant, v BOARD OF
EDUCATION OF THE CITY SCHOOL DISTRICT OF THE CITY OF
NEW YORK et al., Respondents.

Submitted March 4, 2024; decided May 16, 2024

Reported below, 220 AD3d 537.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied with one hundred dollars costs and necessary reproduction disbursements.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents,
et al., Defendants.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents,
et al., Defendants.

Decided May 16, 2024

Reported below, 2022 NY Slip Op 66766(U); 2022 NY Slip Op 69033(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the orders appealed from do not finally determine the actions within the meaning of the Constitution.

Chief Judge WILSON took no part.

In the Matter of NYP HOLDINGS, INC., et al., Respondents, v
NEW YORK CITY POLICE DEPARTMENT et al., Respondents,
and POLICE BENEVOLENT ASSOCIATION OF THE CITY OF NEW
YORK, INC., Intervenor-Appellant.

Submitted November 6, 2023; decided May 16, 2024

Reported below, 220 AD3d 487.

Motion for leave to appeal granted. Motion for a stay granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JASON
BRISMAN, Appellant.

Submitted April 22, 2024; decided May 16, 2024

Reported below, 200 AD3d 1219.

Motion to vacate this Court's April 2, 2024 preclusion order
granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RON-
ALD DELP, Appellant.

Submitted April 29, 2024; decided May 16, 2024

Reported below, 224 AD3d 1335.

Motion for an extension of the time within which to apply for
permission to appeal pursuant to CPL 460.20 granted and mo-
tion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWARD
MARTINEZ-FERNANDEZ, Appellant.

Submitted April 29, 2024; decided May 16, 2024

Reported below, 79 Misc 3d 127(A), 2023 NY Slip Op 50630(U).

Motion for assignment of counsel granted and Twyla Carter,
Esq., The Legal Aid Society, 199 Water Street, New York, NY
10038 assigned as counsel to the appellant on the appeal
herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JASON
WRIGHT, Appellant.

Submitted May 6, 2024; decided May 16, 2024

Reported below, 215 AD3d 601.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ILANN M. MAAZEL, ESQ., on Behalf of BRIAN SCOTT LORENZO, Appellant, v JOHN C. GARCIA et al., Respondents.

Decided May 16, 2024

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies to this Court from an order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MARCUS SAUNDERS, Appellant, v MARK J. MILLER et al., Respondents.

Decided May 16, 2024

Reported below, 2023 NY Slip Op 78161(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question.

In the Matter of RICHARD TT. and Others, Alleged to be Neglected Children. SCHENECTADY COUNTY DEPARTMENT OF SOCIAL SERVICES, Appellant; KARA VV., Respondent. (And Another Related Proceeding.)

Decided May 16, 2024

Reported below, 223 AD3d 1070.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SHANIA R. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; SHANA R., Appellant.

Submitted February 13, 2024; decided May 16, 2024

Reported below, 222 AD3d 1385.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SISTERS OF THE PRESENTATION OF THE BLESSED VIRGIN MARY, ALBANY, NEW YORK, Appellant, v KAREN VAN WAGENEN, as Assessor of the Town of Guilderland, Respondent.

Decided May 16, 2024

Reported below, 223 AD3d 987.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of TOWN OF COPENAK et al., Appellants, et al., Petitioners, v NEW YORK STATE OFFICE OF RENEWABLE ENERGY SITING et al., Respondents, and ALLIANCE FOR CLEAN ENERGY NEW YORK, INC., Intervenor-Respondent.

Decided May 16, 2024

Reported below, 216 AD3d 93; 2023 NY Slip Op 74039(U).

Appeal, insofar as taken from the September 2023 Appellate Division order denying reargument or leave to appeal, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that such order does not finally determine the action/proceeding within the meaning of the Constitution; appeal, insofar as taken from the May 2023 Appellate Division order, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of WOODSIDE MANOR NURSING HOME, INC., et al.,
Appellants, v HOWARD ZUCKER, as Commissioner of Health,
Respondent.

Decided May 16, 2024

Reported below, 223 AD3d 94.

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that no substantial constitutional
question is directly involved.

DANA OFFENBACH et al., Respondents, v GARY OHLBAUM, Appel-
lant.

Submitted January 29, 2024; decided May 21, 2024

Motion for leave to appeal from the Supreme Court judg-
ment entered upon the Appellate Division order dismissed upon
the ground that the judgment is not the final appealable paper
from which leave to appeal may be sought (*see* CPLR 5611).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. PETER A. BARTA,
on Behalf of SHYHEID GIBSON, Appellant, v LOUIS A. MO-
LINA, Respondent.

Submitted December 11, 2023; decided May 21, 2024

Reported below, 220 AD3d 953.

Motion for leave to appeal granted. Motion for poor person
relief granted.

[236 NE3d 159, 212 NYS3d 555]

TAXI TOURS INC., Plaintiff/Counterclaim Defendant, v Go NEW
YORK TOURS, INC., Defendant/Counterclaim Plaintiff-
Appellant. BIG BUS TOURS LIMITED et al., Counterclaim
Defendants, and GRAY LINE NEW YORK TOURS, INC., et al.,
Counterclaim Defendants-Respondents.

Argued February 15, 2024; decided March 14, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 3, 2022. The Appellate Division order, insofar as appealed from, as limited by the briefs, affirmed an order of the Supreme Court, New York County (Jennifer Schecter, J.), which had granted the motion of counterclaim defendants Gray Line New York Tours, Inc., Twin America, LLC, and Sightseeing Pass LLC to dismiss against them the counterclaim seeking recovery under the Donnelly Act (General Business Law § 340 *et seq.*) and the counterclaim for tortious interference with prospective business relations for failure to state a claim.

Taxi Tours Inc. v Go N.Y. Tours, Inc., 210 AD3d 451, reversed.

HEADNOTE**Monopolies — Donnelly Act — Sufficiency of Pleading**

In an underlying action against counterclaim plaintiff related to its tour bus business, its counterclaims against certain counterclaim defendants based on allegations that they engaged, amongst other things, in anticompetitive behavior that violated the Donnelly Act (*see* General Business Law § 340 *et seq.*) and constituted tortious interference with prospective business relations were adequately pleaded. A claim brought under the Donnelly Act must, at a minimum, allege both concerted action by two or more entities and a consequent restraint of trade within an identified relevant product market. Counterclaim plaintiff alleged that counterclaim defendants conspired with another group of counterclaim defendants to leverage their market share to “shut out” counterclaim plaintiff from the “hop-on, hop-off sightseeing bus tour market.” According to the facts asserted, representatives from various New York City attractions refused to do business with counterclaim plaintiff after the two groups of counterclaim defendants impugned counterclaim plaintiff’s reputation and threatened to end their business with those attractions if they did business with counterclaim plaintiff. It was also alleged that, although certain attractions referenced exclusive relationships with either group of counterclaim defendants as a basis not to partner with counterclaim plaintiff, the attractions in fact partnered with both. Thus, it can be inferred that the claimed exclusive relationships were a pretext to cover for anticompetitive efforts to exclude counterclaim plaintiff. Although sparse, those factual assertions and all the possible inferences to be drawn therefrom were sufficient to allege concerted action between two or more entities and support a cognizable Donnelly Act counterclaim under the liberal notice pleading standards.

APPEARANCES OF COUNSEL

Barton LLP, New York City (*Maurice N. Ross* and *Barak Bacharach* of counsel), for defendant/counterclaim plaintiff-appellant.

Wilson Sonsini Goodrich & Rosati, New York City (*Kenneth M. Edelson* and *Jonathan M. Jacobson* of counsel), for Gray

Line New York Tours, Inc. and others, counterclaim defendants-respondents.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division order, insofar as appealed from, should be reversed, with costs, and motion by Gray Line New York Tours, Inc., Twin America, LLC and Sightseeing Pass LLC to dismiss as against them the first and second counterclaims denied.

In the underlying action against Go New York related to its tour bus business, Go New York answered and counterclaimed that respondents, Gray Line New York Tours, Inc., Twin America, LLC and Sightseeing Pass LLC—collectively referred to by Go New York as “Gray Line” because these entities allegedly acted in concert and fall within common ownership and control—engaged, amongst other things, in anticompetitive behavior that violated the Donnelly Act (*see* General Business Law § 340 *et seq.*) and constituted tortious interference with prospective business relations. As relevant here, Supreme Court granted respondents’ motion to dismiss these counterclaims as against them. The Appellate Division affirmed on the ground that Go New York failed to allege sufficient facts in support of its Donnelly Act claim and the “wrongful means” underlying its tortious interference counterclaim was nothing more than the insufficient allegations of a Donnelly Act violation (210 AD3d 451, 452 [1st Dept 2022]). We conclude that these counterclaims are adequately pleaded.

On a motion to dismiss for failure to state a claim under CPLR 3211 (a) (7), the Court affords the pleading “a liberal construction” and must “accept the facts as alleged . . . as true, accord [the nonmoving party] the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory” (*Leon v Martinez*, 84 NY2d 83, 87-88 [1994]; *see also* 34-06 73, *LLC v Seneca Ins. Co.*, 39 NY3d 44, 51 [2022]). Thus, “[w]hether [the nonmoving party] can ultimately establish its allegations is not part of the calculus in determining a motion to dismiss” (*EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11, 19 [2005]; *see also* *Sassi v Mobile Life Support Servs., Inc.*, 37 NY3d 236, 239 [2021]).

The Donnelly Act prohibits “[e]very contract, agreement, arrangement or combination” through which “[a] monopoly . . . is or may be established or maintained,” whereby “[c]ompeti-

tion or the free exercise of any activity in the conduct of any business . . . is or may be restrained,” or whereby trade or business is or may be restrained “[f]or the purpose of establishing or maintaining any such monopoly or unlawfully interfering with the free exercise of any activity in the conduct of any business, trade or commerce” (General Business Law § 340 [1]). As with a claim brought “under its essentially similar federal progenitor, section 1 of the Sherman Act (15 USC § 1 *et seq.* . . .),” a claim brought under the Donnelly Act, at a minimum, “must allege both concerted action by two or more entities and a consequent restraint of trade within an identified relevant product market” (*Global Reins. Corp.-U.S. Branch v Equitas Ltd.*, 18 NY3d 722, 731 [2012]). The Court has recognized that “the sweep of Donnelly may be broader than that of Sherman” insofar as the Donnelly Act proscribes “arrangement[s]” in addition to contracts, combinations, and conspiracies (*State of New York v Mobil Oil Corp.*, 38 NY2d 460, 464 [1976]). Nonetheless, the term “arrangement” does not embrace any practice and has “a connotation similar to that of the other terms,” thus requiring “a reciprocal relationship of commitment between two or more legal or economic entities similar to but not embraced within the more exacting terms, ‘contract’, ‘combination’ or ‘conspiracy’” (*id.*).

Go New York alleges that the Gray Line respondents conspired with other counterclaim defendants (which Go New York refers to as “Big Bus/Leisure Pass”) to leverage their market share to “shut out” Go New York from the “hop-on, hop-off sightseeing tour bus market.” According to the facts asserted—which we must accept as true on this motion—representatives from various New York City attractions refused to do business with Go New York after Gray Line and Big Bus/Leisure Pass impugned Go New York’s reputation and threatened to end their business with those attractions if they did business with Go New York. Go New York also alleged that, although certain attractions referenced exclusive relationships with either Gray Line or Big Bus/Leisure Pass as a basis not to partner with Go New York, the attractions in fact partnered with both. Thus, it can be inferred that the claimed exclusive relationships were a pretext to cover for anticompetitive efforts to exclude Go New York. Although sparse, these factual assertions and all the possible inferences to be drawn therefrom are sufficient to allege concerted action between two or more entities and support a cognizable Donnelly Act counterclaim under our liberal notice

pleading standards (*see Anheuser-Busch, Inc. v Abrams*, 71 NY2d 327, 333-335 [1988]; *Mobil Oil Corp.*, 38 NY2d at 464; *Leon*, 84 NY2d at 87-88).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order insofar as appealed from reversed, with costs, and motion by Gray Line New York Tours, Inc., Twin America, LLC and Sightseeing Pass LLC to dismiss as against them the first and second counterclaims denied, in a memorandum.

[236 NE3d 168, 212 NYS3d 564]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v YASIF SIMS, Appellant.

Argued March 14, 2024; decided April 18, 2024

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered July 14, 2022. The Appellate Division affirmed a judgment of the St. Lawrence County Court (Jerome J. Richards, J.), which had convicted defendant, upon a plea of guilty, of criminal possession of a controlled substance in the second degree.

People v Sims, 207 AD3d 882, affirmed.

HEADNOTE

Crimes — Plea Bargaining — Violation of Plea Condition — Sufficiency of Inquiry

Defendant's claim that the sentencing court conducted an inadequate inquiry into his violation of plea conditions before imposing an enhanced sentence, to the degree readily discernible from the hearing transcript, was without merit. The court conducted an appropriate inquiry and provided defendant with an opportunity to dispute the factual basis for the alleged violation.

APPEARANCES OF COUNSEL

Noreen McCarthy, Keene Valley, for appellant.

Letitia James, Attorney General, New York City (*James F. Gibbons*, *Barbara D. Underwood*, *Nikki Kowalski* and *Ira M. Feinberg* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant's claim that the sentencing court conducted an inadequate inquiry into his violation of plea conditions before imposing an enhanced sentence, to the degree "readily discernible from the hearing transcript" (*People v Albergotti*, 17 NY3d 748, 750 [2011]), is without merit. The court conducted an appropriate inquiry and provided defendant with an opportunity to dispute the factual basis for the alleged violation (*see People v Outley*, 80 NY2d 702, 713 [1993]; *People v Valencia*, 3 NY3d 714, 716 [2004]).

Defendant's ineffective assistance of counsel claims are more appropriately brought in a collateral or post-conviction CPL 440.10 proceeding (*see People v Henderson*, 28 NY3d 63, 66 [2016]).

Defendant's argument that his postplea statements to the probation officer required further inquiry by the court is without merit (*see People v Billingsley*, 54 NY2d 960, 961 [1981]). His contention that the court overstated his sentencing exposure is unpreserved.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, in a memorandum.

BARASCH & MCGARRY, P.C., Doing Business as BARASCH
MCGARRY SALZMAN & PENSON, Respondent, v EDWARD L.
MARCOWITZ, Appellant.

Submitted March 4, 2024; decided May 23, 2024

Reported below, 219 AD3d 1242.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of BRANDON P., Respondent, v JENNIFER M.C.,
Appellant, and JASON M.C., Respondent.

Submitted January 16, 2024; decided May 23, 2024

Reported below, 222 AD3d 1430.

Motion for leave to appeal dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511).

PETER CHIEN, Appellant, v JAMES FISHMAN, Respondent.

Submitted March 18, 2024; decided May 23, 2024

Reported below, 2022 NY Slip Op 74302(U); 2023 NY Slip Op 69498(U); 2023 NY Slip Op 74450(U).

Motion for reconsideration of this Court's corrected February 20, 2024 dismissal order denied [*see* 41 NY3d 931 (2024)].

In the Matter of PETER J. CORINES, Appellant, v NYS DEPT. OF EDUCATION OFFICE OF PROFESSIONS, Respondent.

Submitted February 20, 2024; decided May 23, 2024

Reported below, 2024 NY Slip Op 60184(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

ALFREDO CRUZ, Appellant, v CITY OF NEW YORK, Respondent.

Submitted February 13, 2024; decided May 23, 2024

Reported below, 197 AD3d 555.

Motion to dismiss appeal granted and appeal dismissed, with \$400 costs and \$100 costs of motion, upon the ground that the motion for leave to appeal made at the Appellate Division was untimely.

STEVEN HAMMOND, Appellant, v EQUINOX HOLDINGS LLC, Doing Business as EQUINOX FITNESS CLUB, Doing Business as EQUINOX, et al., Defendants, and MICHAEL ALEXANDER, Respondent.

Submitted January 29, 2024; decided May 23, 2024

Reported below, 219 AD3d 406.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements.

In the Matter of HILLSIDE PARK 168, LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RE-NEWAL, Respondent.

Submitted April 1, 2024; decided May 23, 2024

Reported below, 200 AD3d 964.

Motion for reargument of motion for leave to appeal denied [see 41 NY3d 903 (2024)].

SAMUEL D. ISALY, Appellant, v DAMIAN GARDE, Respondent, et al., Defendant.

Submitted February 26, 2024; decided May 23, 2024

Reported below, 216 AD3d 594.

Motion for reargument of motion for leave to appeal denied [see 40 NY3d 1088 (2024)].

In the Matter of KINGS PARK 8809, LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RE-NEWAL, Respondent.

Submitted April 1, 2024; decided May 23, 2024

Reported below, 200 AD3d 959.

Motion for reargument of motion for leave to appeal denied [see 41 NY3d 903 (2024)].

EDWARD KORN et al., Plaintiffs, v ROBERT B. KORN, Appellant, and MADGE ROTHENBERG, Individually and as Coexecutor of the Estate of MIRIAM ROTHENBERG, Deceased, et al., Respondents. GREGORY TOCZKO, Nonparty Respondent.

Submitted January 29, 2024; decided May 23, 2024

Reported below, 222 AD3d 1058.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CHARLES LORD, Appellant, v HEATHER LORD,
Respondent.

Submitted March 18, 2024; decided May 23, 2024

Reported below, 2023 NY Slip Op 77944(U); 2023 NY Slip Op 77945(U).

Motion, insofar as it seeks leave to appeal from the October 2022 Family Court order, dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]); motion for leave to appeal otherwise dismissed upon the ground that the Appellate Division orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ONE NINETY SIXTH ST, LLC, Appellant, v NEW
YORK STATE DIVISION OF HOUSING AND COMMUNITY RE-
NEWAL, Respondent.

Submitted April 1, 2024; decided May 23, 2024

Reported below, 200 AD3d 961.

Motion for reargument of motion for leave to appeal denied [*see* 41 NY3d 903 (2024)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWIGHT
MOSS, Appellant.

Submitted January 22, 2024; decided May 23, 2024

Reported below, 222 AD3d 1451.

Motion for leave to appeal granted. Motion for poor person relief granted.

Judge TROUTMAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAY-
MOND TALAVERA, Appellant.

Submitted March 4, 2024; decided May 23, 2024

Reported below, 223 AD3d 538.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that denied the motion to strike portions of the People's Appellate Division brief, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

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In the Matter of the Estate of ALAN GERALD PRINCE, etc.

DAVID MARC PRINCE, Appellant, v ROBERTO MACHADO, Respondent.

Submitted March 11, 2024; decided May 23, 2024

Reported below, 2023 NY Slip Op 74240(U).

Motion for reargument denied [*see* 40 NY3d 1089 (2024)].

SUZANNE P., as Administratrix of the Estate of MITCHELL P., Deceased, Appellant, v JOINT BOARD OF DIRECTORS OF ERIE-WYOMING COUNTY SOIL CONSERVATION DISTRICT, Also Known as THE ERIE-WYOMING JOINT WATERSHED BOARD, et al., Respondents.

Submitted March 18, 2024; decided May 23, 2024

Reported below, 194 AD3d 1483.

Motion for reargument denied [*see* 41 NY3d 391 (2024)].

APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(May 1, 2024 through May 31, 2024)

Sakthivel v Industrious
Staffing Co., LLC

1st Dept: 212 AD3d 419

5/1/24

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2024 through May 31, 2024)

People v Alexander	2d Dept: 225 AD3d 890 (Kings)	denied 5/29/24 (Garcia, J.)
People v Anderson	App Div, 4th Dept, 3/21/24 (Monroe)	dismissed 5/21/24 (Rivera, J.)
People v Arriola	App Term, 1st Dept: 80 Misc 3d 132(A) (NY)	denied 5/5/24 (Troutman, J.)
People v Baez	2d Dept: 226 AD3d 699 (Queens)	denied 5/31/24 (Singas, J.)
People v Baez-Caban	1st Dept: 221 AD3d 490 (NY)	denied 5/28/24 (Wilson, Ch. J.)
People v Barrett	3d Dept: 222 AD3d 1045 (Washington)	denied 5/6/24 (Troutman, J.)
People v Bautista	App Term, 1st Dept: 80 Misc 3d 131(A) (Bronx)	denied 5/3/24 (Troutman, J.)

MEMORANDA

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People v Booker	App Div, 2d Dept: 2023 NY Slip Op 75399(U) (Kings)	dismissed 5/3/24 (Troutman, J.)
People v Bradley	4th Dept: 225 AD3d 1138 (Monroe)	denied 5/29/24 (Garcia, J.)
People v Brown	1st Dept: 220 AD3d 470 (NY)	denied 5/29/24 (Garcia, J.)
People v Burris	1st Dept: 222 AD3d 439 (Bronx)	denied 5/7/24 (Troutman, J.)
People v Butts	3d Dept: 226 AD3d 1089 (Broome)	denied 5/31/24 (Garcia, J.)
People v Cabrera	2d Dept: 222 AD3d 878 (Queens)	denied 5/6/24 (Troutman, J.)
People v Carter	2d Dept: 224 AD3d 771 (Queens)	denied 5/13/24 (Halligan, J.)
People v Cato	App Div, 4th Dept, 2/9/24 (Ontario)	dismissed 5/2/24 (Halligan, J.)
People v Chacon	1st Dept: 222 AD3d 410 (Bronx)	denied 5/7/24 (Troutman, J.)
People v Coleman	1st Dept: 225 AD3d 477 (NY)	denied 5/21/24 (Rivera, J.)
People v Collins	1st Dept: 226 AD3d 439 (Bronx)	denied 5/30/24 (Singas, J.)
People v Commisso	1st Dept: 224 AD3d 463 (NY)	denied 5/31/24 (Singas, J.)
People v Costa	2d Dept: 222 AD3d 775 (Nassau)	denied 5/23/24 (Halligan, J.)
People v Cox	2d Dept: 225 AD3d 782 (Kings)	denied 5/30/24 (Rivera, J.)
People v C.R.	1st Dept: 226 AD3d 485 (Bronx)	denied 5/29/24 (Garcia, J.)
People v Crosby	4th Dept: 222 AD3d 1411 (Erie)	denied 5/13/24 (Halligan, J.)
People v Cruz	4th Dept: 221 AD3d 1423 (Monroe)	denied 5/30/24 (Rivera, J.)
People v Davis (Antoine)	2d Dept: 221 AD3d 730 (Queens)	denied 5/5/24 (Troutman, J.)
People v Davis (Paul)	2d Dept: 224 AD3d 703 (Kings)	denied 5/21/24 (Rivera, J.)
People v Decoteau	2d Dept: 220 AD3d 710 (Nassau)	denied 5/7/24 (Troutman, J.)
People v DeJesus	1st Dept: 221 AD3d 510 (Bronx)	denied 5/3/24 (Troutman, J.)
People v Drayton	3d Dept: 222 AD3d 1045 (Sullivan)	denied 5/28/24 (Wilson, Ch. J.)
People v Faust-Gadsden	2d Dept: 220 AD3d 887 (Queens)	denied 5/5/24 (Troutman, J.)
People v Flash	4th Dept: 225 AD3d 1133 (Ontario)	denied 5/29/24 (Garcia, J.) (Appeal No. 2)
People v Fisher	3d Dept: 221 AD3d 1195 (Saratoga)	denied 5/30/24 (Halligan, J.)

People v Ford	2d Dept: 224 AD3d 847 (Queens)	denied 5/21/24 (Rivera, J.)
People v Franco	4th Dept: 225 AD3d 1284 (Wayne)	denied 5/29/24 (Garcia, J.)
People v Fuller (Bernard)	1st Dept: 221 AD3d 433 (NY)	denied 5/13/24 (Wilson, Ch. J.)
People v Fuller (Shaquille)	1st Dept: 210 AD3d 597 (NY)	denied 5/9/24 (Troutman, J.)
People v Garcia	2d Dept: 222 AD3d 659 (Kings)	denied 5/3/24 (Troutman, J.)
People v Gayle	3d Dept: 221 AD3d 1061 (Schenectady)	denied 5/5/24 (Troutman, J.)
People v Gentry	3d Dept: 223 AD3d 1050 (Schenectady)	denied 5/7/24 (Troutman, J.)
People v Gizzo	App Term, 2d Dept, 9th & 10th Jud Dists: 83 Misc 3d 47 (Westchester)	denied 5/30/24 (Singas, J.)
People v Gjenashaj	2d Dept: 223 AD3d 914 (Richmond)	denied 5/7/24 (Troutman, J.)
People v Granger (Elie)	App Div, 2d Dept: 2024 NY Slip Op 64283(U) (Queens)	dismissed 5/29/24 (Garcia, J.)
People v Granger (Elie)	App Div, 2d Dept: 2024 NY Slip Op 61662(U) (Queens)	dismissed 5/29/24 (Garcia, J.)
People v Guity	1st Dept: 223 AD3d 598 (NY)	denied 5/28/24 (Wilson, Ch. J.)
People v Hall	2d Dept: 221 AD3d 829 (Kings)	denied 5/13/24 (Halligan, J.)
People v Haynes	1st Dept: 225 AD3d 477 (Bronx)	denied 5/13/24 (Wilson, Ch. J.)
People v Henriquez	4th Dept: 225 AD3d 1138 (Monroe)	denied 5/29/24 (Garcia, J.)
People v Herrera	1st Dept: 223 AD3d 629 (NY)	denied 5/23/24 (Singas, J.)
People v Hodge	3d Dept: 224 AD3d 1082 (Schenectady)	denied 5/31/24 (Singas, J.)
People v Iverson	App Div, 2d Dept: 2024 NY Slip Op 63314(U) (Kings)	dismissed 5/30/24 (Halligan, J.)
People v Jackson (Andre)	1st Dept: 225 AD3d 547 (Bronx)	denied 5/29/24 (Garcia, J.)
People v Jackson (Ollie)	4th Dept: 225 AD3d 1280 (Monroe)	denied 5/13/24 (Halligan, J.)
People v J-DOT	3d Dept: 226 AD3d 1089 (Broome)	denied 5/29/24 (Garcia, J.)
People v Jenkins	4th Dept: 225 AD3d 1259 (Monroe)	denied 5/21/24 (Rivera, J.)
People v Jennings	2d Dept: 221 AD3d 617 (Queens)	denied 5/5/24 (Troutman, J.)
People v Johnson (Taylor)	App Div, 3d Dept: 2023 NY Slip Op 78108(U) (Albany)	dismissed 5/3/24 (Troutman, J.)
People v Johnson (Wellington)	App Div, 3d Dept: 2023 NY Slip Op 75497(U) (Madison)	dismissed 5/4/24 (Troutman, J.)

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People v Jones (Donte)	1st Dept: 220 AD3d 627 (Bronx)	denied 5/5/24 (Troutman, J.)
People v Jones (Jamar)	App Div, 4th Dept, 3/18/24 (Erie)	dismissed 5/16/24 (Singas, J.)
People v Jordan	2d Dept: 221 AD3d 1026 (Queens)	denied 5/7/24 (Troutman, J.)
People v Kendricks	3d Dept: 226 AD3d 1150 (Chemung)	denied 5/29/24 (Garcia, J.)
People v Krull	1st Dept: 220 AD3d 517 (Bronx)	denied 5/5/24 (Troutman, J.)
People v Lacey	4th Dept: 225 AD3d 1276 (Ontario)	denied 5/21/24 (Rivera, J.)
People v Leon	2d Dept: 222 AD3d 778 (Queens)	denied 5/28/24 (Halligan, J.)
People v Livingston	App Term, 1st Dept: 80 Misc 3d 130(A) (NY)	denied 5/5/24 (Troutman, J.)
People v Li	2d Dept: 226 AD3d 830 (Kings)	denied 5/30/24 (Rivera, J.)
People v Long	2d Dept: 222 AD3d 881 (Queens)	denied 5/6/24 (Troutman, J.)
People v Lugo	1st Dept: 222 AD3d 496 (NY)	denied 5/31/24 (Cannataro, J.)
People v Luna	App Term, 2d Dept, 9th & 10th Jud Dists: — Misc 3d —, 2024 NY Slip Op 24146 (Suffolk)	denied 5/30/24 (Rivera, J.)
People v Martin	4th Dept: 225 AD3d 1144 (Onondaga)	denied 5/14/24 (Garcia, J.)
People v Matthew M.	2d Dept: 224 AD3d 927 (Queens)	denied 5/31/24 (Singas, J.)
People v Maxon (Maurice)	4th Dept: 225 AD3d 1132 (Ontario)	denied 5/29/24 (Garcia, J.) (Appeal No. 1)
People v Maxon (Maurice)	4th Dept: 225 AD3d 1133 (Ontario)	denied 5/29/24 (Garcia, J.) (Appeal No. 2)
People v McPherson	1st Dept: 223 AD3d 442 (NY)	denied 5/7/24 (Troutman, J.)
People v Mercer	3d Dept: 221 AD3d 1259 (Saratoga)	denied 5/6/24 (Troutman, J.)
People v Merly	1st Dept: 222 AD3d 464 (Bronx)	denied 5/6/24 (Troutman, J.)
People v Mighty	4th Dept: 221 AD3d 1499 (Monroe)	denied 5/14/24 (Wilson, Ch. J.)
People v Miller	1st Dept: 222 AD3d 599 (NY)	denied 5/7/24 (Troutman, J.)
People v Moon	1st Dept: 224 AD3d 632 (NY)	denied 5/28/24 (Wilson, Ch. J.)
People v Moore	3d Dept: 223 AD3d 1085 (Schenectady)	denied 5/31/24 (Singas, J.)
People v Moorhead	4th Dept: 224 AD3d 1225 (Monroe)	denied 5/31/24 (Singas, J.)

People v Nelson	2d Dept: 221 AD3d 913 (Kings)	denied 5/28/24 (Wilson, Ch. J.)
People v Nunez	1st Dept: 220 AD3d 597 (Bronx)	denied 5/3/24 (Troutman, J.)
People v Nunnally	3d Dept: 224 AD3d 992 (Schenectady)	denied 5/7/24 (Troutman, J.)
People v Odom	2d Dept: 222 AD3d 1001 (Kings)	denied 5/6/24 (Troutman, J.)
People v Ortega	App Term, 1st Dept: 83 Misc 3d 5 (Bronx)	denied 5/29/24 (Rivera, J.)
People v Parrilla	1st Dept: 223 AD3d 537 (Bronx)	denied 5/7/24 (Troutman, J.)
People v Re-Re	3d Dept: 223 AD3d 1050 (Schenectady)	denied 5/7/24 (Troutman, J.)
People v Rivera	4th Dept: 225 AD3d 1286 (Monroe)	denied 5/30/24 (Singas, J.)
People v Rodriguez	1st Dept: 226 AD3d 459 (Bronx)	denied 5/31/24 (Singas, J.)
People v Salas	1st Dept: 220 AD3d 545 (Bronx)	granted 5/22/24 (Wilson, Ch. J.)
People v Scott (Kenneth)	4th Dept: 225 AD3d 1221 (Cayuga)	denied 5/31/24 (Cannataro, J.) (Appeal No. 1)
People v Scott (Kenneth)	4th Dept: 225 AD3d 1222 (Cayuga)	denied 5/31/24 (Cannataro, J.) (Appeal No. 2)
People v Scott (Kenneth)	4th Dept: 225 AD3d 1222 (Cayuga)	denied 5/31/24 (Cannataro, J.) (Appeal No. 3)
People v Seignious	1st Dept: 226 AD3d 459 (NY)	denied 5/31/24 (Singas, J.)
People v Spruill	1st Dept: 222 AD3d 540 (Bronx)	denied 5/7/24 (Troutman, J.)
People v Taylor	App Term, 1st Dept: 80 Misc 3d 133(A) (Bronx)	denied 5/31/24 (Cannataro, J.)
People v Thompson	2d Dept: 222 AD3d 782 (Kings)	denied 5/13/24 (Halligan, J.)
People v Townsend	4th Dept: 225 AD3d 1156 (Monroe)	denied 5/21/24 (Rivera, J.)
People v T.P.	4th Dept: 216 AD3d 1469 (Erie)	granted 5/29/24 (Cannataro, J.)
People v T.P.	4th Dept: 216 AD3d 1469 (Erie)	dismissed 5/29/24 (Cannataro, J.)
People v Turner	4th Dept: 221 AD3d 1590 (Erie)	denied 5/2/24 (Halligan, J.)
People v Velazquez	App Div, 3d Dept: 2024 NY Slip Op 60869(U) (Sullivan)	denied 5/7/24 (Troutman, J.)
People v Wagoner	App Div, 4th Dept, 4/23/24 (Cattaraugus)	dismissed 5/30/24 (Rivera, J.)
People v Wahsh	App Div, 2d Dept: 2024 NY Slip Op 62116(U) (Kings)	dismissed 5/31/24 (Cannataro, J.)

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People v Wald	1st Dept: 215 AD3d 497 (NY)	denied 5/21/24 (Troutman, J.)
People v Webster	2d Dept: 225 AD3d 903 (Kings)	denied 5/29/24 (Garcia, J.)
People v Weisman	App Term, 2d Dept, 9th & 10th Jud Dists: 81 Misc 3d 129(A) (Suffolk)	denied 5/20/24 (Troutman, J.)
People v White	3d Dept: 217 AD3d 1283 (Essex)	denied 5/5/24 (Troutman, J.)
People v Williams (David)	1st Dept: 223 AD3d 442 (NY)	denied 5/6/24 (Troutman, J.)
People v Williams (Lashar)	1st Dept: 225 AD3d 553 (NY)	denied 5/16/24 (Singas, J.)
People v Wills	4th Dept: 224 AD3d 1329 (Livingston)	denied 5/29/24 (Rivera, J.)
People v Wilson	2d Dept: 222 AD3d 1009 (Kings)	denied 5/6/24 (Troutman, J.)
People v Yates	1st Dept: 225 AD3d 432 (NY)	denied 5/23/24 (Singas, J.)

In the Matter of 125 COURT STREET, LLC, Appellant, v Yo-
LANDE NICHOLSON, Respondent, et al., Respondents.

Submitted March 11, 2024; decided June 13, 2024

Reported below, 214 AD3d 723.

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain a motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]). Motion for a stay dismissed as academic.

In the Matter of ANGEL P.H. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; ANGEL P.Q., Appellant. (Proceeding No. 1.)

In the Matter of MICHAEL P.H. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; ANGEL P.Q., Appellant. (Proceeding No. 2.)

In the Matter of ALEXANDER H. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; ANGEL P.Q., Appellant. (Proceeding No. 3.)

In the Matter of JADEN P.Q. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; ANGEL G.P.Q., Appellant. (Proceeding No. 4.)

In the Matter of LEAH P.H. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; ANGEL P.Q., Appellant. (Proceeding No. 5.)

Submitted March 11, 2024; decided June 13, 2024

Reported below, 223 AD3d 808.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

GEORGE BORRELLO, New York State Senator, et al., Appellants,
v KATHLEEN C. HOCHUL, New York State Governor, et al.,
Respondents.

Decided June 13, 2024

Reported below, 221 AD3d 1484.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of CARA J. CASTRONUOVA, Appellant, v ANTHONY NUNZIATO et al., Respondents, et al., Respondent.

Submitted June 6, 2024; decided June 13, 2024

Reported below, 227 AD3d 1357.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of MARIATERESA CERAVOLO, Respondent, v DAVID LEFEBVRE, Respondent. (Proceeding No. 1.)

In the Matter of MITCHEL LICHTMAN, Appellant, v MARIATERESA CERAVOLO, Respondent, et al., Respondent. (Proceeding No. 2.)

Submitted April 1, 2024; decided June 13, 2024

Reported below, 217 AD3d 1523 (Appeal No. 1); 217 AD3d 1525 (Appeal No. 2); 217 AD3d 1526 (Appeal No. 3).

Motion for reargument of motion for leave to appeal denied [see 41 NY3d 926 (2024)].

ANDREW DELANEY, Appellant, v HC2, INC., Doing Business as HIRE COUNSEL, Respondent.

Submitted February 5, 2024; decided June 13, 2024

Reported below, 221 AD3d 563.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

In the Matter of RODNEY HARPER, Appellant, v ROBERT NEARY, a Justice of the Supreme Court, Westchester County, et al., Respondents.

Decided June 13, 2024

Reported below, 225 AD3d 595.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous judgment of the Appellate Division absent the direct involvement of a substantial constitutional question (see CPLR 5601).

In the Matter of SELMA HUSEJNOVIC, Appellant, v WILLIAM DEPROSPO, a former Judge of the County Court, Orange County, et al., Respondents.

Decided June 13, 2024

Reported below, 225 AD3d 597.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous judgment of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

KERNNY JACKSON, as Guardian Ad Litem for S.W., Appellant, v CATSKILL REGIONAL MEDICAL CENTER et al., Respondents.

Submitted February 27, 2023; decided June 13, 2024

Reported below, 211 AD3d 890.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NYOMI P. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; IMEISHA P. Appellant. (Proceeding No. 1.)

In the Matter of NA'TORIA P. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; IMEISHA P., Appellant. (Proceeding No. 2.)

Submitted March 18, 2024; decided June 13, 2024

Reported below, 224 AD3d 906.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine a proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHECARDE LICIUS, Appellant.

Submitted May 20, 2024; decided June 13, 2024

Reported below, 82 Misc 3d 18.

Motion for assignment of counsel granted and Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

In the Matter of THE PEOPLE OF THE STATE OF NEW YORK, by
LETITIA JAMES, as Attorney General of the State of New
York, Respondent, v VDARE FOUNDATION, INC., Appellant.

Submitted April 1, 2024; decided June 13, 2024

Reported below, 224 AD3d 516.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied.

In the Matter of THE PEOPLE OF THE STATE OF NEW YORK, by
LETITIA JAMES, as Attorney General of the State of New
York, Respondent, v VDARE FOUNDATION, INC., Appellant.

Submitted May 28, 2024; decided June 13, 2024

Reported below, 224 AD3d 516.

Motion for a stay dismissed as academic.

In the Matter of SUNE G., Appellant, v MICHELLE M., Respon-
dent. (And Other Proceedings.)

Submitted December 18, 2023; decided June 13, 2024

Reported below, 2021 NY Slip Op 70154(U); 2022 NY Slip Op 64429(U); 2022 NY
Slip Op 66554(U); 2023 NY Slip Op 64818(U).

Motion, insofar as it seeks leave to appeal from the portion
of the May 2022 Appellate Division order that dismissed the
appeal from so much of the December 4, 2020 Family Court
“Final Order After Trial” as determined child custody and
visitation and denied the petition for relocation, denied; motion
for leave to appeal otherwise dismissed upon the ground that
the remaining portion of the May 2022 Appellate Division order
and the other Appellate Division orders sought to be ap-
pealed from do not finally determine the proceedings within
the meaning of the Constitution. Motion, insofar as it seeks
change of counsel for the child on appeal, dismissed as aca-
demic; motion for other relief dismissed upon the ground that
the Court of Appeals does not have jurisdiction to entertain the
motion (*see* NY Const, art VI, § 3).

US BANK TRUST NATIONAL ASSOCIATION, Respondent, v NANCY E. NUGENT, Appellant, et al., Defendants.

Submitted March 11, 2024; decided June 13, 2024

Reported below, 187 AD3d 716.

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* 36 NY3d 1084 [2021]; *see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]). Motion, insofar as it seeks leave to appeal from the October 2020 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved in the Court of Appeals for leave to appeal (36 NY3d 1084) from the same Appellate Division order from which she currently seeks leave to appeal (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion, insofar as it seeks leave to appeal from the December 2023 Supreme Court judgment, dismissed upon the ground that such judgment does not finally determine the action within the meaning of the Constitution and thus does not constitute a final judgment within the meaning of CPLR 5602 (a) (1) (ii). Motion for a stay etc. dismissed as academic.

Judge HALLIGAN took no part.

STANTON E. WEAVER JR., Appellant, v MARY E. WEAVER, Respondent. (App Div No. 531541.)

In the Matter of STANTON E. WEAVER JR., Appellant, v MARY E. WEAVER, Respondent. (App Div. No. 532136.)

Submitted December 11, 2023; decided June 13, 2024

Reported below, 198 AD3d 1140; 198 AD3d 1168; 2022 NY Slip Op 75861(U); 2022 NY Slip Op 75862(U).

Motion, insofar as it seeks leave to appeal from (1) so much of the October 2021 Appellate Division order as affirmed so much of the Supreme Court orders in the matrimonial action as awarded arrears and attorneys' fees related thereto, and (2) so much of the additional October 2021 Appellate Division order as resolved the Family Court Act article 4 request for modification and for an award of overpayments, denied; motion for leave to appeal from the December 2022 Appellate Division orders and the remaining portions of the October 2021 orders dismissed upon the ground that they do not finally determine an action or proceeding within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that the Court of Appeals lacks jurisdiction to entertain it (*see* NY Const, art VI, § 3).

EMILY WU , Appellant, v UBER TECHNOLOGIES, INC., Respondent, et al., Defendants.

Submitted May 28, 2024; decided June 13, 2024

Reported below, 219 AD3d 1208.

Motion by Chamber of Commerce of the United States of America et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

JEFFREY P. FALK, on Behalf of Himself and All Others Similarly Situated, Appellant, v NASSAU COUNTY et al., Respondents.

Submitted February 13, 2024; decided June 18, 2024

Reported below, 175 AD3d 607.

Motion for reargument of motion for leave to appeal denied [see 40 NY3d 1058 (2023)].

ANNETTE GAFFNEY, Appellant, v NEW YORK CITY TRANSIT AUTHORITY et al., Respondents, et al., Defendant.

Submitted February 20, 2024; decided June 18, 2024

Reported below, 210 AD3d 426.

Motion, insofar as it seeks leave to appeal as against defendant Alex Lamont Bankston, dismissed as untimely (*see* CPLR 5513 [b]); motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

In the Matter of KASOWITZ, BENSON, TORRES & FRIEDMAN, LLP, Petitioner, v JPMORGAN CHASE BANK, N.A., Appellant, THE DAKOTA, INC., Respondent, and FLETCHER INTERNATIONAL, LTD., et al., Intervenors-Respondents, et al., Respondent.

Submitted May 20, 2024; decided June 18, 2024

Reported below, 209 AD3d 529.

Motion to dismiss appeal denied.

Judge GARCIA took no part.

SHASHI MEHROTRA, Appellant, v GENERAL ELECTRIC COMPANY
et al., Respondents.

Submitted February 20, 2024; decided June 18, 2024

Reported below, 223 AD3d 1038.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL
SHERLOCK, Appellant.

Submitted March 11, 2024; decided June 18, 2024

Reported below, 224 AD3d 709.

Motion for leave to appeal granted. Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DANIELLE WELCH,
on Behalf of CHRISTOPHER ORTIZ, Appellant, v LYNELLE
MAGINLEY-LIDDIE, Respondent.

Submitted April 29, 2024; decided June 18, 2024

Reported below, 225 AD3d 644.

Motion for leave to appeal granted. Motion for poor person relief granted.

In the Matter of STATE OF NEW YORK, Respondent, v KERRY K.,
Appellant.

Decided June 18, 2024

Reported below, 222 AD3d 655.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

ARI TEMAN, Appellant, v ERIC BRAVERMAN, M.D., et al., Respon-
dents, et al., Defendants.

Submitted February 5, 2024; decided June 18, 2024

Reported below, 2023 NY Slip Op 76159(U).

Motion for leave to appeal dismissed upon the ground that no appeal lies from an Appellate Division order dismissing an appeal from an order entered upon default (*see* CPLR 5511).

In the Matter of DONALD J. TRUMP, Appellant, v JUAN M. MERCHANT, A.J.S.C., et al., Respondents.

Decided June 18, 2024

Reported below, 227AD3d 518.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge WILSON and Judge HALLIGAN took no part.

In the Matter of TABITHA WARD, Appellant, v NEW YORK POLICE DEPARTMENT HEADQUARTERS LICENSE DIVISION, Respondent.

Submitted February 5, 2024; decided June 18, 2024

Reported below, 220 AD3d 456.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of WELLS FARGO BANK, NATIONAL ASSOCIATION, et al., Petitioners. AEGON USA INVESTMENT MANAGEMENT, LLC, et al., Respondents; U.S. BANK NATIONAL ASSOCIATION, Appellant, et al., Respondents.

Submitted January 16, 2024; decided June 18, 2024

Reported below, 198 AD3d 156.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge HALLIGAN took no part.

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1995 CAM LLC, Respondent, v WEST SIDE ADVISORS, LLC, et al., Appellants.

Submitted April 15, 2024; decided June 20, 2024

Reported below, 221 AD3d 420.

Motion for reargument of motion for leave to appeal denied [see 41 NY3d 961 (2024)].

In the Matter of the Claim of ANTHONY BELLANTONI, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted February 26, 2024; decided June 20, 2024

Reported below, 2024 NY Slip Op 61326(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

GOOD GATEWAY, LLC, et al., Respondents, v ROHAN THAKKAR, et al., Appellants, et al., Defendant.

Submitted March 25, 2024; decided June 20, 2024

Reported below, 220 AD3d 570.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LILIAN C., Individually and as Guardian of STEFANIE C., an Infant, Appellant, v CITY OF SYRACUSE, Respondent, et al., Defendants.

Submitted April 1, 2024; decided June 20, 2024

Reported below, 224 AD3d 1276.

Motion for leave to appeal dismissed as untimely (see CPLR 5513 [b]).

PETER A. MARASCO, as Owner and Lessor of Certain Real Property, Appellant, et al., Plaintiffs, v EXXONMOBIL OIL CORPORATION, Lessee, et al., Respondents.

Submitted April 1, 2024; decided June 20, 2024

Reported below, 224 AD3d 738.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MATTHEW P., Respondent, v LINNEA W., Appellant.

In the Matter of LINNEA W., Appellant, v MATTHEW P., Respondent.

Submitted March 25, 2024; decided June 20, 2024

Reported below, 2024 NY Slip Op 62455(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of RICHARD MILLS, Appellant, v NEW YORK STATE BOARD OF PAROLE et al., Respondents.

Submitted March 18, 2024; decided June 20, 2024

Reported below, 224 AD3d 1025.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the denial of the motion for compelled disclosure, a sealing order and the assignment of counsel, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

In the Matter of PANASIA ESTATE INC., Appellant, v 29 WEST 19 CONDOMINIUM et al., Respondents.

Submitted March 18, 2024; decided June 20, 2024

Reported below, 224 AD3d 414.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JASON
BOHN, Appellant.

Submitted April 29, 2024; decided June 20, 2024

Reported below, 198 AD3d 669.

Motion for reargument denied [*see* 41 NY3d 455 (2024)].

In the Matter of PARIS SMITH et al., Appellants, v NEW YORK
STATE DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted February 26, 2024; decided June 20, 2024

Motion for leave to appeal dismissed upon the ground that
this Court does not have jurisdiction to entertain it (*see* NY
Const, art VI, § 3; CPLR 5602).

OSCAR VENEGAS, Appellant, v BREUER SHYMER et al., Defend-
ants, and SALAMON'S HOME IMPROVEMENTS, INC., etc., Re-
spondent. (And Third-Party Actions.)

Submitted April 8, 2024; decided June 20, 2024

Reported below, 201 AD3d 1001.

Motion for reargument of motion for leave to appeal denied
[*see* 41 NY3d 902 (2024)] with one hundred dollars costs and
necessary reproduction disbursements.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2024 through June 30, 2024)

People v Alfonso	1st Dept: 223 AD3d 595 (Bronx)	denied 6/19/24 (Singas, J.)
People v Amado	2d Dept: 226 AD3d 699 (Kings)	denied 6/3/24 (Halligan, J.)
People v Archibald	1st Dept: 225 AD3d 548 (Bronx)	denied 6/27/24 (Cannataro, J.)
People v Archinald	1st Dept: 225 AD3d 548 (Bronx)	denied 6/27/24 (Cannataro, J.)
People v Armstrong	1st Dept: 225 AD3d 452 (NY)	denied 6/27/24 (Cannataro, J.)
People v Bacon	1st Dept: 220 AD3d 450 (NY)	granted 6/6/24 (Rivera, J.)

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People v Bagley	App Div, 4th Dept, 2/5/24 (Ontario)	dismissed 6/21/24 (Wilson, Ch. J.)
People v Bartell	1st Dept: 221 AD3d 416 (NY)	denied 6/21/24 (Wilson, Ch. J.)
People v Bartley	1st Dept: 222 AD3d 601 (NY)	denied 6/28/24 (Wilson, Ch. J.)
People v Bensabeur	2d Dept: 225 AD3d 891 (Kings)	denied 6/18/24 (Rivera, J.)
People v Boyde (Johnny)	4th Dept: 224 AD3d 1306 (Onondaga)	denied 6/27/24 (Cannataro, J.) (Appeal No. 1)
People v Boyde (Johnny)	4th Dept: 224 AD3d 1307 (Onondaga)	denied 6/27/24 (Cannataro, J.) (Appeal No. 2)
People v Boyde (Johnny)	4th Dept: 224 AD3d 1307 (Onondaga)	denied 6/27/24 (Cannataro, J.) (Appeal No. 3)
People v Bruce	3d Dept: 220 AD3d 989 (St. Lawrence)	denied 6/28/24 (Halligan, J.)
People v Bryant	4th Dept: 219 AD3d 1677 (Ontario)	denied 6/3/24 (Halligan, J.)
People v Byrd	4th Dept: 225 AD3d 1168 (Onondaga)	denied 6/20/24 (Rivera, J.)
People v Castillo	1st Dept: 226 AD3d 573 (Bronx)	denied 6/14/24 (Singas, J.)
People v Cerroni	4th Dept: 225 AD3d 1117 (Ontario)	denied 6/27/24 (Cannataro, J.)
People v Cheatham	2d Dept: 221 AD3d 827 (Richmond)	denied 6/6/24 (Troutman, J.)
People v Cherry	2d Dept: 225 AD3d 893 (Kings)	denied 6/10/24 (Troutman, J.)
People v Clinton	4th Dept: 222 AD3d 1427 (Monroe)	denied 6/27/24 (Cannataro, J.)
People v Cole-Turner	App Term, 1st Dept: 81 Misc 3d 130(A) (Bronx)	denied 6/6/24 (Troutman, J.)
People v Crawford	1st Dept: 227 AD3d 450 (Bronx)	denied 6/28/24 (Wilson, Ch. J.)
People v Crenshaw	1st Dept: 226 AD3d 519 (Bronx)	denied 6/27/24 (Cannataro, J.)
People v Delaney	1st Dept: 226 AD3d 571 (NY)	denied 6/28/24 (Singas, J.)
People v Delp	4th Dept: 224 AD3d 1335 (Niagara)	denied 6/21/24 (Halligan, J.)
People v Donadeo	2d Dept: 227 AD3d 734 (Suffolk)	denied 6/18/24 (Rivera, J.)
People v Dyer	1st Dept: 223 AD3d 600 (NY)	denied 6/28/24 (Wilson, Ch. J.)
People v Earl	3d Dept: 225 AD3d 1097 (Clinton)	denied 6/10/24 (Troutman, J.)
People v Emanuel B.	1st Dept: 226 AD3d 573 (NY)	denied 6/28/24 (Rivera, J.)

People v Espinal-Ramos	2d Dept: 225 AD3d 621 (Kings)	denied 6/10/24 (Troutman, J.)
People v Faraone	App Div, 2d Dept: 2023 NY Slip Op 71740(U) (Suffolk)	dismissed 6/10/24 (Troutman, J.)
People v Ferrer	3d Dept: 224 AD3d 1092 (Broome)	denied 6/28/24 (Halligan, J.)
People v Flores	App Term, 1st Dept: 81 Misc 3d 137(A) (Bronx)	denied 6/13/24 (Cannataro, J.)
People v Forrest	App Div, 2d Dept: 2024 NY Slip Op 64729(U) (Nassau)	dismissed 6/10/24 (Halligan, J.)
People v Fruster	4th Dept: 225 AD3d 1275 (Monroe)	denied 6/21/24 (Halligan, J.)
People v Gaiter	4th Dept: 224 AD3d 1384 (Erie)	denied 6/21/24 (Halligan, J.)
People v Galvez-Marin	2d Dept: 225 AD3d 622 (Queens)	denied 6/4/24 (Singas, J.)
People v Garcia	1st Dept: 225 AD3d 527 (NY)	denied 6/10/24 (Troutman, J.)
People v Gordon	2d Dept: 226 AD3d 700 (Kings)	denied 6/13/24 (Garcia, J.)
People v Graham (Tyquan)	4th Dept: 221 AD3d 1439 (Onondaga)	denied 6/21/24 (Halligan, J.) (Appeal No. 1)
People v Graham (Tyquan)	4th Dept: 221 AD3d 1441 (Onondaga)	denied 6/21/24 (Halligan, J.) (Appeal No. 2)
People v Green	2d Dept: 223 AD3d 914 (Kings)	denied 6/27/24 (Cannataro, J.)
People v Guiebre	2d Dept: 224 AD3d 773 (Kings)	denied 6/20/24 (Troutman, J.)
People v Gunn	4th Dept: 225 AD3d 1243 (Onondaga)	denied 6/4/24 (Garcia, J.)
People v Hart	4th Dept: 225 AD3d 1158 (Monroe)	denied 6/27/24 (Cannataro, J.)
People v Head	3d Dept: 225 AD3d 1004 (Chemung)	denied 6/28/24 (Halligan, J.)
People v Headley	App Div, 3d Dept: 2024 NY Slip Op 66335(U) (Broome)	dismissed 6/28/24 (Rivera, J.)
People v Hendrickson	App Term, 1st Dept: 81 Misc 3d 143(A) (NY)	denied 6/10/24 (Troutman, J.)
People v Henry	2d Dept: 224 AD3d 706 (Nassau)	denied 6/28/24 (Halligan, J.)
People v Hernandez (Naldo)	2d Dept: 223 AD3d 751 (Queens)	denied 6/13/24 (Troutman, J.)
People v Hernandez (Robert)	1st Dept: 222 AD3d 413 (Kings)	denied 6/28/24 (Wilson, Ch. J.)
People v Hibbert	App Div, 4th Dept, 4/16/24 (Monroe)	dismissed 6/21/24 (Wilson, Ch. J.)
People v Holder	1st Dept: 224 AD3d 513 (Bronx)	denied 6/13/24 (Troutman, J.)

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People v Hubbert	4th Dept: 227 AD3d 1547 (Monroe)	denied 6/18/24 (Rivera, J.)
People v Imes	3d Dept: 226 AD3d 1080 (Broome)	denied 6/28/24 (Singas, J.)
People v Jazz	4th Dept: 225 AD3d 1158 (Monroe)	denied 6/27/24 (Cannataro, J.)
People v Jenkins	4th Dept: 222 AD3d 1412 (Erie)	denied 6/10/24 (Halligan, J.) (Appeal No. 2)
People v Johnson	2d Dept: 225 AD3d 626 (Westchester)	denied 6/4/24 (Singas, J.)
People v Jones (Barron)	App Term, 1st Dept: 82 Misc 3d 131(A) (NY)	denied 6/21/24 (Wilson, Ch. J.)
People v Jones (Chanon)	4th Dept: 224 AD3d 1348 (Onondaga)	denied 6/28/24 (Halligan, J.)
People v Joyce	1st Dept: 226 AD3d 541 (NY)	denied 6/28/24 (Rivera, J.)
People v Kennedy	App Term, 2d Dept, 9th & 10th Jud Dists: 81 Misc 3d 135(A) (Nassau)	denied 6/7/24 (Troutman, J.)
People v Khan	1st Dept: 225 AD3d 552 (Bronx)	denied 6/28/24 (Rivera, J.)
People v King	4th Dept: 224 AD3d 1313 (Onondaga)	denied 6/7/24 (Cannataro, J.)
People v Kuhn	3d Dept: 221 AD3d 1182 (Ulster)	denied 6/21/24 (Halligan, J.)
People v Lewis	1st Dept: 222 AD3d 600 (Bronx)	denied 6/27/24 (Cannataro, J.)
People v Lin	App Term, 1st Dept: 82 Misc 3d 127(A) (NY)	denied 6/14/24 (Singas, J.)
People v Lincoln	App Div, 2d Dept: 2024 NY Slip Op 67367(U) (Suffolk)	dismissed 6/28/24 (Singas, J.)
People v Liriano	1st Dept: 226 AD3d 520 (NY)	denied 6/28/24 (Singas, J.)
People v Louis	App Term, 1st Dept: 82 Misc 3d 127(A) (NY)	denied 6/14/24 (Singas, J.)
People v Luna	1st Dept: 224 AD3d 554 (NY)	denied 6/27/24 (Cannataro, J.)
People v Maclean	3d Dept: 226 AD3d 1178 (Rensselaer)	denied 6/28/24 (Rivera, J.)
People v Maffei	2d Dept: 225 AD3d 898 (Kings)	denied 6/28/24 (Rivera, J.)
People v McGee	App Term, 1st Dept: 81 Misc 3d 138(A) (NY)	denied 6/21/24 (Wilson, Ch. J.)
People v McLeod	1st Dept: 226 AD3d 442 (NY)	denied 6/4/24 (Garcia, J.)
People v Mejia	App Term, 1st Dept: 82 Misc 3d 126(A) (NY)	denied 6/27/24 (Cannataro, J.)
People v Mendez	2d Dept: 213 AD3d 868 (Dutchess)	denied 6/21/24 (Halligan, J.)
People v Mercado	App Term, 1st Dept: 81 Misc 3d 143(A) (Bronx)	denied 6/10/24 (Troutman, J.)

People v Milburn	2d Dept: 226 AD3d 927 (Queens)	denied 6/6/24 (Rivera, J.)
People v Miller	3d Dept: 227 AD3d 1232 (Albany)	denied 6/28/24 (Singas, J.)
People v Morales	1st Dept: 225 AD3d 549 (NY)	denied 6/4/24 (Garcia, J.)
People v Morel (Agustin)	App Term, 1st Dept: 81 Misc 3d 138(A) (NY)	granted 6/27/24 (Wilson, Ch. J.)
People v Morel (Erica)	1st Dept: 224 AD3d 614 (Bronx)	denied 6/28/24 (Singas, J.)
People v Mosley	App Div, 3d Dept: 2024 NY Slip Op 63354(U) (Rensselaer)	dismissed 6/10/24 (Troutman, J.)
People v Naim	2d Dept: 226 AD3d 1053 (Queens)	denied 6/6/24 (Rivera, J.)
People v Nibbs	2d Dept: 222 AD3d 883 (Kings)	denied 6/13/24 (Cannataro, J.)
People v Nivol	2d Dept: 225 AD3d 630 (Queens)	denied 6/28/24 (Halligan, J.)
People v Ocasio	2d Dept: 227 AD3d 735 (Queens)	denied 6/18/24 (Rivera, J.)
People v Odozi	2d Dept: 223 AD3d 757 (Kings)	denied 6/28/24 (Halligan, J.)
People v Parker	1st Dept: 226 AD3d 519 (Bronx)	denied 6/13/24 (Garcia, J.)
People v Pena-Arias	App Term, 1st Dept: 82 Misc 3d 132(A) (Bronx)	denied 6/28/24 (Rivera, J.)
People v Reese	1st Dept: 222 AD3d 535 (NY)	denied 6/21/24 (Wilson, Ch. J.)
People v Richards	2d Dept: 224 AD3d 782 (Kings)	denied 6/13/24 (Troutman, J.)
People v Rideout	2d Dept: 225 AD3d 899 (Queens)	denied 6/3/24 (Halligan, J.)
People v Robinson	1st Dept: 221 AD3d 435 (NY)	granted 6/6/24 (Troutman, J.)
People v Rodriguez	2d Dept: 224 AD3d 783 (Queens)	denied 6/28/24 (Wilson, Ch. J.)
People v Rosado	1st Dept: 224 AD3d 464 (Bronx)	denied 6/13/24 (Troutman, J.)
People v Sanchez	1st Dept: 223 AD3d 482 (Bronx)	denied 6/14/24 (Singas, J.)
People v Sapp	4th Dept: 225 AD3d 1280 (Monroe)	denied 6/3/24 (Halligan, J.)
People v Scott	4th Dept: 224 AD3d 1238 (Erie)	granted 6/24/24 (Wilson, Ch. J.)
People v Sharpton	3d Dept: 225 AD3d 1097 (Clinton)	denied 6/10/24 (Troutman, J.)
People v Smith	App Div, 2d Dept: 2024 NY Slip Op 64750(U) (Suffolk)	dismissed 6/27/24 (Cannataro, J.)
People v Soumare	App Term, 1st Dept: 82 Misc 3d 127(A) (NY)	denied 6/13/24 (Garcia, J.)

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People v Spellicy	4th Dept: 217 AD3d 1359 (Onondaga)	denied 6/28/24 (Halligan, J.)
People v Stewart	1st Dept: 226 AD3d 624 (Bronx)	denied 6/14/24 (Singas, J.)
People v Strawder	1st Dept: 222 AD3d 492 (NY)	denied 6/13/24 (Cannataro, J.)
People v Taylor	2d Dept: 224 AD3d 930 (Kings)	denied 6/10/24 (Troutman, J.)
People v T.D.	1st Dept: 224 AD3d 515 (Bronx)	denied 6/13/24 (Cannataro, J.)
People v Thompson	2d Dept: 225 AD3d 713 (Queens)	denied 6/10/24 (Troutman, J.)
People v Toliver	1st Dept: 227 AD3d 483 (NY)	denied 6/28/24 (Wilson, Ch. J.)
People v Tolliver	1st Dept: 227 AD3d 483 (NY)	denied 6/28/24 (Wilson, Ch. J.)
People v Vester	1st Dept: 226 AD3d 542 (NY)	denied 6/28/24 (Rivera, J.)
People v Villanueva	2d Dept: 222 AD3d 889 (Kings)	denied 6/28/24 (Halligan, J.)
People v Warren	2d Dept: 226 AD3d 711 (Kings)	denied 6/10/24 (Troutman, J.)
People v Watson	App Term, 1st Dept: 82 Misc 3d 131(A) (Bronx)	denied 6/28/24 (Singas, J.)
People v Williams (Colyn)	3d Dept: 224 AD3d 998 (Broome)	denied 6/27/24 (Cannataro, J.)
People v Williams (Don)	4th Dept: 225 AD3d 1295 (Erie)	denied 6/27/24 (Cannataro, J.)
People v Woods	1st Dept: 224 AD3d 614 (Bronx)	denied 6/28/24 (Singas, J.)
People v Zuneail W.	2d Dept: 226 AD3d 711 (Queens)	denied 6/10/24 (Troutman, J.)

[238 NE3d 844, 214 NYS3d 688]

AMBER R., as Administratrix of the Estate of B.M.-R., Deceased,
Appellant, v PEDIATRIC & ADOLESCENT URGENT CARE OF
WESTERN NEW YORK, PLLC, et al., Respondents, et al., De-
fendant.

Decided April 18, 2024

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered July 28, 2023. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme

Court, Erie County (Frederick J. Marshall, J.), which, insofar as appealed from, had denied in part the motion of defendants for summary judgment dismissing the amended complaint; (2) granted the motion in its entirety; and (3) dismissed the amended complaint.

Amber R. v Pediatric & Adolescent Urgent Care of W. N.Y., PLLC, 218 AD3d 1344, reversed.

HEADNOTE

Physicians and Surgeons — Malpractice — Summary Judgment

The Appellate Division order dismissing the amended complaint in plaintiff's medical malpractice action was reversed, as triable issues of fact existed as to the claim for medical malpractice with respect to the placement of the endotracheal tube in the infant.

APPEARANCES OF COUNSEL

Hoover & Durland LLP, Buffalo (*Timothy W. Hoover* and *Spencer L. Durland* of counsel), and *Penberthy Law Group*, Buffalo (*Brittanylee Penberthy* of counsel), for appellant.

Gibson, McAskill & Crosby, LLP, Buffalo (*Kathleen M. Sweet*, *Melissa L. Zittel* and *Michael J. Willett* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and order of Supreme Court, Erie County, reinstated. Triable issues of fact exist as to the claim for medical malpractice with respect to the placement of the endotracheal tube in the infant (*see Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012]).

Concur: Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN.

MARJORIE BYRNES, Individually and as a Member of New York State Assembly, et al., Appellants, v SENATE OF THE STATE OF NEW YORK et al., Respondents, and ROBERT ORTT, as Minority Leader of the Senate, et al., Appellants, et al., Defendant.

Decided July 11, 2024

Reported below, 228 AD3d 1363.

Appeal taken by Marjorie Byrnes, etc. et al. dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal taken by Robert Ortt, etc. et al. dismissed without costs, by the Court of Appeals sua sponte, upon the ground that they are not parties aggrieved (*see* CPLR 5511).

[239 NE3d 180, 215 NYS3d 74]

GREGORY MORRISON, Appellant, v NEW YORK CITY HOUSING
AUTHORITY, Respondent.

Argued March 13, 2024; decided April 18, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 25, 2022. The Appellate Division affirmed an order of the Supreme Court, New York County (Paul A. Goetz, J.), which had granted defendant's motion for summary judgment dismissing the complaint.

Morrison v New York City Hous. Auth., 209 AD3d 588, affirmed.

HEADNOTE

Negligence — Maintenance of Premises — Slip and Fall

In a premises liability action in which plaintiff asserted that defendant apartment building owner was liable for injuries plaintiff sustained when he slipped and fell on a wet substance on the building's stairs because defendant negligently painted the treads on the stairs such that the treads had an inadequate coefficient of friction when wet, the grant of summary judgment to defendant was affirmed. Because the alleged hazardous condition existed only when the stairs were wet, defendant established its *prima facie* entitlement to summary judgment by demonstrating that it did not affirmatively create the wet condition or have actual or constructive notice of that condition. Plaintiff failed to raise a triable issue of fact in response.

APPEARANCES OF COUNSEL

Wiese & Aydiner PLLC, Mineola (*Si Aydiner* of counsel), and *Pulvers, Pulvers & Thompson, LLP*, New York City, for appellant.

Cullen and Dykman LLP, New York City (*Diana Neyman* of counsel), for respondent.

Thomas E. Liptak, Defense Association of New York, Inc. (Brendan T. Fitzpatrick, Andrew Zajac, Rona L. Platt, Matthew S. Lerner and Lisa L. Gokhulsingh of counsel), for Defense Association of New York, Inc., amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Plaintiff brought the instant premises liability action against defendant seeking damages for injuries he allegedly sustained when he slipped and fell on a wet substance on the stairs of an apartment building owned by defendant. Plaintiff asserts that defendant is liable because defendant negligently painted the treads on the stairs such that the treads have an inadequate coefficient of friction when wet. Because the alleged hazardous condition exists only when the stairs are wet, defendant established its prima facie entitlement to summary judgment by demonstrating that it did not affirmatively create the wet condition or have actual or constructive notice of that condition (*see Parietti v Wal-Mart Stores, Inc.*, 29 NY3d 1136, 1137 [2017]). We agree with the Appellate Division that plaintiff failed to raise a triable issue of fact in response (*see* 209 AD3d 588 [1st Dept 2022]).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, with costs, in a memorandum.

MARJORIE BYRNES, Individually and as a Member of the New York State Assembly, et al., Appellants, v SENATE OF THE STATE OF NEW YORK et al., Respondents, and ROBERT ORTT, as Minority Leader of the Senate, et al., Appellants, et al., Defendant.

Submitted July 29, 2024; decided July 31, 2024

Reported below, 228 AD3d 1363.

Motion by Marjorie Byrnes, individually and as a member of the New York State Assembly, et al. for leave to appeal denied. Motion by Robert Ortt, as Minority Leader of the Senate, et al. for leave to appeal dismissed upon the ground that they are not parties aggrieved (*see* CPLR 5511).

In the Matter of SHANI JETER, Appellant, v SHEILA POOLE, as
Commissioner of the New York State Office of Children
and Family Services, et al., Respondents.

Submitted July 22, 2024; decided July 31, 2024

Reported below, 206 AD3d 556.

Motion by New York State Bar Association for leave to file a
brief amicus curiae on the appeal herein granted and the
proposed brief is accepted as filed. Two copies of the brief must
be served, an original and nine copies filed, and the brief
submitted in digital format within seven days.

In the Matter of SHANI JETER, Appellant, v SHEILA POOLE, as
Commissioner of the New York State Office of Children
and Family Services, et al., Respondents.

Submitted July 22, 2024; decided July 31, 2024

Reported below, 206 AD3d 556.

Motion by New York University School of Law Family
Defense Clinic et al. for leave to appear amicus curiae on the ap-
peal herein denied (*see* Rules of Ct of Appeals [22 NYCRR] §
500.23 [“Amicus curiae relief will be denied where acceptance
of the amicus curiae submission may cause the recusal or
disqualification of one or more Judges of the Court”])).

Judges RIVERA and HALLIGAN took no part.

In the Matter of SHANI JETER, Appellant, v SHEILA POOLE, as
Commissioner of the New York State Office of Children
and Family Services, et al., Respondents.

Submitted July 22, 2024; decided July 31, 2024

Reported below, 206 AD3d 556.

Motion by Center for Family Representation for leave to file
a brief amicus curiae on the appeal herein granted and the
proposed brief is accepted as filed. Two copies of the brief must
be served, an original and nine copies filed, and the brief
submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY BLUE, Appellant.

Submitted July 22, 2024; decided July 31, 2024

Reported below, 202 AD3d 546.

Motion by The Legal Aid Society, Inc. for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

ELISE STEFANIK et al., Appellants, v KATHY HOCHUL, as Governor of the State of New York, et al., Respondents.

Submitted July 15, 2024; decided July 31, 2024

Reported below, 229 AD3d 79.

Motion by Public Interest Legal Foundation for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

ELISE STEFANIK et al., Appellants, v KATHY HOCHUL, as Governor of the State of New York, et al., Respondents.

Submitted July 15, 2024; decided July 31, 2024

Reported below, 229 AD3d 79.

Motion by Common Cause New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

ELISE STEFANIK et al., Appellants, v KATHY HOCHUL, as Governor of the State of New York, et al., Respondents.

Submitted July 15, 2024; decided July 31, 2024

Reported below, 229 AD3d 79.

Motion by Richard Briffault et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

ELISE STEFANIK et al., Appellants, v KATHY HOCHUL, as
Governor of the State of New York, et al., Respondents.

Submitted July 15, 2024; decided July 31, 2024

Reported below, 229 AD3d 79.

Motion by Center for Election Confidence, Inc. for leave to
file a brief amicus curiae on the appeal herein granted and the
proposed brief is accepted as filed.

ELISE STEFANIK et al., Appellants, v KATHY HOCHUL, as
Governor of the State of New York, et al., Respondents.

Submitted July 15, 2024; decided July 31, 2024

Reported below, 229 AD3d 79.

Motion by Government Justice Center, Inc. for leave to file a
brief amicus curiae on the appeal herein granted and the
proposed brief is accepted as filed.

ELISE STEFANIK et al., Appellants, v KATHY HOCHUL, as
Governor of the State of New York, et al., Respondents.

Submitted July 22, 2024; decided July 31, 2024

Reported below, 229 AD3d 79.

Motion by The Leadership Now Project, Inc. for leave to file
a brief on the appeal herein denied (*see* Rules of Ct of Appeals
[22 NYCRR] § 500.23 [“Amicus curiae relief will be denied
where acceptance of the amicus curiae submission may cause
the recusal or disqualification of one or more Judges of the
Court”]).

Judge RIVERA took no part.

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ABUSE OF PROCESS.

See PROCESS; TORTS

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles

ADMINISTRATORS.

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See BROKERS; INSURANCE; PRINCIPAL AND AGENT

ALIMONY.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

ANNULMENT OF MARRIAGE.

See MARRIAGE

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

ACADEMIC AND MOOT QUESTIONS.

1. Exception to Mootness Doctrine — Modification of Securing Order.—The appeal from the Appellate Division's judgment sustaining defendant's writ of habeas corpus to the extent of remitting the case to Supreme Court to conduct a CPL 530.60 (2) (c) evidentiary hearing on the modification of defendant's securing order was rendered moot by Supreme Court's order remanding defendant in accordance with the procedures in CPL 530.60 (2) (c). Although defendant was no longer entitled to habeas relief, the mootness exception applied as the issue of the procedures governing modifications to securing orders when a defendant is charged with additional class A or violent felonies while at liberty was novel, likely to recur and would typically evade review. Accordingly, the proceeding was converted to a declaratory judgment action to resolve the open issue. *People ex rel. Rankin v Brann*, 41 NY3d 436.

ARBITRATION.

See, also, INSURANCE

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER

ATTORNEY AND CLIENT.

MISCONDUCT BY ATTORNEY.

1. Deceit or Collusion — Calculation of Fees.—Defendants, the law firm and individual attorney who had represented plaintiffs in a prior medical malpractice ac-

ATTORNEY AND CLIENT—Cont'd

tion, were entitled to summary judgment on plaintiffs' claim under Judiciary Law § 487 that defendants deceived them and the trial court in the prior action about the legal fees they were entitled to by proffering an illegal and improper interpretation of Judiciary Law § 474-a's fee schedule. Defendant attorney had submitted to the trial court an exhibit calculating the attorneys' fee as to each defendant in the medical malpractice action, consistent with his interpretation of the fee schedule. His calculations were supported by a legal argument that was not clearly foreclosed by any existing precedent, and he was transparent with the tribunal about how he arrived at those calculations. Plaintiffs did not identify a material issue of fact as to whether defendant attorney's representations that the fee calculations comported with the statutory schedule amounted to false statements. To the extent that plaintiffs also alleged that defendant attorney violated section 487 with respect to the deduction of litigation expenses from the settlement sum, which expenses were disclosed to the court when the settlement was approved, plaintiffs similarly failed to establish a material, triable issue of fact. *Urias v Daniel P. Buttafuoco & Assoc., PLLC*, 41 NY3d 560.

2. Deceit or Collusion — Plenary Action.—A Judiciary Law § 487 claim may be brought in a plenary civil action where a plaintiff alleges that attorney deceit led to an adverse judgment or order. The text of the statute allows recovery of treble damages “in a civil action” where an attorney “[i]s guilty of any deceit or collusion . . . with intent to deceive the court or any party” (Judiciary Law § 487). Recognizing that our legal system depends on the integrity of attorneys who fulfill the role of officers of the court, furthering its truth-seeking function, the statute creates a cause of action for attorney deceit that is distinct from common-law fraud or legal malpractice. Although the interest in finality of judgments generally constrains a court's authority to revisit a final judgment in a collateral action to a CPLR 5015 motion to vacate an underlying judgment, the phrase “in a civil action” in section 487 is most naturally read to include a plenary action. Section 487 does not differentiate between an action that might undermine or undo a final judgment and one that does not, or between allegations of fraud that are intrinsic to the underlying action, as opposed to extrinsic. Moreover, its legislative history reflects a consistent view that attorney deceit in the course of litigation warrants substantial penalties in the form of criminal liability and treble damages. By comparison, CPLR 5015 (d) offers a discretionary remedy that includes restitution in like manner and subject to the same conditions as where a judgment is reversed or modified on appeal. *Urias v Daniel P. Buttafuoco & Assoc., PLLC*, 41 NY3d 560.

BAIL.**REVOCATION.**

1. Commission of Felonies while at Liberty — Procedure for Modification of Securing Order.—Where a defendant is initially charged with a qualifying felony offense, released on bail, and subsequently accused of committing additional violent felonies, the securing order may be modified by means of the provisions of either CPL 530.60 (1) or (2) (a). If a defendant's charged crimes render a case otherwise eligible under either subdivision, no one approach is exclusive—nothing in subdivision (2) (a) limits the court's ability to modify a defendant's bail under subdivision (1). The People may make a modification application, or the court on its own initiative may order such a modification, under either subdivision, but the record must support the course charted. Where the court proceeds under CPL 530.60 (1), the record must reflect that the decision was based on the risk of flight factors and criteria expressly listed in the CPL (*see* CPL former 510.30 [1] [a]-[h], now 510.10 [1] [a]-[j]). Where, as here, the record does not demonstrate that the court's decision was based on defendant's increased risk of flight, it will be assumed that the court proceeded pursuant to CPL 530.60 (2) (a) and a failure to follow the procedural requirements of CPL 530.60 (2) (c) will be considered error. *People ex rel. Rankin v Brann*, 41 NY3d 436.

BANKS AND BANKING.

See, also, **BILLS, NOTES AND CHECKS**

BILLS, NOTES AND CHECKS.

See, also, BANKS AND BANKING

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

CITIES.

See MUNICIPAL CORPORATIONS

CIVIL RIGHTS.**DISCRIMINATION IN EMPLOYMENT.**

1. Personal Impact in New York State or City — Nonresident Deprived of New York State- or City-Based Job Opportunity.—The New York City and New York State Human Rights Laws each protect nonresidents who are not yet employed in the city or state but who proactively sought an actual city- or state-based job opportunity. The Human Rights Laws, which cover “inhabitants” and “individual[s] within this state,” are required to be construed liberally to accomplish the remedial purposes that they serve (Executive Law §§ 290 [3]; 300; Administrative Code of City of NY §§ 8-101, 8-130 [a]). With respect to nonresidents, not all are excluded from the protection of the Human Rights Laws; rather, nonresidents seeking to assert claims under the State and City Human Rights Laws must satisfy an “impact” test in one of two ways: either working in New York or establishing that the challenged conduct had some impact on the plaintiff within the respective New York geographic boundaries. A nonresident who has been discriminatorily denied a job in New York City or State loses the chance to work, and perhaps live, within those geographic areas. The prospective employee personally feels the impact of a discriminatory refusal to promote or hire in New York City or State, because that is where the person wished to work and perhaps relocate and where they were denied the chance to do so. *Syed v Bloomberg L.P.*, 41 NY3d 446.

JUDICIAL REVIEW.

2. Adverse Action Element of Retaliation Claim — Threat of Litigation.—A threat of litigation may constitute the requisite adverse action to support a retaliation claim under the New York State Human Rights Law. Accordingly, in related Executive Law § 298 proceedings, substantial evidence supported the determination of respondent New York State Division of Human Rights (DHR) that a letter sent by petitioner attorney on petitioner housing facility’s behalf to respondent not-for-profit corporation and its employee, following DHR’s dismissal of a complaint alleging that the housing facility engaged in familial status discrimination during a test call placed by the employee, amounted to adverse action. Determining whether a threat of litigation amounts to adverse action is properly left to a fact-specific determination. A per se rule precluding litigation threats from constituting adverse action would impermissibly restrict New York’s antiretaliation statute (*see* Executive Law § 296 [7]) in violation of the legislative directive to construe the Human Rights Law liberally to eliminate discrimination in this state (*see id.* § 300). Here, DHR rationally concluded that the letter threatened litigation, as it specifically stated that the housing facility was looking to the corporation and its employee for damages and warned that the facility would proceed as necessary to obtain such damages. Further, the record established that the attorney’s letter “shocked” the corporation’s employees and forced the corporation to expend resources and “scramble . . . to locate counsel” to address the threat. In the circumstances presented, it was rational for DHR to conclude that the threatening letter caused the corporation to divert resources and could have dissuaded a

CIVIL RIGHTS—Cont'd

person from pursuing a discrimination claim to protect their rights under the Human Rights Law. *Matter of Clifton Park Apts., LLC v New York State Div. of Human Rights*, 41 NY3d 326.

3. Retaliation Claim — Burden to Establish Protected Activity.—In determining whether petitioner housing facility and its attorney engaged in retaliation in violation of the New York State Human Rights Law by sending a letter threatening litigation to respondent not-for-profit corporation and its employee, respondent New York State Division of Human Rights (DHR) improperly shifted the burden when analyzing whether the corporation engaged in protected activity. Petitioners sent the letter following DHR's dismissal of the corporation's complaint alleging that the housing facility engaged in familial status discrimination during a test call placed by the employee. Appellate Division and DHR precedent required the corporation and its employee to demonstrate that they were engaged in protected activity by showing that the initial complaint to DHR was based on a reasonable belief that the housing facility had engaged in unlawful housing discrimination during the test call. DHR therefore erred by putting the burden on petitioners to show that the allegations advanced by the corporation in the initial DHR complaint were made in bad faith. Because DHR failed to make any non-conclusory factual findings on this issue, remittal was necessary so that DHR could determine whether the corporation and its employee established the "protected activity" element of the retaliation claim. *Matter of Clifton Park Apts., LLC v New York State Div. of Human Rights*, 41 NY3d 326.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles

RETIREMENT AND PENSION BENEFITS.

1. Death Benefits — Accidental Death Benefits for Death Related to COVID-19.—In a proceeding arising out of decedent member's death in April 2020 from COVID-19 related causes while still in service, respondent public retirement system's denial of a claim for ordinary death benefits by petitioner, decedent's registered domestic partner and designated beneficiary, in favor of decedent's daughter's claim for accidental death benefits under Retirement and Social Security Law § 607-i was not irrational. The text of section 607-i, providing that accidental death benefits "shall" be paid to the statutory beneficiaries of members who contracted COVID-19 within 45 days of reporting to work on or after March 1, 2020, and died of related causes, refuted petitioner's claim. That was consistent with the statute's legislative history indicating that entitlement to the accidental death benefit is mandatory upon proper proof. In addition, even prior to enactment of section 607-i, an ordinary death benefit was only available when accidental death benefits were unavailable. *Matter of Colon v Teachers' Retirement Sys. of the City of N.Y.*, 41 NY3d 978.

2. Impairment of Benefits — Accidental Death Benefits for Death Related to COVID-19.—Petitioner, the registered domestic partner and designated beneficiary of ordinary death benefits of a public retirement system member who died in April 2020 from COVID-19 related causes while still in service, failed to establish that amendments to the Retirement and Social Security Law providing that accidental death benefits "shall" be paid to the statutory beneficiaries of members who contracted COVID-19 within 45 days of reporting to work on or after March 1, 2020, and died of related causes (Retirement and Social Security Law § 607-i) violated the Pension Impairment Clause of the New York Constitution (art V, § 7 [a]). Whether a benefit attendant to membership in a pension plan is impaired is considered from the member's perspective. Here, the record did not establish that section 607-i effected any change to decedent's benefits, let alone impaired them, because it was unclear whether his death would have qualified for accidental death benefits under preexisting law. Moreover, no absolute right to choose a beneficiary exists, given that members cannot designate a beneficiary for accidental death benefits or know whether they will die as a result of a work-related accident.

CIVIL SERVICE—Cont'd

Expanding the availability of accidental death benefits, the amount of which is always equal to or greater than that of ordinary death benefits, only increased the potential value of the available benefits. Finally, even assuming that the “vesting” of benefits could confer rights under the Pension Impairment Clause independent of the member’s, petitioner failed to show that she had any such vested right. *Matter of Colon v Teachers’ Retirement Sys. of the City of N.Y.*, 41 NY3d 978.

CLUBS.

See ASSOCIATIONS

CONDEMNATION.

See EMINENT DOMAIN

CONFLICT OF LAWS.**LAW GOVERNING CONTRACT ACTIONS.**

1. New York Choice-of-Law Provision — Choice-of-Law Rules under New York Uniform Commercial Code for Determining Validity of Securities.—In plaintiffs’ federal action arising out of a bond swap offer by Venezuela’s state-owned oil company, determination of whether the notes and governing documents, which provided that they “shall be governed by” New York law, were invalid because the offer involved a contract of national public interest requiring approval by the Venezuelan National Assembly required application of Venezuela’s law, as matters going to the “validity of [the] security” are governed by “[t]he local law of the issuer’s jurisdiction” under UCC 8-110 (a) (1). Because the parties chose New York law, the documents were generally governed by New York’s substantive law, except in the narrow category of cases subject to the statutory choice-of-law directives set forth in General Obligations Law § 5-1401 (1), including that where UCC 8-110 “specifies the applicable law, that provision governs” (UCC 1-301 [c] [6]). UCC 8-110 (a) (1) contains the UCC’s choice-of-law rules for the validity of securities, providing that “[t]he local law of the issuer’s jurisdiction, as specified in subsection (d), governs . . . the validity of a security.” General Obligations Law § 5-1401 states explicitly that it “shall not apply” where UCC 8-110 is applicable (General Obligations Law § 5-1401 [1] [c]). Because UCC 8-110 applied, any issue of the validity of a security issued pursuant to the governing documents was to be determined by the law of the issuer’s jurisdiction. As the issuer was a Venezuelan entity, the law of Venezuela was determinative of the issue of validity. *Petróleos de Venezuela S.A. v MUFG Union Bank, N.A.*, 41 NY3d 462.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles

COUNTIES.

See, also, MUNICIPAL CORPORATIONS

COURT OF CLAIMS.

See STATE

COURTS.**APPELLATE DIVISION.**

1. Scope of Review — Issues Not Decided Adversely to Defendant.—In a criminal prosecution in which a canine was used to sniff defendant’s body for the presence of narcotics following a traffic stop, the Appellate Division lacked jurisdiction under CPL 470.15 to decide that a canine sniff search of a person requires reasonable suspicion and was justified in this case, where County Court did not decide those issues adversely to defendant. CPL 470.15 (1) functions as a legislative re-

COURTS—Cont'd

striction on the Appellate Division's power to review issues either decided in an appellant's favor, or not ruled upon, by the trial court. Thus, the statute barred the Appellate Division from affirming defendant's judgment based on a ground not decided adversely to him by the suppression court. County Court held that the canine sniff of defendant's person did not qualify as a search. The court did not decide the standard that would govern if the canine sniff did so qualify, much less whether that standard was met. Those questions presented separate and analytically distinct issues from the threshold question of whether the sniff implicated constitutional protections or prohibitions. Additionally, it was unclear whether County Court's conclusion that defendant "abandoned" the narcotics during his flight from police was premised on its holding that the canine sniff of defendant was not a search and was acceptable. Because abandonment analysis turns largely on whether the law enforcement conduct preceding the purported abandonment was lawful or unlawful, consideration of that issue was referred back to County Court. *People v Butler*, 41 NY3d 186.

JURISDICTION.

2. Specific Personal Jurisdiction over Successor Corporate Entity.—Where an entity acquires all of another entity's liabilities and assets, but does not merge with that entity, it inherits the acquired entity's status for purposes of specific personal jurisdiction. The relevant factors in considering successor jurisdiction include the impact of the New York rule on parties to a potential acquisition, whether imputing jurisdiction fairly reflects the reasonable assumptions and expectations of the parties to such transactions, whether doing so induces responsible parties to internalize responsibility for risks they create, and the impact of imputing jurisdiction on those injured by a predecessor's acts. Those factors tip in favor of allowing successor jurisdiction where a successor purchases all assets and liabilities. Sophisticated corporate entities will undoubtedly engage in robust due diligence before agreeing to acquire all assets and liabilities of another entity. In doing so, they should understand where jurisdiction over such liabilities may lie and the potential cost if ultimately found liable, and will presumably negotiate a purchase price that is discounted by that prospect. *Lelchook v Société Générale de Banque au Liban SAL*, 41 NY3d 629.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles

APPEAL.

1. Preservation of Issue for Review.—In a prosecution for criminal sale of a controlled substance in the third degree in which the trial court denied defendant's motion for an independent source hearing and, instead, used an undercover police officer's prior testimony at a probable cause hearing to render a determination on whether the officer had an independent source for his prospective in-court identification of defendant, the question of whether defendant was entitled to a separate independent source hearing was preserved. In his omnibus motion, defendant requested that, in the event the court suppressed the undercover officer's confirmatory identification as the product of an unlawful seizure, it should hold an independent source hearing "pursuant to *People v Gethers* (86 NY2d 159 [1995])." Defendant then renewed his request when the court suppressed the confirmatory identification, again citing *Gethers* (86 NY2d at 159). These measures made the defense's position known to the court, thereby furnishing the court with an opportunity to provide him with the relief he sought. In response, the court "expressly decided" against holding a separate hearing. A preserved "question of law" was therefore before the Court of Appeals (CPL 470.05 [2]). *People v Williams*, 41 NY3d 551.

2. Preservation of Issue for Review.—In the prosecution of defendant arising from his display of a loaded gun during an argument over a parking space when

CRIMES—Cont'd

he was 17 years old and resulting in his conviction for second-degree criminal possession of a weapon, defendant's arguments for youthful offender eligibility based on the recent U.S. Supreme Court decision in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]) were unpreserved and thus unreviewable for the reasons stated in *People v Cabrera* (41 NY3d 35 [2023]). Nor was the preservation exception permitting appellate review when a sentence's illegality is readily discernible from the trial record applicable. *Bruen* alone does not compel the conclusion that New York's criminal possession of a weapon statutes are unconstitutional, particularly absent the development of a record in the trial court. *People v Rivera*, 41 NY3d 936.

3. Preservation of Issue for Review — Constitutional Challenges to Firearm Licensing Scheme.—In defendant's prosecution for criminally possessing a weapon, defendant's contentions that Penal Law § 265.03 (3) is facially unconstitutional under *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]) and impermissibly shifts the burden of production to show licensure to the defendant were unpreserved for appellate review, and the mode of proceedings exception to the preservation requirement did not apply. Initially, an unpreserved Second Amendment challenge to Penal Law § 265.03 (3) based on *Bruen* is unreviewable. There is a very narrow exception to the preservation requirement for a tightly circumscribed class of nonwaivable errors that go to the essential validity of the proceedings conducted below. However, the "mode of proceedings" exception does not categorically exempt from preservation all claims related to the shifting of burdens at trial. Rather, errors that fall short of expressly shifting the burden of persuasion to the defendant must be timely preserved. Moreover, Penal Law § 265.03 (3) shifts only the burden of production to the defendant, while the burden of persuasion on licensure always remains with the People. The shift in the burden of production alone effectuated by Penal Law § 265.03 (3) does not impinge on the validity of a proceeding to the same extent as requiring the defendant to bear the entire burden of proof. Nor was defendant's challenge reviewable on the grounds that the accusatory instrument was facially defective in failing to plead all constitutionally required elements, thereby depriving Supreme Court of jurisdiction. In such circumstances, preservation is required. *People v David*, 41 NY3d 90.

4. Preservation of Issue for Review — Constitutionality of Criminal Possession of Weapon Statutes.—In a prosecution for criminal possession of a weapon in the second degree, the Court of Appeals did not reach defendant's arguments, raised for the first time in that Court, that the statutory provisions under which he was convicted were unconstitutional in light of *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]). Defendant's arguments that *Bruen* rendered Penal Law §§ 265.03 (1) (b) and (3) and 265.15 (4) facially unconstitutional, and rendered section 265.03 (3) unconstitutional as applied to him, required preservation for the same reasons set forth in *People v Cabrera* (41 NY3d 35 [2023]). *People v Garcia*, 41 NY3d 62.

5. Preservation of Issue for Review — Intervening Supreme Court Precedent.—In defendant's prosecution for criminally possessing firearms, the Court of Appeals declined to reach the merits of defendant's challenge to Penal Law § 265.03 (3) as unconstitutional in light of *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]), decided after his appeal to the Appellate Division, because defendant failed to preserve his Second Amendment arguments for appellate review. Preservation is essential where the failure to raise a claim in the court of first instance means that the appellate record is inadequate to fairly assess the merits, even if governing law was altered by an intervening U.S. Supreme Court decision. Defendant's claims were not foreclosed by binding precedent from the Court of Appeals or the U.S. Supreme Court at the time of trial, nor were they unanticipated at the time of his trial. Moreover, *Bruen* did not directly address the constitutional questions defendant sought to raise on appeal, as it did not address the rest of New York's licensing scheme or the interplay between the invalidation of New York's proper cause requirement and state statutes criminalizing unlicensed possession of a firearm. Further, the failure to preserve Second Amendment challenges in the court of first instance stymied the development of a record that would

CRIMES—Cont'd

allow for careful and deliberate adjudication on the merits of constitutional challenges presented. Defendant's as-applied challenges were similarly unreviewable, as his failure to preserve his Second Amendment claim deprived the government of the opportunity to argue that he would have been otherwise ineligible to obtain a license and thus was not aggrieved by the proper cause requirement. *People v Cabrera*, 41 NY3d 35.

6. Validity of Appeal Waiver.—Defendant's waiver of the right to appeal was invalid and unenforceable pursuant to the analysis in *People v Thomas* (34 NY3d 545 [2019]) and *People v Bisoño* (36 NY3d 1013 [2020]). *People v Appiah*, 41 NY3d 949.

CONFESSION.

7. Custodial Status.—In a criminal prosecution, Supreme Court erred in denying defendant's motion to suppress statements he made while handcuffed and in response to questions from a detective regarding guns in his vehicle and his lack of a New York firearm license, where it was undisputed that defendant had not received *Miranda* warnings when he answered the detective's questions and there was no record support for the conclusion that defendant was not in custody for *Miranda* purposes. A reasonable innocent person in defendant's position could not have felt free to leave when three law enforcement officers approached him at night, on a residential street, and handcuffed him before questioning him about the firearms in his vehicle. The level to which the police restricted defendant's movement was of a degree associated with a formal arrest. Nor did the record suggest that the defendant had any reason to believe that he would be handcuffed only for a limited duration. Nonetheless, the Court of Appeals declined to adopt a per se rule that the use of handcuffs places an individual in custody for purposes of *Miranda* in all instances. The custodial status analysis is inherently fact-specific, as it turns on the point of view of a reasonable person innocent of any wrongdoing under the circumstances. *People v Cabrera*, 41 NY3d 35.

DISCLOSURE.

8. Discovery Items Disclosed after Filing Certificate of Compliance — Due Diligence.—In a criminal prosecution, the People's certificate of compliance (COC) with their statutory disclosure obligations, filed weeks before they turned over key discovery items subject to automatic disclosure under CPL 245.20, was not properly filed and their statement of readiness for trial was therefore illusory for purposes of CPL 30.30, where the People failed to show they had exercised due diligence and made reasonable efforts to identify mandatory discovery prior to filing the COC. The key question in determining if a proper COC has been filed is whether the prosecution has "exercis[ed] due diligence and ma[de] reasonable inquiries to ascertain the existence of material and information subject to discovery" (CPL 245.50 [1]). The "due diligence" standard requires the People to make reasonable efforts to comply with statutory directives. Post-filing disclosure and a supplemental COC cannot compensate for a failure to exercise diligence before the initial COC is filed. CPL 245.50 (3) and 30.30 (5), taken together, plainly require that the People file a proper COC reflecting that they have complied with their disclosure obligations before they may be deemed ready for trial. These provisions thus condition trial readiness for purposes of CPL 30.30 on the filing of a proper COC. The belated disclosure here consisted of routinely produced disclosure materials, the creation of at least one of which was mandated by law. The absence of such significant items of disclosure was readily noticed by the defense, which then brought it to the attention of the People and the court. The prosecution had two opportunities to establish that they had exercised due diligence, but failed to do so. *People v Bay*, 41 NY3d 200.

HARMLESS AND PREJUDICIAL ERROR.

9. Cash Found in Same Location as Handguns.—In defendant's prosecution for criminally possessing handguns found during an inventory search of his vehicle, any error by the trial court in allowing testimony related to cash found in the same compartment as the guns was harmless. While the connection between the

CRIMES—Cont'd

presence of the cash in the same location as the guns and defendant's knowledge that the guns were present may have been tenuous and the probative value thus limited, the risk of prejudice was low given that the testimony about the cash was brief and accompanied the general list of items found in the inventory search. *People v David*, 41 NY3d 90.

10. Overwhelming Evidence of Guilt.—In a criminal prosecution arising out of a shooting incident captured in a grainy video by police surveillance cameras, the trial court's error in admitting lay, non-eyewitness testimony from a detective, who had not met defendant until seven months after the incident while investigating a different crime, identifying defendant as the shooter in the video was not harmless. Unless the proof of the defendant's guilt, without reference to the error, is overwhelming, there is no occasion for consideration of any doctrine of harmless error. Here, the only evidence tying defendant to the crime was the low-quality video and the detective's identification testimony. Without the detective's testimony, the People presented no more evidence than they did in their first indictment, which was dismissed for insufficient evidence. *People v Mosley*, 41 NY3d 640.

IDENTIFICATION OF DEFENDANT.

11. Admissibility of Non-Eyewitness Identification Testimony.—Testimony from someone who is not an eyewitness to a crime identifying the defendant as the person depicted in a photo or video may be admitted where the witness is sufficiently familiar with the defendant that their testimony would be reliable, and there is reason to believe the jury might require such assistance in making its independent assessment. The relevant question is whether the proffered testimony serves to aid the jury in making an independent assessment regarding whether the person in the photo or video was indeed the defendant. To answer in the affirmative, there must be some basis for concluding that the witness is more likely to correctly identify the defendant from the photo or video than is the jury. The inquiry requires a totality of the circumstances test, which preserves the discretion of the trial court. First, the court must determine whether the witness has had sufficient contact with the defendant to achieve a level of familiarity that renders the lay opinion helpful. If the witness lacks such familiarity, it is the province of the jury to draw its own conclusions regarding the identity of the person depicted without the witness's assistance, and that is the end of the inquiry. The second consideration is whether the jury needs the witness's assistance. Before admitting lay non-eyewitness identification testimony, a court should inquire as to the basis of the witness's familiarity outside the presence of the jury in a separate hearing or voir dire and provide cautionary jury instructions. *People v Mosley*, 41 NY3d 640.

12. First-Time In-Court Identification.—In a criminal prosecution, Supreme Court did not abuse its discretion as a matter of law in denying defendant's request to preclude an eyewitness's first-time, in-court identification of defendant even though the People did not specifically notify defendant that the witness might be called to identify him, where defendant was aware from pretrial discovery that the witness might make a first-time, in-court identification, the witness's testimony and pretrial statements established the reliability of her identification, and the lack of formal notice did not significantly prejudice defendant. The body-camera footage and the 911 call, together with the People's witness list, which included the witness, alerted defendant that the witness would likely make a first-time, in-court identification. Moreover, defendant did not request any alternative identification procedures before the witness testified. During her trial testimony, which took place only five months after the shooting and mirrored her previous description of the shooter on the 911 call, the witness established her ability to observe the shooting and view the shooter. The victim, who had met defendant prior to the shooting, also identified defendant as the shooter and confirmed that he and defendant appeared on the surveillance video. Defendant could be seen on the video not only wearing the precise clothing that the witness had described, but also holding what was clearly a gun. Though the People were not aware of any duty to provide notice, that did not appear to have significantly prejudiced defendant,

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given that he was provided with the witness's unequivocal statements that she could identify the perpetrator. *People v Perdue*, 41 NY3d 245.

13. First-Time In-Court Identification — Meaningful Opportunity to Request Protective Measures.—To counteract the heightened risk of eyewitness misidentification in the first-time, in-court identification context, criminal defendants should be afforded a meaningful opportunity to request additional procedures that would demonstrate the reliability of a subsequent in-court identification or reduce the suggestiveness of the in-court identification procedure itself. The ability of the defendant to meaningfully request protective measures is dependent on the defendant's awareness that the witness may make a first-time, in-court identification. Accordingly, when the People may ask a witness to make a first-time, in-court identification, they must ensure that the defendant is aware of that possibility as early as practicable. The court's obligation to take any action regarding a first-time, in-court identification is dependent upon a timely request made by the defendant. *People v Perdue*, 41 NY3d 245.

14. In-Court Identification by Undercover Officer after Confirmatory Identification Suppressed — Independent Source Hearing Required.—In a prosecution for criminal sale of a controlled substance in the third degree in which an undercover police officer's confirmatory identification of defendant was suppressed as the product of an illegal arrest and the officer's testimony at the probable cause hearing was insufficient to determine whether he had an independent source for his prospective in-court identification of defendant, the trial court erred in admitting the officer's in-court identification without conducting a separate independent source hearing. Defendant's prosecution arose from the undercover officer's purchase of heroin through an intermediary during a buy-and-bust operation in which the officer did not meet the seller face-to-face. The testimony adduced at the limited suppression hearing focused primarily on whether there was probable cause for defendant's arrest, which turned only on whether defendant matched the undercover officer's description of the seller as a black male wearing a white top and jeans. While the undercover officer described the seller's clothes, he provided no other details from which the court could conclude that he had a meaningful opportunity to view the seller at the time of the buy. He testified that he had no prior interactions with the seller, and he did not testify as to any physical description that he may have given the arresting officers. Nor did his testimony provide any description of the confirmatory identification procedure, such that the court could compare the two interactions and be assured that the in-court identification could be made without relying on the suppressed identification. As such, the hearing did not explore the undercover's pre-arrest observations, if any, of the seller's face, physical features, complexion, build, hairstyle, or height during the buy-and-bust operation. *People v Williams*, 41 NY3d 551.

15. Surveillance Video — Non-Eyewitness Identification.—In a criminal prosecution arising out of a shooting captured in a grainy video by police surveillance cameras, the trial court abused its discretion in permitting a detective, who had not met defendant until seven months after the incident while investigating a different crime, to provide lay, non-eyewitness testimony identifying defendant as the shooter in the video, where the People failed to establish that the detective's testimony would have aided the jury in making an independent assessment regarding whether the person in the video was defendant. The People did not establish that the detective was sufficiently familiar with defendant to render his identification helpful to the jury. Though the detective represented that he had interacted with defendant "a number" of times, he failed to specify how many times, for how long, or what the nature of those interactions were. He testified that he had never had "street" interactions with defendant, and it was unclear whether he ever interacted with defendant outside of the police station. The detective was not familiar with defendant's appearance at the time the shooting occurred, nor did he know what defendant was wearing on the day of the shooting. Moreover, the detective did not connect any distinctive traits of defendant's to the person depicted in the surveillance photo. The People also failed to demonstrate that the jury needed the detective's help. The shooter in the video did not wear a disguise, and there

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was no indication that defendant's appearance changed. The testimony suggested that the quality of the surveillance video would have made it difficult for anybody to reliably identify the subject. There was no basis to conclude, based on the totality of the circumstances, that the detective would have been more likely to correctly identify the defendant from the video than the jury. *People v Mosley*, 41 NY3d 640.

INDICTMENT.

16. Remedy for Conviction of Multiplicitous Counts.—In a criminal prosecution in which there was no dispute regarding the Appellate Division's conclusion that the two counts of perjury of which defendant was ultimately convicted were multiplicitous, the Court of Appeals vacated the conviction for one count of perjury and dismissed that count of the indictment. A multiplicitous indictment creates the risk that a defendant will be punished for, or stigmatized with a conviction of, more crimes than they actually committed. Thus, when a defendant is convicted of multiplicitous charges, the proper remedy is vacatur of all but one of the multiplicitous convictions and dismissal of those counts of the indictment, regardless of whether that corrective action has any effect on the defendant's sentence. *People v Greene*, 41 NY3d 950.

INSTRUCTIONS.

17. Jury Note — Meaningful Response.—In a murder prosecution in which defendant asserted a claim of self-defense, the trial court meaningfully responded to a note from the deliberating jury, which requested “[a]ll [d]efinitions discussed: Murder II, Manslaughter I, Depraved Murder II, etc.,” by rereading the instructions for the charged counts, but not reinstructing the jury on justification. In determining whether a response to a jury note is meaningful, the court must evaluate the form of the question, which may require clarification before it can be answered, the particular issue of which inquiry is made, the supplemental instruction given and the presence or absence of prejudice to the defendant. Here, the form of the jury's note indicated a request that the jury be recharged on the elements of the crimes inasmuch as the jury chose to limit which “definitions” it sought by providing an exemplary list containing the first three of the 10 criminal offenses on which the trial court had originally instructed the jury and ending the list with “etc.” The usage of “etc.” at the end of a list signaled a desire for others of the same kind, and the jury did not seek further instruction or clarification after the recharge. In addition, defense counsel's request for the justification recharge was made after the court had concluded rereading the instructions on the charged counts; returning to that portion of the jury note may have placed undue emphasis on the justification issue. *People v Aguilar*, 41 NY3d 335.

JURORS.

18. Discharge of Juror — Grossly Unqualified.—The trial court in defendant's criminal prosecution erred in denying defendant's motion for a mistrial and retaining a juror who informed the court, during jury deliberations, that she believed defendant had followed her home three days earlier, as the juror's bias rendered her “grossly unqualified” (CPL 270.35 [1]), and her assurances that she could be impartial were insufficient to cure the bias. A juror who clearly holds a bias directly against the defendant generally cannot render a verdict that respects the defendant's right to an impartial jury. Therefore, the only way such a juror may be retained is if there is a showing, including unequivocal assurances, that the juror's bias will not affect their deliberations. Because the juror's bias here was strongly held and ran directly against defendant, the danger to defendant's right to an impartial jury reached a level that would render the juror grossly unqualified. The juror's concerns were about defendant's character, specifically whether he was following her intending to harm or intimidate her. She further told the court that she believed that other jurors were concerned that defendant or those observing his trial might harm them—a state of mind that is extremely likely to produce prejudice. Moreover, it was inappropriate for her to introduce out-of-court evidence regarding defendant's character into deliberations, prompting or validating the

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safety concerns of other jurors. The juror's bias was not the type that could be directly rebutted by the trial evidence, and she did not renounce her belief about defendant's out-of-court conduct. The juror's response to the court's question of whether she could be "fair and impartial" was equivocal and reiterated her concern for safety even while assuring the court that she could be fair, thereby undercutting the value of her assurance. *People v Fisher*, 41 NY3d 495.

19. Selection of Jury — COVID-19 Safety Protocols.—Neither a defendant's right to be present during jury selection nor due process required that defendant have a simultaneous, unobstructed view of the entirety of every prospective juror's face during jury selection. Accordingly, in defendant's trial held during the COVID-19 pandemic, these rights were not violated by the implementation of social distancing and the requirement that prospective jurors cover their mouths and noses with a face mask when not being questioned individually. It was undisputed that defendant was able to hear the questions posed to prospective jurors and to observe their responses including their facial expressions, demeanor and other subliminal responses because they were given plastic face shields and were instructed to lower their cloth masks while being questioned. Even assuming that a defendant's rights with respect to jurors who are being actively questioned could be more broadly applied to non-questioned members of the venire, the safety protocols in use at defendant's jury selection were permissible as they did not impede defendant's ability to be present and observe the selection process. A defendant's right to be present at jury selection does not entail the absolute or unlimited ability to observe each prospective juror's facial expressions, and defendant could still observe a great deal about prospective jurors including their posturing, the position of their arms, and their eyes and eyebrows. Moreover, the safety protocols in use at the time of the trial, which constituted at most a slight restriction, properly balanced defendant's right to be present during jury selection with the safety of those present in the courtroom in accordance with due process considerations. *People v Ramirez*, 41 NY3d 406.

20. Selection of Jury — Limiting Questioning Regarding Self-Defense and Gun Ownership.—In a prosecution for criminal possession of a weapon in the second degree, the trial court did not abuse its discretion in limiting questioning of potential jurors about the use of guns for self-defense and, in the fifth round of voir dire, limiting questions about gun ownership. While the trial court precluded general questions about jurors' views on self-defense, counsel and the court both questioned jurors extensively about their ability to be fair given the facts of the case, including asking jurors broad questions such as their view on "the whole issue of gun control" and "gun licensing," and their ability to "apply the law that applies to this case" as instructed notwithstanding those personal views. On this record, the jurors' ability to follow and apply the law as to defendant's defense for his actions was not inadequately explored. In addition, defendant's argument that the trial court improperly curtailed the questioning of the fifth panel was unpersuasive. The previous panels had expressed confusion over counsel's expansive questions, and defense counsel was able to ask the jurors on the fifth panel a series of abstract questions about their personal views, including on guns, mass shootings, licensed guns, gun control, and whether they had any "moral or political objection[s]" to individual firearm ownership. *People v Garcia*, 41 NY3d 62.

LESSER INCLUDED OFFENSE.

21. Second-Degree Burglary as Lesser Included Offense of Second-Degree Burglary as Sexually Motivated Felony.—In the prosecution of defendant on a charge of, among others, burglary in the second degree as a sexually motivated felony based on an incident in which he entered a university dormitory after assaulting and groping several women outside the building, the trial court properly charged second-degree burglary as a lesser included offense over defendant's objection that the charge should be precluded entirely because he was deprived of notice that he would need to defend against a crime that was not sexual in nature, as there was no notice issue presented on the record. There was no dispute that the two conditions required to obtain a jury charge on a lesser included offense under Criminal

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Procedure Law § 300.50 (1) and (2) were met. The rule that where the People have affirmatively abandoned their pursuit of a conviction for a certain crime, the court may not then charge the jury on that crime as a lesser included offense had no application. The People did not indict defendant on ordinary burglary and later withdraw or affirmatively abandon that charge. In addition, whether the People limited their theory of the crime defendant intended to commit to an extent requiring a more circumscribed jury instruction was not at issue because the defense argued, and the Appellate Division held, that the People were entirely precluded from submitting the lesser included offense of burglary in the second degree to the jury. The consequence of the Appellate Division's holding, that the People so "constricted their theory of the case" that defendant was "lulled" into defending against only burglary as a sexually motivated felony and not second-degree burglary, would in effect be to prevent a trial court from ever charging the lesser included offense whenever the People charge second-degree burglary as a sexually motivated felony absent explicit notice to the defendant of their intent to do so. *People v Seignious*, 41 NY3d 505.

MURDER.

22. Legal Sufficiency of Evidence — Torture.—The evidence in defendant's murder prosecution, which consisted of defendant's prior statements of intent to harm the victim, an audio recording of his statements and conduct as he repeatedly taunted and strangled her, and medical testimony regarding the numerous painful and ultimately fatal injuries the victim sustained, was legally sufficient to establish that defendant "relished the infliction of extreme physical pain upon the victim" or that he "evidenced a sense of pleasure in the infliction of extreme physical pain" so as to constitute "torture" within the meaning of Penal Law § 125.27 (1) (a) (x). The statute requires a specific intent to inflict torture, which is defined as "the intentional and depraved infliction of extreme physical pain" (Penal Law § 125.27 [1] [a] [x]). The jury heard defendant's graphic threats to sexually assault and "hunt" the victim down and his statement that he would enjoy doing so. Moreover, the manner in which defendant conducted the prolonged assault resulting in the victim's death, including repeatedly asking the victim how it felt as he choked her, gave her a brief reprieve, and then strangled her again, provided evidence from which the jury could conclude that he derived mental gratification from inflicting extreme pain upon the victim. Further, there was sufficient evidence for the jury to find that while defendant may have also acted in anger or sought information from the victim, taking pleasure in inflicting extreme pain upon her was a substantial motivation. *People v Bohn*, 41 NY3d 455.

23. Torture Murder — Course of Conduct.—By using the phrase "course of conduct" in the torture murder subparagraph of the first-degree murder statute (Penal Law § 125.27 [1] [a] [x]), the legislature intended to require a series of distinct acts before the victim's death that are intended to inflict and actually inflict extreme physical pain. Accordingly, in a torture murder prosecution in which the testimony of the medical examiner as well as the surveillance video established that before defendant fatally stabbed the 15-year-old victim in the neck, defendant's accomplices dragged the victim from a bodega and stabbed him multiple times with knives and a machete, and that the victim suffered several sharp force injuries, blunt force injuries, and defensive wounds as a result, the evidence was legally sufficient to establish the course of conduct element. Although the medical examiner described the victim's nonfatal sharp force injuries as "superficial," meaning that they impacted only the top layers of skin, the medical examiner clarified that "superficial" was a medical term, and that it had no bearing on the pain the wound would have caused. A rational jury could have concluded that the victim's nonfatal wounds, inflicted pursuant to a course of conduct during which the victim was dragged from the store to the street, and then while on the ground subjected to several stab wounds of varying degrees from multiple assailants, caused him extreme physical pain before his death. However, defendant's planning meeting with his accomplices before the attack, as well as the psychological pain suffered by the victim while he was being chased, although horrible to contemplate, were not part of the course of conduct required under the statute; the

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planning did not cause the victim physical pain. Moreover, the course of conduct element would not be satisfied if defendant's fatal blow to the victim's neck was the only wound to cause the victim extreme physical pain before his death, because the statute clearly states that a "course of conduct," not a single, isolated act, must inflict the requisite physical pain before death. *People v Estrella*, 41 NY3d 514.

24. Torture Murder — Relishing or Evidencing Sense of Pleasure in Infliction of Extreme Physical Pain.—The torture murder subparagraph of the first-degree murder statute (Penal Law § 125.27 [1] [a] [x]) requires that the defendant must relish or take pleasure in inflicting extreme physical pain before killing the victim. Accordingly, in a torture murder prosecution, the People's evidence that, shortly after attacking the 15-year-old victim, defendant stated in a boastful tone that the victim was "not gonna eat for a good long time because [defendant] hit him in the neck" and that defendant sought out gang leadership after the attack to claim responsibility for stabbing the victim in the neck was insufficient to establish the mens rea element. This evidence demonstrated, at most, that defendant took pride in having killed the victim, not that he took pleasure in causing the victim extreme physical pain before his death. When a defendant inflicts needlessly brutal or prolonged suffering upon the victim before death, a rational jury may, based on the totality of the evidence, reasonably infer that the defendant took pleasure in inflicting extreme physical pain. However, those circumstances were not present here. There was no evidence presented that defendant was aware at the time of the attack of how long it took the victim to die after he stabbed him, inasmuch as defendant and his accomplices immediately fled the scene of the attack. Defendant's boasting was evidence that he believed that the murder would gain him status in the gang and that he took pleasure in causing the victim's death. But the statute requires the defendant to take pleasure in inflicting extreme physical pain before the victim dies, not merely to take pleasure in the murder, even a murder that is particularly heinous, or in the perverse gains achieved by killing another. *People v Estrella*, 41 NY3d 514.

PLEA BARGAINING.

25. Violation of Plea Condition — Sufficiency of Inquiry.—Defendant's claim that the sentencing court conducted an inadequate inquiry into his violation of plea conditions before imposing an enhanced sentence, to the degree readily discernible from the hearing transcript, was without merit. The court conducted an appropriate inquiry and provided defendant with an opportunity to dispute the factual basis for the alleged violation. *People v Sims*, 41 NY3d 995.

PROOF OF OTHER CRIMES.

26. Prior Possession of Guns Not Probative of Knowledge.—In defendant's prosecution for criminally possessing guns recovered from his truck, the trial court committed reversible error in admitting evidence of two prior incidents involving defendant's possession of a weapon that occurred 10 years earlier as probative of defendant's knowledge that the guns were in his truck, as the prior incident evidence was not relevant to an issue other than defendant's criminal propensity. The evidence regarding the prior incidents did not increase the possibility that defendant knew there were guns in his truck 10 years later. That defendant unknowingly possessed other guns in two completely different circumstances about 10 years prior could not have put him on notice that there might have been guns in his truck this time, nor was the evidence of those incidents relevant to refute the defense that defendant did not know the guns were in the vehicle. The prior incidents were neither very similar nor close in time to this incident; rather, they involved different guns, different sets of circumstances, different excuses, and occurred more than 10 years earlier. The prior gun possession incidents were essentially evidence of prior wrongdoing that tended to show only that if defendant did it once, he would do it again. Moreover, the trial court's ruling was not harmless. There was circumstantial evidence from which the jury could have inferred that defendant knowingly possessed the guns, but not overwhelming proof of guilt. Thus, it could not be said that there was no significant probability the jury would have acquitted defendant had the evidence of the prior incidents been excluded. *People v Telfair*, 41 NY3d 107.

CRIMES—Cont'd**SENTENCE.**

27. Motion to Vacate Sentence Based on Risk of COVID-19.—In a criminal prosecution in which defendant argued that his age and health conditions put him at a higher risk of serious death or illness from COVID-19, rendering his sentence unconstitutional under the Eighth Amendment, the record before the Court of Appeals did not provide a basis for reversal of the decisions below which had declined to vacate defendant's sentence under CPL 440.20. Nor could the Appellate Division have reduced defendant's sentence below the statutory minimum imposed by the trial court. *People v Garcia*, 41 NY3d 62.

28. Youthful Offender — Armed Felony Offense.—In the prosecution of defendant arising from his display of a loaded gun during an argument over a parking space when he was 17 years old and resulting in his conviction for second-degree criminal possession of a weapon, the sentencing court exercised its discretion pursuant to CPL 720.10 in determining whether qualifying mitigating circumstances existed that would make defendant eligible for youthful offender adjudication. CPL 720.10 (3) allows a youth convicted of an armed felony offense to be treated as eligible for youthful offender status if the court finds: "(i) mitigating circumstances that bear directly upon the manner in which the crime was committed; or (ii) where the defendant was not the sole participant in the crime, the defendant's participation was relatively minor although not so minor as to constitute a defense to the prosecution." Although certain isolated statements made by the sentencing court were not the most artful articulation of the relevant standards, the record indicated that the sentencing court applied the correct statutory framework and exercised its discretion pursuant to the statute. The judge quoted directly from CPL 720.10 (3) and explicitly referenced his "discretion" to determine whether the statutory factors were present, specifically including "mitigating circumstances." As required, the court expressly found that mitigating circumstances did not exist. In any event, the Appellate Division correctly held that there were insufficient mitigating circumstances to support youthful offender adjudication, given the threatening manner in which defendant used the gun. *People v Rivera*, 41 NY3d 936.

SEX OFFENDERS.

29. Sex Offender Registration Act — Release from Confinement for Purposes of Risk Level Classification Hearing — Possibility of Civil Commitment Proceedings.—Sex offenders are "released" for purposes of the Sex Offender Registration Act (Correction Law art 6-C [SORA]) at the time they are no longer confined by the Department of Corrections and Community Supervision (DOCCS) following the completion of their prison sentence, regardless of the possibility that they may be confined under the Sex Offender Management and Treatment Act (Mental Hygiene Law § 10.01 *et seq.* [SOMTA]). Accordingly, the SORA hearings for defendant sex offenders, who had either been released or were about to be released from confinement by DOCCS at the time of their hearings, were not premature due to pending or potentially pending SOMTA proceedings. Multiple SORA provisions expressly tie the concept of "release" to an offender's departure from any of several expressly listed locations, including a correctional facility. The very start of the SORA process is activated by those expressly listed locations based on their individual duty to send relevant information about the offender to the Board of Examiners of Sex Offenders, which must occur at least 120 days prior to the "release or discharge" from each institution (Correction Law § 168-m). Finding that an offender is not released whenever SOMTA proceedings are pending or contemplated would leave no statutory guidance as to how the mechanism of SORA would be triggered if and when an offender is released from civil confinement. Moreover, delaying a defendant's SORA adjudication would serve only to impede SORA's purpose of protecting the public from the danger of recidivism posed by sex offenders, as it would create a situation where an offender might reenter the community without a risk level determination. *People v Boone*, 41 NY3d 573.

30. Sex Offender Registration Act — Sex Offender Designation for Imprisonment of Child Where Offense Lacked Sexual Act or Motive.—In a criminal prosecution

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tion in which defendant pleaded guilty to the unlawful imprisonment of a child, an eligible offense under the Sex Offender Registration Act (SORA) (Correction Law art 6-C), for stealing money from his aunt at gunpoint in the presence of his 10-year-old cousin, requiring defendant to register as a sex offender violated his due process rights and did not further the legislative purpose of SORA to protect the public from sex offenders, where defendant's crime lacked a sexual act or motive and where defendant posed no risk of future harm to children. The SORA court found that defendant's motivation was to steal money, that the offense involved "no sexual contact or motivation" whatsoever, and that defendant was not a "sex offender" and "posed no risk of sexual threat at all." Based on the lack of a sexually motivated crime, it was determined that defendant was not eligible to participate in the Sex Offender Counseling and Treatment Program while in prison. While data on actual sex offenses at the time SORA was enacted found a likelihood of sexual assault in nonfamily abductions, defendant was the child's blood relative and the crime here was a robbery with no sexual conduct or motive. Moreover, defendant never removed the child from his home, the child was not kidnapped or detained for any prolonged period of time, and the child's detention did not put him at risk of a sexual assault. There was no past sexual offense, and there was an affirmative judicial finding that defendant posed no future risk. The stigma of the misdesignation unconstitutionally impacted defendant's liberty interest in a criminal designation that rationally fit his conduct and public safety risk. *People v Brown*, 41 NY3d 279.

31. Sex Offender Registration Act — Timing of Risk Level Classification Hearing Given Potential Civil Commitment Proceedings — Due Process.—Defendant sex offenders were not denied due process when their risk level classification hearings pursuant to the Sex Offender Registration Act (Correction Law art 6-C [SORA]) were held upon their release from confinement by the Department of Corrections and Community Supervision (DOCCS) notwithstanding the possibility that they may have been confined under the Sex Offender Management and Treatment Act (Mental Hygiene Law § 10.01 *et seq.* [SOMTA]). Determining the risk level of a sex offender upon the offender's release from confinement by DOCCS, even if that offender is potentially subject to indefinite civil commitment under SOMTA, presents minimal risk of misclassification and thus minimal risk of an erroneous deprivation of those interests. SORA provides substantial procedural safeguards to offenders when making a risk level classification, and provides an offender with the opportunity to challenge a risk level classification at a time before a determination is made by the Board of Examiners of Sex Offenders or the sentencing court. These procedural safeguards were implemented specifically to mitigate the risk of an erroneous deprivation. Moreover, because the timing of release from civil commitment can be unpredictable and may not allow the parties to comply with the statutorily mandated timeframe expeditiously, delaying the SORA hearing could result in the release of sex offenders into the community without the proper risk level classification. The State has a significant interest in avoiding that result, especially given the pool of offenders subject to SOMTA proceedings. This is particularly important given the public safety objectives served by SORA. *People v Boone*, 41 NY3d 573.

TRIAL.

32. Mistrial — Decedent's Surviving Spouse Crying in Courtroom.—In a prosecution for aggravated vehicular homicide and related charges, there was no reason to disturb the trial court's decision to deny defendant's motion for a mistrial made during the prosecution's opening statement after defense counsel observed the decedent's surviving spouse crying in the courtroom. The trial court's observation that the spouse's crying was inconspicuous and that there was no indication that the jury heard it was entitled to deference. Furthermore, the exploration of alternatives, such as instructing the People to speak with the spouse and offering defendant a curative instruction—which he rejected—justified the decision not to grant the defendant's motion. Finally, notwithstanding the trial court's efforts to temper the surviving spouse's courtroom reactions, there is no requirement that a trial judge keep courtroom spectators from displaying any emotion whatsoever absent prejudice to a party. *People v Ramirez*, 41 NY3d 406.

CRIMES—Cont'd**UNLAWFUL SEARCH AND SEIZURE.**

33. Canine Sniff of Defendant's Person Following Traffic Stop.—In defendant's prosecution for possessing a controlled substance, the use of a canine to sniff defendant's body for the presence of narcotics following a traffic stop qualified as a search implicating the protections of the Fourth Amendment, notwithstanding that the dog never made contact with defendant and sniffed only the air closely surrounding his person. The presence or absence of direct physical contact with the body is not determinative of whether or not government conduct implicates "[t]he right of the people to be secure in their persons" and qualifies as a search (US Const 4th Amend); the question turns instead on whether the conduct compromises personal dignity and violates reasonable social expectations concerning the security of one's body and the privacy of matters related thereto. Compared to a sniff of an inanimate object like a closed suitcase or automobile, the sniffing of the human body involves a greater intrusion on personal privacy, security, and dignity. In permitting the dog to approach and sniff defendant for evidence of criminal activity, the officers also exceeded the scope of any invitation or license implicitly granted by defendant with respect to his so-called personal space. Introducing a trained police dog to explore otherwise undetectable odors in the hopes of discovering incriminating evidence goes far beyond any implied social license or reasonable expectation. Recognizing this form of investigative technique as a search is consistent with a central aim of the Framers, which was to place obstacles in the way of a too permeating police surveillance. *People v Butler*, 41 NY3d 186.

34. Constitutional Validity of Roadblock.—In a criminal prosecution, the constitutional validity of the roadblock pursuant to which defendant's vehicle was stopped was demonstrated, albeit barely, by the testimony of a detective who was assigned to the roadblock and the reasonable inferences to be drawn therefrom. The detective's testimony established that the primary purpose of the vehicle checkpoint was roadway safety, not general crime control. It further established that the checkpoint was maintained in accordance with a uniform procedure that gave little discretion to operating personnel, i.e., every third car was stopped. Finally, the detective's testimony established that the roadblock was conducted with adequate precautions that gave fair warning to motorists. The Court of Appeals had no power to revisit the factual finding of the suppression court that the detective's testimony was credible. Moreover, to the extent defendant contended that the decision to set up a roadblock was discriminatory, that contention was not supported by the record. The roadblock was set up on a bridge leading from Manhattan into the Bronx on the day of the National Puerto Rican Day Parade, and the record demonstrated that the post-parade traffic was particularly heavy. The reasonable inference to be drawn from the detective's testimony was that the roadway safety checkpoint was chosen for that date and location because of the large volume of traffic that would be crossing the bridge. *People v Pastrana*, 41 NY3d 23.

35. Inventory Search of Impounded Vehicle.—The suppression court did not err in denying defendant's motion to suppress the handguns and cash found during an inventory search of defendant's vehicle after the officer who pulled him over discovered that he did not possess a valid driver's license, where the decision to tow the vehicle, which defendant had parked illegally and partially blocking a bike lane and the flow of traffic, was not in contravention of the police department's policy. Law enforcement officers may conduct an inventory search of an impounded vehicle without a warrant so long as the search is conducted according to reasonable police regulations relating to inventory procedures administered in good faith. The police procedures applicable here required officers to consider alternatives to towing, including whether there is another possible driver and the proximity of the owner/operator's residence, but they did not impose on officers an affirmative duty to inquire whether any alternatives exist beyond those that are raised for their consideration or are otherwise apparent. While there were several facts that could have weighed against impoundment if made known to the officer during the stop,

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the record was undisputed that defendant did not inform the officer of those facts at the time. The officer did not realize that the owner's residence was nearby; nor did defendant tell him. Moreover, defendant could not legally drive the car away from the scene, and there was no other licensed driver present. As the decision to tow was not unreasonable, neither was the search. *People v David*, 41 NY3d 90.

36. Police Stop of Bicyclist.—In defendant's prosecution for criminally possessing a loaded gun recovered from his waistband after police observed him riding his bicycle in a "somewhat reckless" fashion and holding "something" that was "bulky" with his left hand over his pants, Supreme Court should have suppressed the gun as the product of an impermissible stop because the officers lacked reasonable suspicion of criminal activity or probable cause that defendant had violated the rules of the road while riding his bicycle. Although the officer vaguely commented during the suppression hearing that defendant was riding "in a somewhat reckless manner," he did not testify that he suspected a Vehicle and Traffic Law violation, let alone that he had probable cause of one. Instead, the officer testified that the primary motivation for the stop was that defendant was "holding an object in his waistband," but admitted that he did not know what the "object" was, except that it was "bulky." That observation fell well short of establishing reasonable suspicion of criminality. At no point before the stop did the officers suspect defendant was carrying contraband, and they were "caught . . . off guard" after the stop when defendant admitted that he was carrying a gun. *People v Rodriguez*, 41 NY3d 1.

37. Police Stop of Bicyclist — Reasonable Suspicion or Probable Cause Required.—The police stop of a bicyclist is a seizure under the Federal and State Constitutions requiring reasonable suspicion of a criminal offense or probable cause of a Vehicle and Traffic Law violation. Like an automobile stop, a bicycle stop is a traffic stop that involves a show of governmental authority and triggers anxiety in the individual in a manner that implicates social expectations regarding how reasonable people react to such authority. Whether an individual is driving a car or riding a bike, a police order to stop requires them to halt their momentum based on the expectation that any attempt to leave the scene would be so obviously likely to prompt an objection from the officer that no bicyclist would feel free to leave in the first place. Bicycle stops also implicate the right to be let alone and to refuse to respond to police inquiry, a constitutional right that would be rendered meaningless for bicyclists if the rider's compliance with a police request to stop were regarded as anything other than a full-blown seizure. Moreover, the Vehicle and Traffic Law subjects bicyclists to the same rules of the road as those applicable to automobiles and regulates pedestrians in a more limited fashion. In every relevant, legally-significant way, bicycles are similar to cars for purposes of a police encounter. *People v Rodriguez*, 41 NY3d 1.

38. Reasonable Suspicion of Drug Transaction — Plain View Doctrine.—In a criminal prosecution, a detective's observations of defendant pulling into an empty parking lot along with another vehicle, approaching and leaning into the other vehicle to talk to the driver, and looking around while using his phone, coupled with the arrival of a third vehicle driven by a person who the detective knew had been previously arrested for drug possession, did not provide reasonable suspicion that defendant was engaged in a drug transaction such that police had a lawful vantage point from which to view drug-related contraband inside defendant's car and conduct a warrantless search of the vehicle. The plain view doctrine does not legitimize a warrantless seizure of property when an officer gains the vantage point from which they view incriminating evidence by violating a constitutional prohibition against unreasonable searches and seizures. Although the detective "believed" defendant had engaged in a hand-to-hand drug transaction, he conceded that he never saw anything change hands between defendant and the other driver. Defendant's behavior, viewed in totality, was equivocal and susceptible of an innocent interpretation, and therefore could not form the basis for reasonable suspicion that he had engaged in a crime. Thus, at the time defendant was detained and the car searched, the police did not have evidence that defendant had even committed a violation of the Vehicle and Traffic Law, let alone a criminal offense. Moreover, there was no record evidence or any reasonable inference that an officer was in a

CRIMES—Cont'd

position to view the contraband absent the unlawful detention of defendant, as one officer testified that it was only after defendant was detained at the back of the car that he walked towards the driver's door and looked in the window. *People v Mesano*, 41 NY3d 228.

39. Voluntary Consent to Search Vehicle.—In a criminal prosecution, Supreme Court properly denied defendant's motion to suppress several guns found in his car during a police search, where the record supported the determination that defendant voluntarily consented in writing to the search of his vehicle. When defendant signed the consent form, he was in police custody, but the record confirmed that the handcuffs had been removed, he had been read his *Miranda* warnings, he was calm and cooperative, and he had been specifically advised that he could refuse to consent to the search or withdraw his consent once given. Immediately after signing the consent form, defendant invoked his right to counsel, suggesting that he appreciated the rights covered in the *Miranda* warnings and the consent form. Moreover, the voluntariness of defendant's written consent was not impermissibly tainted by a *Miranda* violation committed when he was initially handcuffed. The written consent was given at a different location than the prior un-Mirandized statements, about 90 minutes later, and under much different circumstances evincing a change in tenor of defendant's engagement with police. *People v Cabrera*, 41 NY3d 35.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS

DEPOSITIONS.

See DISCLOSURE

DISCONTINUANCE.

See DISMISSAL AND NONSUIT

DISCOVERY AND INSPECTION.

See DISCLOSURE

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

DOUBLE JEOPARDY.

See CRIMES

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

EQUITY.**LACHES.**

1. Mandamus to Compel — Reasonable Timing.—Petitioner New York voters' CPLR article 78 proceeding in the form of a writ of mandamus to compel the Independent Redistricting Commission (IRC) to follow the prescribed constitutional procedure for creating congressional and senate electoral maps to replace the court-drawn maps limited to the 2022 elections was not barred by laches. When laches is invoked in an article 78 proceeding in the nature of mandamus, proof of unexcused delay without more may be enough. It is the unreasonable nature of a delay that might constitute laches in such proceedings. Petitioners were seeking to compel the IRC to send maps to the legislature, as required in the Constitution, to replace court-drawn maps that were limited to the 2022 elections, and had done so in a more than timely fashion. The petition was filed two months and one day after the decision in *Matter of Harkenrider v Hochul* (38 NY3d 494 [2022]), which held the 2021 gap-filling legislation unconstitutional and that a court-ordered redistricting plan must be implemented to the extent required to remedy the legislature's violation of law. Because the Constitution forbade those court-drawn plans from lasting longer than necessary, the *Harkenrider* decision marked the date on which petitioners' right to make the demand of the IRC arose and when petitioners knew or should have known of the facts that gave them a clear legal right to relief. Petitioners were seeking to compel the IRC to act in the future, and the date on which they made a demand was early enough to allow for the proceeding to work its way through the courts with a determination made in time for the IRC to act in advance of the deadlines set forth in the Constitution ahead of the upcoming elections. *Matter of Hoffmann v New York State Ind. Redistricting Commn.*, 41 NY3d 341.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles

EXAMINATION BEFORE TRIAL.

See DISCLOSURE

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

FORMER ADJUDICATION.

See JUDGMENTS

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY)

FRATERNAL ORDERS.

See ASSOCIATIONS

GAS AND OIL.

See, also, PUBLIC UTILITIES

GUARANTEE.

See SURETYSHIP AND GUARANTEE

HOTELS.

See INNKEEPERS

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles

IMMIGRATION.*See* ALIENS**INFANTS.***See, also*, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles**INSURANCE.***See, also*, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles**PROPERTY INSURANCE.**

1. Direct Physical Loss or Damage — Business Interruption Coverage for Inability to Use Premises Due to Presence of Coronavirus.—In an action arising out of defendant insurer's denial of coverage for the loss of revenue sustained by plaintiff restaurant owner resulting from the coronavirus pandemic, plaintiff's allegations of business interruption losses caused by the presence of the coronavirus on the insured property were insufficient to state a claim for "direct physical loss or damage" within the meaning of plaintiff's property insurance policy. Direct physical loss or damage requires a material alteration or a complete and persistent dispossession of insured property, which plaintiff did not allege. Nowhere did the complaint allege that certain restaurant closures were because the properties themselves were contaminated to the point of uninhabitability, as opposed to prudent economic decisions in light of lost "foot-traffic." Plaintiff's remediation efforts prompted by the presence of the coronavirus, even if useful to facilitate in-person dining, did not establish that the restaurants were completely uninhabitable until property was repaired or replaced. Nor did plaintiff allege a permanent impact amounting to persistent and complete uninhabitability. Moreover, the complaint alleged nothing specific about how the presence of the coronavirus might have affected the physical integrity of structures or property. Plaintiff did not allege there was any need to repair or replace insured property; only business interruption losses were identified. *Consolidated Rest. Operations, Inc. v Westport Ins. Corp.*, 41 NY3d 415.

INTELLECTUAL PROPERTY LAW.*See* COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION**INTERVENTION.***See* PARTIES**JUDGMENTS.***See, also*, EXECUTION, and other specific titles**JUDICIAL NOTICE.***See* EVIDENCE**LABOR.***See, also*, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles**SAFE PLACE TO WORK.**

1. Elevation-Related Hazard — Ordinary Vehicle Repair.—Plaintiff, a certified diesel technician who was pinned under a commercial trailer while installing air brake equipment when a front loader used to lift the trailer above the ground rolled backwards, was not engaged in an activity covered by Labor Law § 240 (1), as the statute was not intended to cover ordinary vehicle repair. Labor Law § 240 (1) does not apply every time an employee is injured as the result of an elevation differential. Plaintiff's work was analogous to that of a factory worker engaged in

LABOR—Cont'd

the normal manufacturing process, which is not a protected activity under the statute. Expanding the statute's scope to cover a mechanic engaged in ordinary vehicle repair would extend the statute far beyond the purposes it was designed to serve. Further, if the statute applied in this case, car owners would be absolutely liable for gravity-related injuries that occurred when a mechanic was working on their car. This would be an enormous expansion of liability under Labor Law § 240 (1), and one that was not envisioned by the legislature. *Stoneham v Joseph Barsuk, Inc.*, 41 NY3d 217.

2. Industrial Code Violation — Integral to Work Defense.—In plaintiffs' action arising from workplace injuries sustained by plaintiff employee when he fell on a plastic covering placed over a stopped escalator as part of a renovation painting job, defendants failed to establish that the covering was integral to the work such that defendants could not be held liable for plaintiff's fall and attendant injuries. The "integral to the work" doctrine does not absolve a defendant of liability for the use of an avoidable dangerous condition or for failure to mitigate the danger, including as specifically provided by the Industrial Code, if preventive measures would not make it impossible to complete the work. Standing on a stopped escalator while painting required that the steps be covered to prevent the paint from falling on the escalator machinery and potentially damaging the escalator, and also to prevent the work area from becoming slippery and thus hazardous to plaintiff or any other worker who needed to walk on the steps. Thus, the use of some cover was integral to plaintiff's assignment to paint around the escalator. However, the plastic covering that was placed on the escalator was not integral to the paint job because it made plaintiff's work area slippery, creating one of the hazards that the cover was intended to avoid. Defendant was in a position to avoid this danger because there were alternative coverings that were familiar, previously-used options that would have achieved the goal of protecting the worker from injuries caused by a slipping hazard and also protected the escalator from possible damage. *Bazdaric v Almah Partners LLC*, 41 NY3d 310.

3. Industrial Code Violation — Slipping Hazard.—Plaintiffs were entitled to summary judgment as to liability on their Labor Law § 241 (6) cause of action for workplace injuries sustained by plaintiff employee when he fell on a plastic covering placed over a stopped escalator as part of a renovation painting job, where plaintiffs established that the covering was a slipping hazard that defendants failed to remove in violation of Industrial Code (12 NYCRR) § 23-1.7 (d). Whether this particular covering was a foreign substance within the meaning of 12 NYCRR 23-1.7 (d) depended on its relation to the area where plaintiff was assigned to work, and the covering's uniform properties. The plastic covering was not a component of the escalator and was not necessary to the escalator's functionality. Rather, it would have been impossible to operate the escalator if covered with plastic. Because section 23-1.7 (d) specifically lists ice, snow, water and grease, the catchall reference to "other foreign substance" includes those substances that share a quality common to the enumerated items. The listed items are, by their nature, types of material that are slippery when in contact with an area where someone walks, seeks passage, or stands, and, when the substance is present, would make it difficult if not impossible to use the work area safely, necessitating one of the affirmative mitigating measures set forth in section 23-1.7 (d) as a means to provide safe footing. The plastic covering used here similarly made plaintiff's work area slippery upon contact, with the result that plaintiff could not traverse the plastic-covered escalator without risking a fall. *Bazdaric v Almah Partners LLC*, 41 NY3d 310.

LABOR UNIONS.**ELECTION OF OFFICERS.**

1. Proceeding by Union Members Seeking Only Injunctive Relief — Approval or Ratification by Each Individual Member.—Where union members seek only injunctive relief against the union and state no claim for pecuniary damages, the pleading is not governed by *Martin v Curran* (303 NY 276 [1951]), and a plaintiff need

LABOR UNIONS—Cont'd

not allege the participation of each individual member to bring a claim in accordance with General Associations Law § 13. Accordingly, the hybrid CPLR article 78 proceeding and declaratory judgment action brought by petitioner union members seeking to enforce certain provisions in respondent union's local and parent constitutions governing eligibility of seasonal lifeguard members to vote and run for office in union elections was improperly dismissed on the ground that the petition failed to allege that every individual member of the union authorized or ratified the challenged actions. General Associations Law § 13 and its predecessors establish that a plaintiff cannot maintain an action against an association officer, unless the debt, which the plaintiff seeks to recover, is one upon which they could maintain an action against all the associates by reason of their liability therefor, either jointly or severally. The requirement that union members approve or ratify the union's alleged wrongdoing when pecuniary damages are sought against the union is consistent with potential personal liability for the individual members. If *Martin* precluded petitioners' claim, union members would have no recourse to the courts even when incumbent union officials are allegedly manipulating elections to maintain power. *Matter of Agramonte v Local 461, Dist. Council 37, Am. Fedn. of State, County & Mun. Empls.*, 41 NY3d 483.

2. Reasonable Interpretation of Union Constitutions.—The petition in a hybrid CPLR article 78 proceeding and declaratory judgment action seeking to enforce certain provisions in respondent union's constitutions governing eligibility of seasonal lifeguard members to vote and run for office in union elections was properly denied, where respondent reasonably interpreted its constitutions in determining that petitioner seasonal lifeguards were not entitled to vote or run for office in a particular election because they had not been in good standing for the immediately preceding 12 months. The constitution and bylaws of a union define the relations of the union and its members, the powers of the union officers and committees and the rights of the members. Under respondent's local and parent constitutions, a seasonal lifeguard could qualify to vote and run for office either through paying dues or through a combination of paying dues and submitting a proper request for a dues credit. Even assuming the seasonal lifeguards were provided the benefit of a six-month dues credit, the record demonstrated they would have nevertheless failed to satisfy the constitutional requirement that they be in good standing for the 12 months immediately preceding the election. Moreover, under the circumstances presented, it was not unreasonable for respondent to conclude that the seasonal lifeguards were not in good standing for the two months leading up to the election for purposes of qualifying to vote. *Matter of Agramonte v Local 461, Dist. Council 37, Am. Fedn. of State, County & Mun. Empls.*, 41 NY3d 483.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES)

LEGISLATURE.**APPORTIONMENT.**

1. Court-Drawn Electoral Maps — Extent Necessary to Remedy Violation of Law.—The 2014 amendments to the New York State Constitution mandating that the Independent Redistricting Commission (IRC) prepare and submit a redistricting plan, with appropriate implementing legislation, to the legislature for a vote without amendment expressly prohibit court-drawn redistricting “except to the extent that a court is required to order the adoption of, or changes to, a redistricting plan as a remedy for a violation of law” (NY Const, art III, § 4 [e]). Accordingly, the judicially drawn congressional districts directed by *Matter of Harkenrider v Hochul* (38 NY3d 494 [2022]) as a result of the legislature's deviation from the constitutionally mandated redistricting procedure were limited to the 2022 election cycle. The plain text of the 2014 amendments to the Constitution expressly limits court-drawn redistricting to the minimum required to remedy a violation of law. Permitting a judicially created redistricting to last longer than “required”

LEGISLATURE—Cont'd

would read the words “to the extent that a court is required” out of the Constitution. When applied to the maps made pursuant to *Harkenrider*, section 4 (e) authorized the Steuben County Supreme Court to fashion maps to the “extent” it was “required” to do so. Given the impending 2022 election cycle, the court was “required” to alter the IRC-based redistricting process for that imminent election cycle, and to that “extent” alone. Section 4 (e) requires a nexus between the violation and the judicial remedy, and a court cannot adopt a remedy beyond what is necessary to cure the violation of law. Thus, *Harkenrider* cannot be read to hold that courts may create decade-long redistrictings or that Supreme Court was ordered to do so. *Matter of Hoffmann v New York State Ind. Redistricting Commn.*, 41 NY3d 341.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles

LIMITATION OF ACTIONS.**FOUR-MONTH STATUTE OF LIMITATIONS.**

1. Mandamus to Compel.—Petitioner New York voters’ CPLR article 78 proceeding in the form of a writ of mandamus to compel the Independent Redistricting Commission (IRC) to follow the prescribed constitutional procedure for creating congressional and senate electoral maps to replace the court-drawn maps limited to the 2022 elections was timely commenced within four months of the IRC’s refusal to do so. Under CPLR article 78, a writ of mandamus to compel governmental bodies or officers “must be commenced within four months . . . after the respondent’s refusal, upon the demand of the petitioner . . . , to perform its duty” (CPLR 217 [1]). It is therefore necessary to make a demand and await a refusal before bringing a proceeding in the nature of mandamus, wherein the statute of limitations does not run out until four months after the refusal. Petitioners filed a petition, whereupon certain respondent IRC members moved to dismiss, constituting a refusal. Thus, petitioners demanded the IRC to act, and the IRC refused. Because the filing of the petition and the IRC’s subsequent refusal to act began the running of the period, the proceeding was within the four-month limitations period prescribed by CPLR 217 (1). The Constitution requires the IRC to draw districts, so if a court has drawn districts, the IRC’s constitutional obligation may be enforced at any time unless barred by laches. Mandamus to compel the IRC to complete its constitutional function was therefore timely. *Matter of Hoffmann v New York State Ind. Redistricting Commn.*, 41 NY3d 341.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

LOCAL LAWS.**INCONSISTENCY WITH STATE LAW.**

1. Local Law Granting Exclusive Authority over Police Discipline to New Civilian Entity.—Local Law No. 2-2019 of the City of Rochester, which amended the City Charter to grant the newly-created Police Accountability Board (PAB) the exclusive authority to investigate and impose discipline for police misconduct, was properly invalidated as it conflicted with the disciplinary procedures imposed by Civil Service Law §§ 75 and 76 and the Taylor Law that rendered those procedures proper subjects of collective bargaining. The Municipal Home Rule Law expressly vests the City with the power to revise and amend its charter by local laws that are not inconsistent with the Constitution or general law, as well as the power “to

LOCAL LAWS—Cont'd

adopt and amend local laws not inconsistent with the provisions of the constitution or not inconsistent with any general law relating to its property, affairs or government" (Municipal Home Rule Law § 10 [1] [i]). The City Council exercised that authority when it adopted Local Law No. 2-1985, which explicitly aimed to repeal the provision of its charter governing police discipline and render the disciplinary provisions of Civil Service Law §§ 75 and 76 applicable such that police discipline would be the subject of collective bargaining. Local Law No. 2-2019 was a new effort to reassert local control over police discipline and vest the PAB with that power, but such effort clashed with the statewide disciplinary provisions set forth in Civil Service Law §§ 75 and 76, and did not qualify as a preexisting "general, special or local law or charter provision" excluded from the scope of those sections by Civil Service Law § 76 (4). Local Law No. 2-2019 therefore exceeded the City's power under Municipal Home Rule Law § 10 (1) (i). *Matter of Rochester Police Locust Club, Inc. v City of Rochester*, 41 NY3d 156.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS

MEDICAL REPORTS.

See DISCLOSURE

MONOPOLIES.

DONNELLY ACT.

1. Sufficiency of Pleading.—In an underlying action against counterclaim plaintiff related to its tour bus business, its counterclaims against certain counterclaim defendants based on allegations that they engaged, amongst other things, in anticompetitive behavior that violated the Donnelly Act (*see* General Business Law § 340 *et seq.*) and constituted tortious interference with prospective business relations were adequately pleaded. A claim brought under the Donnelly Act must, at a minimum, allege both concerted action by two or more entities and a consequent restraint of trade within an identified relevant product market. Counterclaim plaintiff alleged that counterclaim defendants conspired with another group of counterclaim defendants to leverage their market share to "shut out" counterclaim plaintiff from the "hop-on, hop-off sightseeing bus tour market." According to the facts asserted, representatives from various New York City attractions refused to do business with counterclaim plaintiff after the two groups of counterclaim defendants impugned counterclaim plaintiff's reputation and threatened to end their business with those attractions if they did business with counterclaim plaintiff. It was also alleged that, although certain attractions referenced exclusive relationships with either group of counterclaim defendants as a basis not to partner with counterclaim plaintiff, the attractions in fact partnered with both. Thus, it can be inferred that the claimed exclusive relationships were a pretext to cover for anticompetitive efforts to exclude counterclaim plaintiff. Although sparse, those factual assertions and all the possible inferences to be drawn therefrom were sufficient to allege concerted action between two or more entities and support a cognizable Donnelly Act counterclaim under the liberal notice pleading standards. *Taxi Tours Inc. v Go N.Y. Tours, Inc.*, 41 NY3d 991.

MOTELS.

See INNKEEPERS

MOTOR VEHICLES.

LEAVING SCENE OF INCIDENT.

1. Sufficiency of Evidence.—Viewing the evidence in the light most favorable to the People, there was a valid line of reasoning and permissible inferences from

MOTOR VEHICLES—Cont'd

which a rational jury could have found that defendant violated Vehicle and Traffic Law § 600 (2) (a). *People v Novas*, 41 NY3d 956.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles

NOTICE OF CLAIM.

1. Late Notice — Actual Knowledge.—In a proceeding pursuant to General Municipal Law § 50-e (5) in which petitioner failed to offer any evidence establishing respondent city's actual knowledge of the essential facts constituting his false arrest and malicious prosecution claims, the trial court abused its discretion in granting petitioner leave to file a late notice of claim. Petitioner failed to establish any of the factors on which he relied. The petition verified by petitioner's attorney asserted that the actual knowledge of the police officers who participated in the arrest and prosecution could be imputed to respondent, and that respondent also acquired actual knowledge through its alleged possession of records that its officers were required to create during the course of the investigation and prosecution. However, without any competent evidence, the trial court was unable to undertake a fact-specific inquiry into whether respondent acquired actual knowledge through any of its employees. Furthermore, petitioner's failure to submit evidence of the contents of the alleged records was fatal to his argument that respondent acquired actual knowledge from the existence of such records. There was no suggestion that petitioner's attorney attempted to obtain the records and was refused, nor did petitioner seek to compel respondent to produce any papers necessary to the determination of his petition. Insofar as petitioner argued that respondent would not be substantially prejudiced by the late filing because it acquired timely actual knowledge, petitioner's failure to establish actual knowledge was fatal, and petitioner also failed to provide a reasonable excuse for his late notice. *Matter of Jaime v City of New York*, 41 NY3d 531.

2. Late Notice — Actual Knowledge.—In a proceeding pursuant to General Municipal Law § 50-e (5) in which the only evidence submitted by petitioner undermined his claim that respondent city had actual knowledge of alleged incidents in which correction officers and/or inmates assaulted petitioner during his detention at a city jail, the trial court abused its discretion in granting petitioner leave to file a late notice of claim. The grievances in the record demonstrated that petitioner was familiar with the grievance procedure and repeatedly availed himself of it, and also that he knew how to obtain copies of the grievances he filed. Yet the absence of any grievances bearing on the incidents described in the late notices of claim suggested that he never filed such a grievance. Given the absence of any relevant evidence, it would be entirely speculative to consider the possibility that petitioner did not file a grievance for fear of reprisal. Further, neither the allegation that petitioner sustained injuries in the attacks for which he sought medical attention in the infirmary, nor the allegation that the department of correction created or maintained records relating to those injuries, established that respondent acquired actual knowledge of the essential facts constituting the claim. Petitioner provided no evidence that he told the infirmary personnel his injuries were caused by correction officers, nor was there any indication that he unsuccessfully sought production of these alleged records. Petitioner failed to meet his initial burden on the substantial prejudice factor, as he argued that respondent was not substantially prejudiced by the late filing because it acquired timely actual knowledge. Petitioner's claimed reasonable excuse for the late filing was his continued detention, difficulty securing legal representation while in jail, and the effects of the COVID-19 pandemic. However, under the particular facts of the case, petitioner's excuse, even if substantiated, would not by itself support a discretionary extension of time in which to serve a late notice of claim. *Matter of Jaime v City of New York*, 41 NY3d 531.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles

MAINTENANCE OF PREMISES.

1. Slip and Fall.—In a premises liability action in which plaintiff asserted that defendant apartment building owner was liable for injuries plaintiff sustained when he slipped and fell on a wet substance on the building's stairs because defendant negligently painted the treads on the stairs such that the treads had an inadequate coefficient of friction when wet, the grant of summary judgment to defendant was affirmed. Because the alleged hazardous condition existed only when the stairs were wet, defendant established its prima facie entitlement to summary judgment by demonstrating that it did not affirmatively create the wet condition or have actual or constructive notice of that condition. Plaintiff failed to raise a triable issue of fact in response. *Morrison v New York City Hous. Auth.*, 41 NY3d 1023.

PROXIMATE CAUSE.

2. The Appellate Division order affirming the Supreme Court order dismissing the complaint was affirmed. On this record, plaintiff's own conduct was the sole proximate cause of the accident. *Regan v W Assoc., LLC*, 41 NY3d 957.

NEGOTIABLE INSTRUMENTS.

See BILLS, NOTES AND CHECKS

NEWSPAPERS.

See, also, LIBEL AND SLANDER, and other specific titles

OPTICIANS.

See LICENSES; PHYSICIANS AND SURGEONS

OPTOMETRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PARENT, CHILD AND FAMILY.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES, and other specific titles

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

PHYSICAL EXAMINATIONS.

See DISCLOSURE

PHYSICIANS AND SURGEONS.**MALPRACTICE.**

1. Summary Judgment.—The Appellate Division order dismissing the amended complaint in plaintiff's medical malpractice action was reversed, as triable issues of fact existed as to the claim for medical malpractice with respect to the placement of the endotracheal tube in the infant. *Amber R. v Pediatric & Adolescent Urgent Care of W. N.Y., PLLC*, 41 NY3d 1021.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

POLITICAL PARTIES.

See ELECTIONS

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles

RAILROADS.

See, also, CARRIERS

REAL ESTATE BROKERS.

See BROKERS

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles

RES JUDICATA.

See JUDGMENTS

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles

RESIDENCE.

See DOMICILE

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

SLANDER.

See LIBEL AND SLANDER

SPORTING EVENTS.

See THEATRES AND SHOWS

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS

STATUTES.**RETROACTIVE APPLICATION OF STATUTE.**

1. Marihuana Regulation and Taxation Act.—Penal Law § 222.05 (3), which provides that the odor of cannabis can no longer be the basis for a police search and was enacted after defendant was convicted of criminal possession of a weapon and marijuana following a police search of his vehicle based solely upon the odor of cannabis, did not apply retroactively to render the search of defendant's vehicle invalid. The statute provides that, in any "criminal proceeding," the odor of cannabis shall not be the basis for a "finding or determination of reasonable cause to believe a crime has been committed," but defendant's appeal to the Appellate Division from his judgment of conviction was not a "criminal proceeding" within the meaning of Penal Law § 222.05 (3). The Marihuana Regulation and Taxation Act (MRTA), which added Penal Law § 222.05, also included provisions intended to remedy past discriminatory practices regarding the policing of marijuana, including provisions regarding vacatur of prior marijuana-related convictions. Thus, when the legislature intended the MRTA to impact convictions that became final before the law's effective date, it provided express provisions to that effect. There is no similar expression of legislative intent with respect to Penal Law § 222.05. Nor is there any provision in the text or legislative history of the MRTA that would support the staggering impact of the retroactive application defendant proposed: the vacatur of scores of convictions, even those for weapons possession or violent crimes, because the police conducted a search based on the odor of marijuana that was lawful at the time. *People v Pastrana*, 41 NY3d 23.

SUBPOENA.

See WITNESSES

SUMMONS.

See PROCESS

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

TAXATION.**PERSONAL INCOME TAX.**

1. Employee Withholding Taxes — Person Responsible for Payment.—In a proceeding challenging the determination of respondent Tax Appeals Tribunal finding that petitioner was a person responsible for the collection and payment of employee withholding taxes on behalf of a corporation, respondent properly considered whether petitioner had the actual authority and effective power to pay the withholding taxes such that he was liable under Tax Law § 685 (g) for willfully failing to pay the tax. Both the state and federal tests require that a person have the type of control and authority over the affairs of the corporation that would render the person under a duty to collect and pay over withholding taxes, necessarily meaning that the person had the actual authority and ability to pay the overdue taxes. While respondent imprecisely articulated the test as whether petitioner had shown that he "lacked control and authority over the affairs of" the corporation, the factors it considered made clear that it viewed the phrase as encompassing consideration of both petitioner's status in the corporation and

TAXATION—Cont'd

whether petitioner had control and authority over the finances such that he could have paid the taxes. Respondent noted that petitioner was an officer of the corporation and its majority shareholder, managed its field operations, had check signing authority, filed tax returns on behalf of the corporation, and had considerable economic interest in it, as well as that petitioner had held himself out to the Department of Taxation and Finance as a responsible person and negotiated a delay in the payment of overdue taxes because “he had to make payroll,” and that bank signature cards reflected that petitioner could withdraw funds independently from the corporate bank account while others could not. Reading the phrase “control and authority over the affairs of” the corporation in the context of the factors considered indicated that respondent employed the proper legal standard. *Matter of Black v New York State Tax Appeals Trib.*, 41 NY3d 131.

REAL PROPERTY TAX.

2. Exemption — Property Owned by Not-for-Profit Corporation Used by For-Profit Corporation for Pecuniary Gain.—In a hybrid CPLR article 78 proceeding and declaratory judgment action to annul respondent Department of Finance of the City of New York’s revocation of the RPTL 420-a tax exemption for real property owned by petitioner not-for-profit corporation and leased to petitioner for-profit corporation, which used the hospital building thereon to provide dialysis services for a fee, respondent established that the exemption was erroneously granted by showing that the property was leased and used solely for pecuniary gain by a for-profit corporation. The mandatory real property tax exemption in RPTL 420-a (1) (a) is strictly limited to property owned by not-for-profit corporations organized exclusively for “charitable [or] hospital . . . purposes” and which those owners or another such exempt not-for-profit uses exclusively for one or more of those purposes. It was undisputed that petitioner owner did not reside on the premises or otherwise itself use the building for its exempt fundraising purpose. It was further undisputed that petitioner tenant was a for-profit corporation that had sole occupancy and used the building during the lease term exclusively to perform its for-charge dialysis services. Thus, the property was not tax exempt under RPTL 420-a (1) (a). Moreover, real property not used exclusively for the not-for-profit owner’s exempt purposes is subject to taxation under RPTL 420-a (2) if the property is leased to a for-profit entity. *Matter of Brookdale Physicians’ Dialysis Assoc., Inc. v Department of Fin. of the City of N.Y.*, 41 NY3d 608.

TAX APPEALS TRIBUNAL.

3. Substantial Evidence.—In a proceeding challenging the determination of respondent Tax Appeals Tribunal finding that petitioner was a person responsible for the collection and payment of employee withholding taxes on behalf of a corporation, substantial evidence supported respondent’s determination that petitioner had actual authority over the corporation’s finances and the ability to remit the overdue withholding tax yet willfully failed to do so. During the audit period, petitioner was the corporation’s majority shareholder; derived significant income and tax benefits from the corporation as its president; had broad oversight authority over daily field operations; represented to the Department of Taxation and Finance that he was authorized to resolve the corporation’s financial problems; was directly involved in negotiating a resolution of the tax liabilities with the Department as the latter’s primary contact at the corporation; signed the checks remitting full payment for other tax amounts due; and held himself out to be the owner and principal officer of the corporation with control over its financial affairs. Moreover, petitioner was concededly aware that the withholding taxes were not being paid, yet he continued to use his authority as president and majority shareholder to maintain minority-owned business enterprise status and delay the tax collection actions by informing the Department that he would pay the taxes despite his awareness that trust funds belonging to the government were being used for other purposes. While doing so, petitioner benefitted from those actions and the fraud perpetrated on the Department because petitioner’s representations were essential to keeping the corporation afloat, enabling him to receive a salary, allocate business losses, and secure a job for his daughter. *Matter of Black v New York State Tax Appeals Trib.*, 41 NY3d 131.

TOWNS.

See MUNICIPAL CORPORATIONS

TRIAL.**VERDICT.**

1. Directed Verdict.—In an action commenced following the death of plaintiff's son from injuries sustained when he was pulled underwater by the "hydraulic boil" associated with dams operated and maintained by defendant pursuant to an agreement with a federal agency also transferring title to "land, including . . . appurtenances thereto," notwithstanding that the agency never owned the underlying land to which the dams were affixed, the trial evidence did not support a directed verdict for either plaintiff or defendant on the issue of whether defendant owned the dam. A motion for a directed verdict should be granted only when there is no rational process by which the jury could find in favor of the opposing party. The evidence that the dams were firmly affixed to the creek bed was insufficient to establish as a matter of law that ownership of the dams ran with the land; the intent of the agency and landowners also had to be considered. Neither party introduced sufficient evidence to eliminate triable issues of fact regarding such intent. Nor did plaintiff establish that the provisions of the agreement transferring title to "real property" unambiguously encompassed the dams. Because there was a rational process by which a jury could find in favor of either plaintiff or defendant on the ownership issue, neither party was entitled to a directed verdict. *Suzanne P. v Joint Bd. of Directors of Erie-Wyoming County Soil Conservation Dist.*, 41 NY3d 391.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION

VILLAGES.

See MUNICIPAL CORPORATIONS

WELFARE.

See SOCIAL SERVICES

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles

ZONING.

See MUNICIPAL CORPORATIONS

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

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|---|---|
| 1. 19 NY2d 159 (Thrasher v United States Liab. Ins. Co.) | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's. |
| 2. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change appellant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 3. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 4. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change contructive to constructive. |
| 5. 51 NY2d 62 (Matter of Priest v Hennessy) | At 51 NY2d 68, line 9, change constitutes to constitutes. |
| 6. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 7. 54 NY2d 137 (People v Baldi) | At 54 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 8. 64 NY2d 966 (Slatt v Slatt) | At 64 NY2d 967, line 15, change <i>Marlee Sales Corp. v Manufactur-ers Trust Co.</i> to <i>Morlee Sales Corp. v Manufacturers Trust Co.</i> |
| 9. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 10. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |

11. **75 NY2d 927** (Matter of David T.) At 75 NY2d 929, line 20, change effect to defect.

12. **77 NY2d 806** (Dowd v Ahr) Change denied to granted in the result column of the motion for leave to appeal table.

13. **80 NY2d 1030** (People v Sallito) Change the title entry from Salito to Sallito.

14. **85 NY2d 139** (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) At 85 NY2d 146, second paragraph, line 13, change lead to led.

15. **88 NY2d 41** (Town of Orangetown v Magee) At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733.

16. **88 NY2d 400** (People v Huston) At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c].

17. **90 NY2d 717** (Panepinto v New York Life Ins. Co.) At 90 NY2d 720, line 1, change date of October 28, 1996 to October 28, 1986 and at 90 NY2d 720, line 5, change date of October 28, 1996 to October 28, 1986.

18. **93 NY2d 382** (BDO Seidman v Hirshberg) At 93 NY2d 391, line 25, change former employer to former employee.

19. **94 NY2d 759** (Phillips-Smith Specialty Retail Group II, L.P. v Parker Chapin Flattau & Klimpl, L.L.P.) Change the page number of the reported below citation from 209 to 208.

20. **97 NY2d 709** In Criminal Leave Table, first 13 entries on this page (from *People v Santos* through and including *People v Stallone*), change the year within the decision date from “/01” to “/02.”

21. **100 NY2d 960** (Vernon v Vernon) At 100 NY2d 967, line 7 of second paragraph, change degree to decree.

22. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
23. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
24. **3 NY3d 491** (People v Jones) At 3 NY3d 496, lines 21 and 22, insert a dash after the word force and after the word attack.
25. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
26. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
27. **4 NY3d 884** (People v Bronson) Change the title entry from Bronson to M.B.
28. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
29. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.
30. **7 NY3d 703** (Matter of Park v Kapica) Change the page number of the reported below citation from 802 to 801.
31. **8 NY3d 944** (People v Charriez) In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U).
32. **9 NY3d 923** (People v Jacobs) In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868.

33. **11 NY3d 875** (People v Ford) On line 5 of the Summary, change Bronx County to New York County.
34. **13 NY3d 511** (Matter of Goldstein v New York Urban Dev. Corp.) At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition].
35. **18 NY3d 667** (People v Rodriguez) At 18 NY3d 671, second line from bottom of the page, change CPL 410.30 to CPL 430.10.
36. **19 NY3d 1058** (Matter of 677 New Loudon Corp. v State of N.Y. Tax Appeals Trib.) At 19 NY3d 1058, line 4 of the headnote, and at page 1159, third paragraph, line 4 of the Memorandum, change 10% to 10¢.
37. **21 NY3d 1043** (People v Mackey-Meggs) Change defendant's name in title from Mackey-Meggs to Marquan M.
38. **22 NY3d 648** (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet.
39. **23 NY3d 455** (People v Golb) At 23 NY3d 461, in second full paragraph the email address "newsmedia.ucla.edu" should read "newsmedia@ucla.edu"
At 23 NY3d 461, in third full paragraph the email address "steve.goranson@gmail.com" should read "steve.goranson@gmail.com"
At 23 NY3d 462, in the first paragraph the email address "frank.cross2gmail.com" should read "frank.cross2@gmail.com"
At 23 NY3d 462, in the second full paragraph the email address "larry.schiffmangmail.com" should read "larry.schiffman@gmail.com"
At 23 NY3d 463, in the second full paragraph the email address "seidel.jonathangmail.com" should read "seidel.jonathan@gmail.com"

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| 40. 23 NY3d 665 (Norex Petroleum Ltd. v Blavatnik) | At 23 NY3d 668, footnote 3, last sentence on page should read . . . For purposes of discussion in this opinion, we simply assume that, within the meaning of section 205 (a), Norex’s federal action was not terminated on the merits, and Norex’s state court action alleges claims “upon the same transaction or occurrence” as its federal predecessor |
| 41. 24 NY3d 294 (People v Silva) | At 24 NY3d 296, change attorney’s name for appellant in the second above-entitled action from Steven R. Bernard to Steven R. Bernhard. |
| 42. 25 NY3d 906 (Richard H. v State of New York) | Change 1324 to 1306 in the middle column of the motion for leave to appeal table. |
| 43. 26 NY3d - 28 NY3d | Change the spelling of “irrelevant” to “irrelevant” throughout. |
| 44. 26 NY3d 903 (McMillin v Grimditch) | Change the reported below citation from 130 AD3d 150 to 131 AD3d 150. |
| 45. 26 NY3d 903 (Town of N. Elba v Grimditch) | Change the reported below citation from 130 AD3d 150 to 131 AD3d 150. |
| 46. 27 NY3d 1079 (People ex rel. Monte v Mingo) | Change respondents’ name in title from <i>Warden</i> to <i>Warden Maxsolaine Mingo</i> . |
| 47. 27 NY3d 1158 (People v McCullough) | At 27 NY3d 1161, line 8 from the bottom of the page, delete the comma that follows 531. |
| 48. 28 NY3d 1123 (People v Faeth) | In Criminal Leave Table, middle column, change App Div, 4th Dept: 2016 NY Slip Op 68866(U) (Wayne) to App Div, 4th Dept, 9/6/16 (Wayne). |

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| 49. 32 NY3d 1222 (People v Javon Loney) | Change appellant's name in title from Javon Loney to J.L. |
| 50. 33 NY3d 950 (People v Loney) | Change appellant's name in title from Loney to J.L. |
| 51. 37 NY3d 901 (Matter of Laland v Bookhart) | Change Laland, Matter of, v Bookhart to D.L., Matter of, v S.B. |
| 52. 37 NY3d 918 (Matter of Lynch v City of New York) | Change granted to motions granted in the third column of the motion for leave to appeal table. |
| 53. 37 NY3d 927 (Matter of Laland v Bookhart) | Change appellant's name in title from Davlin Laland to D.L. and respondent's name from Shavonne Bookhart to S.B. |
| 54. 38 NY3d 1123 (Elberg v Crabapple Corp.) | Change the reported below citation from 203 AD3d 425 to 201 AD3d 546; 2022 NY Slip Op 63824(U). |
| 55. 38 NY3d 1133 (People v Fleming) | In Criminal Leave Table, middle column, change 1st Dept: 201 AD3d 552 (Bronx) to App Div, 1st Dept: 2022 NY Slip Op 60633(U) (Bronx). |